

RPSC · RAS & RTS PRELIMINARY EXAMINATION 2026

Indian Constitution, Political System and Governance

440 practice questions across 10 chapters, each chapter opening with a must-know fact sheet. Answers and explanations are at the back, so you can work through the paper first.

IP01	Making of the Constitution, Preamble, Salient Features, Sources	45
IP02	Citizenship and Fundamental Rights	50
IP03	Directive Principles and Fundamental Duties	35
IP04	Union Executive: President, Vice-President, PM and Council of Ministers	45
IP05	Parliament and the Legislative Process	45
IP06	Judiciary: Supreme Court, High Courts and Judicial Review	40
IP07	Centre-State Relations, Emergency, Schedules and Amendments	45
IP08	Local Government: Rural and Urban	40
IP09	Constitutional, Statutory and Executive Bodies	55
IP10	Governance: Public Policy, Citizen Charter, Social Audit, Grievance Redressal, RTI	40

440 questions · **298** fact-sheet points · **63** tagged as previously asked
Paper pattern: 150 questions · 200 marks · 3 hours · 1/3 negative marking

IP01

Making of the Constitution, Preamble, Salient Features, Sources

45 questions · 30 fact-sheet points

Must-know facts

1. Idea of a Constituent Assembly for India first mooted by M. N. Roy in 1934; INC made it an official demand in 1935; conceded in principle by the British in the August Offer, 1940.
2. Constituent Assembly constituted in November 1946 under the Cabinet Mission Plan; members chosen indirectly by provincial assemblies through proportional representation with a single transferable vote.
3. Total strength 389 = 296 from British India (292 provinces + 4 chief commissioners' provinces, including Ajmer-Merwara) + 93 from princely states; reduced to 299 after Partition; roughly one seat per million population, provincial seats split among Muslim, Sikh and General communities.
4. First sitting 9 December 1946; Dr. Sachchidananda Sinha temporary (provisional) President; Dr. Rajendra Prasad elected permanent President on 11 December 1946.
5. Vice-Presidents of the Assembly: H. C. Mukherjee and V. T. Krishnamachari (who represented Jaipur and was later Deputy Chairman of the Planning Commission).
6. Officials: B. N. Rau - Constitutional Adviser (prepared the initial draft, October 1947); H. V. R. Iyengar - Secretary; S. N. Mukherjee - Chief Draftsman. The Drafting Committee's Draft Constitution was published in February 1948 and submitted to the President of the Assembly on 21 February 1948.
7. Objectives Resolution moved by Jawaharlal Nehru on 13 December 1946 and adopted on 22 January 1947; it became the basis of the Preamble.
8. Drafting Committee constituted on 29 August 1947 with seven members under Dr. B. R. Ambedkar.
9. Drafting Committee: Ambedkar, N. Gopalaswami Ayyangar, Alladi Krishnaswami Ayyar, K. M. Munshi, Syed Mohammad Saadullah, N. Madhava Rau (replaced B. L. Mitter) and T. T. Krishnamachari (replaced D. P. Khaitan, who died in 1948).
10. Committees chaired by Nehru: Union Powers, Union Constitution, States (Negotiating with States) Committee.
11. Committees chaired by Sardar Patel: Provincial Constitution Committee, and the Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas.
12. Committees chaired by Dr. Rajendra Prasad: Steering Committee, Rules of Procedure Committee, Finance and Staff Committee, and the Ad hoc Committee on the National Flag.
13. Minor committees: Credentials - Alladi Krishnaswami Ayyar; House - B. Pattabhi Sitaramayya; Order of Business - K. M. Munshi; Functions of the Constituent Assembly - G. V. Mavalankar; Chief Commissioners' Provinces - B. Pattabhi Sitaramayya; Press Gallery - Usha Nath Sen.
14. Sub-committees under the Advisory Committee: Fundamental Rights - J. B. Kripalani; Minorities - H. C. Mukherjee; North-East Frontier Tribal Areas and Assam Excluded Areas - Gopinath Bardoloi; Excluded and Partially Excluded Areas (other than Assam) - A. V. Thakkar.
15. 11 sessions spread over 165 days; 114 days spent on considering the Draft Constitution; total time taken 2 years, 11 months and 18 days.
16. Constitution adopted 26 November 1949 (observed as Constitution Day / Samvidhan Divas since 2015); it came into force on 26 January 1950, the date chosen because Purna Swaraj Day had been observed on 26 January since 1930.
17. Articles 5-9 (citizenship) and a few other provisions came into force on 26 November 1949 itself; the rest of the Constitution on 26 January 1950.
18. Last (eleventh) session, 24 January 1950: members signed the Constitution and Dr. Rajendra Prasad was elected the first President of India.

19. The manuscript was handwritten in flowing italic calligraphy by Prem Behari Narain Raizada; decorations by Nandalal Bose and Beohar Rammanohar Sinha of Shantiniketan.
20. Original Constitution: 395 Articles, 22 Parts, 8 Schedules. At present: about 448 Articles, 25 Parts and 12 Schedules - the lengthiest written constitution in the world.
21. Preamble keywords: Sovereign, Socialist, Secular, Democratic, Republic; Justice (social, economic, political); Liberty of thought, expression, belief, faith and worship; Equality of status and opportunity; Fraternity assuring dignity of the individual and unity and integrity of the Nation.
22. The 42nd Amendment Act, 1976 - the only amendment to the Preamble so far - added the words 'Socialist', 'Secular' and 'Integrity'.
23. Berubari Union case (1960): Preamble is not a part of the Constitution. Kesavananda Bharati (1973): Preamble IS a part of the Constitution and can be amended without damaging the basic structure; reaffirmed in LIC of India case (1995).
24. Sources - Britain: parliamentary government, rule of law, single citizenship, prerogative writs, bicameralism, cabinet system. USA: Fundamental Rights, judicial review, independence of judiciary, impeachment of President, post of Vice-President.
25. Sources - Ireland: Directive Principles, nomination of members to the Rajya Sabha, method of election of the President. Canada: federation with a strong Centre, residuary powers with the Union, appointment of Governors, advisory jurisdiction of the Supreme Court.
26. Sources - Australia: Concurrent List, joint sitting of the two Houses, freedom of trade, commerce and intercourse. Weimar Germany: suspension of Fundamental Rights during an emergency. Japan: 'procedure established by law'.
27. Sources - USSR: Fundamental Duties and the ideal of justice (social, economic and political) in the Preamble. France: republic and the ideals of liberty, equality and fraternity. South Africa: procedure for amendment and election of Rajya Sabha members. Government of India Act, 1935: federal scheme, office of Governor, judiciary, public service commissions, emergency provisions.
28. Articles 1-4: Art. 1 'India, that is Bharat, shall be a Union of States'; Art. 2 admission or establishment of new States; Art. 3 formation of new States and alteration of areas, boundaries or names; Art. 4 such laws are not deemed amendments under Art. 368.
29. Schedules: 1 States and UTs; 2 emoluments and allowances; 3 forms of oaths; 4 allocation of Rajya Sabha seats; 5 Scheduled Areas and Scheduled Tribes; 6 tribal areas of Assam, Meghalaya, Tripura and Mizoram; 7 Union, State and Concurrent Lists; 8 languages (22 at present); 9 laws immune from challenge (1st Amendment, 1951); 10 anti-defection (52nd Amendment, 1985); 11 panchayats, 29 subjects (73rd Amendment); 12 municipalities, 18 subjects (74th Amendment).
30. Seventh Schedule as originally enacted: Union List 97 subjects, State List 66, Concurrent List 47. Eighth Schedule: Sindhi added by the 21st Amendment (1967); Bodo, Dogri, Maithili and Santhali by the 92nd Amendment (2003).

1. The idea of a Constituent Assembly for India was first put forward in 1934 by:

- | | |
|----------------------|------------------------|
| (A) Jawaharlal Nehru | (B) B. R. Ambedkar |
| (C) M. N. Roy | (D) C. Rajagopalachari |

2. The Constituent Assembly of India was constituted in November 1946 under the scheme of the:

- | | |
|----------------------------|--------------------------------|
| (A) Cripps Proposals, 1942 | (B) Wavell Plan, 1945 |
| (C) Mountbatten Plan, 1947 | (D) Cabinet Mission Plan, 1946 |

3. The first meeting of the Constituent Assembly of India was held on:

- | | |
|----------------------|----------------------|
| (A) 9 December 1946 | (B) 11 December 1946 |
| (C) 13 December 1946 | (D) 22 January 1947 |

4. Who presided over the first sitting of the Constituent Assembly as its temporary (provisional) President?
- (A) Dr. Rajendra Prasad (B) Dr. Sachchidananda Sinha
(C) Dr. B. R. Ambedkar (D) H. C. Mukherjee
5. Dr. Rajendra Prasad was elected the permanent President of the Constituent Assembly on:
- (A) 9 December 1946 (B) 13 December 1946
(C) 11 December 1946 (D) 22 January 1947
6. Who was appointed the Constitutional Adviser to the Constituent Assembly of India?
- (A) S. N. Mukherjee (B) H. V. R. Iyengar
(C) K. M. Munshi (D) B. N. Rau
7. The Objectives Resolution was moved in the Constituent Assembly on 13 December 1946 by:
- (A) Dr. Rajendra Prasad (B) Jawaharlal Nehru
(C) Sardar Vallabhbhai Patel (D) Dr. B. R. Ambedkar
8. The Objectives Resolution was adopted by the Constituent Assembly on:
- (A) 13 December 1946 (B) 22 January 1947
(C) 26 November 1949 (D) 24 January 1950
9. The Drafting Committee of the Constituent Assembly, set up on 29 August 1947, consisted of how many members?
- (A) Five (B) Seven
(C) Nine (D) Eleven
10. Who was inducted into the Drafting Committee in place of D. P. Khaitan after the latter's death in 1948? **HARD**
- (A) N. Madhava Rau (B) Alladi Krishnaswami Ayyar
(C) Syed Mohammad Saadullah (D) T. T. Krishnamachari
11. The Constitution of India was adopted by the Constituent Assembly on:
- (A) 26 January 1950 (B) 26 November 1949
(C) 24 January 1950 (D) 15 August 1947
12. The Constituent Assembly took how long to frame the Constitution of India?
- (A) 2 years, 11 months and 18 days (B) 3 years, 2 months and 10 days
(C) 2 years, 6 months and 15 days (D) 4 years, 1 month and 26 days
13. The Constituent Assembly held its last session, at which the members signed the Constitution, on: **RAS PRE 2023**
- (A) 26 November 1949 (B) 31 December 1949
(C) 24 January 1950 (D) 26 January 1950
14. As originally enacted, the Constitution of India contained:
- (A) 448 Articles, 25 Parts and 12 Schedules (B) 390 Articles, 20 Parts and 9 Schedules
(C) 404 Articles, 22 Parts and 10 Schedules (D) 395 Articles, 22 Parts and 8 Schedules
15. The words 'Socialist', 'Secular' and 'Integrity' were inserted in the Preamble by the: **RAS PRE 2021**
- (A) 42nd Amendment Act, 1976 (B) 44th Amendment Act, 1978
(C) 24th Amendment Act, 1971 (D) 52nd Amendment Act, 1985
16. In which case did the Supreme Court hold that the Preamble is not a part of the Constitution?
- (A) Kesavananda Bharati case, 1973 (B) Berubari Union case, 1960
(C) Golaknath case, 1967 (D) LIC of India case, 1995

- 17.** The view that the Preamble is a part of the Constitution and can be amended under Article 368 was laid down in:
- (A) Berubari Union case (B) A. K. Gopalan case
(C) Kesavananda Bharati case (D) Minerva Mills case
- 18.** The Preamble of the Constitution mentions the date of its adoption as:
- (A) 26 January 1950 (B) 15 August 1947
(C) 24 January 1950 (D) 26 November 1949
- 19.** The Directive Principles of State Policy in the Indian Constitution have been borrowed from the Constitution of:
- (A) Ireland (B) USA
(C) Canada (D) Australia
- 20.** The provision for the suspension of Fundamental Rights during an emergency has been borrowed from the constitution of:
- (A) USA (B) Weimar Germany
(C) Ireland (D) South Africa
- 21.** The expression 'procedure established by law' used in Article 21 has been drawn from the Constitution of:
- (A) USA (B) Britain
(C) Japan (D) Canada
- 22.** Under Article 1 of the Constitution, India is described as:
- (A) A Federation of States (B) A Confederation of States
(C) A Federal Republic of Provinces (D) A Union of States
- 23.** The Eighth Schedule of the Constitution of India contains:
- (A) Forms of oaths and affirmations
(B) Allocation of seats in the Rajya Sabha
(C) The languages recognised by the Constitution
(D) The anti-defection provisions
- 24.** The original manuscript of the Constitution of India was handwritten in flowing italic calligraphy by:
- (A) Nandalal Bose (B) Beohar Rammanohar Sinha
(C) Vasant Krishan Vaidya (D) Prem Behari Narain Raizada
- 25.** Consider the following statements about the Constituent Assembly of India:
- I. It was constituted in November 1946 under the Cabinet Mission Plan.
II. Its members were directly elected by the people of India on the basis of adult franchise.
III. Its total strength before Partition was fixed at 389.
- Which of the statements given above are correct?
- (A) I and II only
(B) I and III only
(C) II and III only
(D) I, II and III

26. Consider the following statements about the Preamble to the Constitution of India:

- I. Its provisions are enforceable in a court of law.
- II. It has been amended only once so far.
- III. It declares India to be a Sovereign Socialist Secular Democratic Republic.

Which of the statements given above are correct?

- (A) II and III only
- (B) I and II only
- (C) I and III only
- (D) I, II and III

27. Consider the following statements about the Objectives Resolution:

- I. It was moved by Jawaharlal Nehru.
- II. It formed the basis of the Preamble of the Constitution.
- III. It was adopted by the Constituent Assembly on 26 November 1949.

Which of the statements given above are correct?

- (A) II and III only
- (B) I and II only
- (C) I and III only
- (D) I, II and III

28. Consider the following statements about the Drafting Committee of the Constituent Assembly:

- I. It was constituted on 29 August 1947.
- II. Dr. B. R. Ambedkar was its chairman.
- III. Alladi Krishnaswami Ayyar and K. M. Munshi were among its members.

Which of the statements given above are correct? RAS PRE 2018

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

29. Consider the following statements about Articles 1 to 4 of the Constitution:

- I. Article 1 describes India as a Union of States.
- II. A Bill under Article 3 for the formation of a new State can be introduced in Parliament only on the prior recommendation of the President.
- III. A law made under Article 3 is deemed to be an amendment of the Constitution under Article 368.

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

30. Consider the following statements about the salient features of the Constitution of India:

- I. It provides for dual citizenship - of the Union and of the State.
- II. It is the lengthiest written constitution in the world.
- III. It establishes a parliamentary form of government both at the Centre and in the States.

Which of the statements given above are correct?

- (A) I and III only
- (B) I and II only
- (C) II and III only
- (D) I, II and III

31. Consider the following statements regarding the sources of the Indian Constitution:

- I. The system of single citizenship has been borrowed from Britain.
- II. The procedure for amendment of the Constitution has been drawn from South Africa.
- III. The Directive Principles of State Policy have been borrowed from the Constitution of Canada.

Which of the statements given above are correct?

- (A) I and III only
- (B) II and III only
- (C) I and II only
- (D) I, II and III

32. Consider the following statements about the Schedules of the Constitution:

- I. The Eleventh Schedule contains 18 subjects relating to municipalities.
- II. The Ninth Schedule was added by the First Amendment Act, 1951.
- III. The Tenth Schedule was inserted by the 52nd Amendment Act, 1985.

Which of the statements given above are correct?

- (A) II and III only
- (B) I and II only
- (C) I and III only
- (D) I, II and III

33. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Committee of the Constituent Assembly) List-II (Chairman)

- A. Union Powers Committee 1. Jawaharlal Nehru
- B. Provincial Constitution Committee 2. Sardar Vallabhbhai Patel
- C. Steering Committee 3. Dr. Rajendra Prasad
- D. Drafting Committee 4. Dr. B. R. Ambedkar

RAS PRE 2021, 2024

- (A) A-1, B-2, C-3, D-4
- (B) A-2, B-1, C-3, D-4
- (C) A-1, B-3, C-2, D-4
- (D) A-1, B-2, C-4, D-3

34. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Committee) List-II (Chairman)

- A. Order of Business Committee 1. Alladi Krishnaswami Ayyar
- B. Credentials Committee 2. B. Pattabhi Sitaramayya
- C. Committee on the Functions of the Constituent Assembly 3. K. M. Munshi
- D. House Committee 4. G. V. Mavalankar

RAS PRE 2023

HARD

- (A) A-1, B-3, C-4, D-2
- (B) A-3, B-1, C-2, D-4
- (C) A-3, B-1, C-4, D-2
- (D) A-2, B-4, C-1, D-3

35. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Sub-committee of the Advisory Committee) List-II (Chairman)

- A. Minorities Sub-Committee 1. J. B. Kripalani
 B. Excluded and Partially Excluded Areas (other than Assam) Sub-Committee 2. H. C. Mukherjee
 C. Fundamental Rights Sub-Committee 3. Gopinath Bardoloi
 D. North-East Frontier Tribal Areas and Assam Excluded Areas Sub-Committee 4. A. V. Thakkar **HARD**
- (A) A-1, B-4, C-2, D-3
 (B) A-2, B-4, C-1, D-3
 (C) A-2, B-3, C-1, D-4
 (D) A-4, B-2, C-3, D-1

36. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Country) List-II (Feature borrowed)

- A. Ireland 1. Rule of law
 B. Australia 2. Judicial review
 C. Britain 3. Nomination of members to the Rajya Sabha
 D. USA 4. Freedom of trade, commerce and intercourse
- (A) A-3, B-4, C-1, D-2
 (B) A-3, B-1, C-4, D-2
 (C) A-4, B-3, C-1, D-2
 (D) A-3, B-4, C-2, D-1

37. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Schedule) List-II (Subject)

- A. Fourth Schedule 1. Emoluments and allowances of the President, Governors and Judges
 B. Second Schedule 2. Allocation of seats in the Rajya Sabha
 C. Seventh Schedule 3. Administration of tribal areas in Assam, Meghalaya, Tripura and Mizoram
 D. Sixth Schedule 4. Division of legislative powers between the Union and the States
- (A) A-2, B-1, C-3, D-4
 (B) A-1, B-2, C-4, D-3
 (C) A-2, B-1, C-4, D-3
 (D) A-2, B-4, C-1, D-3

38. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Person) List-II (Role in the making of the Constitution)

- A. S. N. Mukherjee 1. Constitutional Adviser
 B. Nandalal Bose 2. Secretary to the Constituent Assembly
 C. H. V. R. Iyengar 3. Chief Draftsman
 D. B. N. Rau 4. Decoration and illustration of the manuscript
- (A) A-3, B-4, C-1, D-2
 (B) A-1, B-2, C-3, D-4
 (C) A-3, B-2, C-4, D-1
 (D) A-3, B-4, C-2, D-1

39. Who among the following was NOT a member of the Drafting Committee of the Constituent Assembly? **RAS PRE 2018**

- (A) N. Gopalaswami Ayyangar (B) Syed Mohammad Saadullah
 (C) Jawaharlal Nehru (D) K. M. Munshi

- 40.** Which one of the following pairs of a country and a feature borrowed from its constitution is NOT correctly matched?
- (A) USA - Fundamental Duties
 - (B) Canada - Appointment of State Governors by the Centre
 - (C) Ireland - Method of election of the President
 - (D) France - Ideals of liberty, equality and fraternity
- 41.** Which one of the following statements about the Preamble of the Constitution is NOT correct?
- (A) It declares India to be a Sovereign Socialist Secular Democratic Republic
 - (B) It is a source of legislative power for the Government
 - (C) It was amended by the 42nd Amendment Act, 1976
 - (D) It mentions 26 November 1949 as the date of adoption
- 42.** Which one of the following Schedules is NOT correctly matched with its subject?
- (A) Third Schedule - Forms of oaths and affirmations
 - (B) Fifth Schedule - Administration and control of Scheduled Areas and Scheduled Tribes
 - (C) Eleventh Schedule - 29 subjects of panchayats
 - (D) Twelfth Schedule - Anti-defection provisions
- 43.** Which one of the following statements about the Constituent Assembly of India is NOT correct?
- (A) Dr. Sachchidananda Sinha presided over its first sitting
 - (B) It held 11 sessions spread over 165 days
 - (C) Its total membership after Partition was 299
 - (D) Dr. B. R. Ambedkar was elected its permanent Chairman
- 44.** Arrange the following events in the correct chronological order:
- I. First meeting of the Constituent Assembly
 - II. Adoption of the Objectives Resolution
 - III. Constitution of the Drafting Committee
 - IV. Adoption of the Constitution by the Constituent Assembly
- (A) II, I, III, IV
 - (B) I, III, II, IV
 - (C) I, II, III, IV
 - (D) II, III, I, IV
- 45.** Arrange the following in the correct chronological order:
- I. Commencement of the Constitution of India
 - II. Signing of the Constitution by the members at the last session of the Constituent Assembly
 - III. Adoption of the Constitution by the Constituent Assembly
 - IV. Submission of the Draft Constitution by the Drafting Committee to the President of the Assembly
- (A) IV, III, II, I
 - (B) III, IV, II, I
 - (C) IV, II, III, I
 - (D) IV, III, I, II

IP02

Citizenship and Fundamental Rights

50 questions · 28 fact-sheet points

Must-know facts

1. Citizenship - Part II, Articles 5-11. Art. 5 citizenship at the commencement of the Constitution; Art. 6 rights of persons who migrated to India from Pakistan; Art. 7 rights of persons who migrated to Pakistan; Art. 8 persons of Indian origin residing outside India; Art. 9 voluntary acquisition of foreign citizenship ends Indian citizenship; Art. 10 continuance of rights; Art. 11 Parliament's power to regulate citizenship by law.
2. India provides for single citizenship only - there is no separate citizenship of a State.
3. Citizenship Act, 1955: five modes of acquisition - by birth, by descent, by registration, by naturalisation and by incorporation of territory; three modes of loss - renunciation, termination and deprivation.
4. Citizenship Act amendments: 1986, 1992, 2003, 2005, 2015 and 2019. The 1992 amendment allowed citizenship by descent through the mother; the 2003 amendment defined 'illegal migrant'; the 2015 amendment merged the PIO card scheme into the OCI card scheme.
5. Citizenship (Amendment) Act, 2019: Hindus, Sikhs, Buddhists, Jains, Parsis and Christians from Afghanistan, Bangladesh and Pakistan who entered India on or before 31 December 2014; naturalisation period cut from 11 years to 5 years.
6. Fundamental Rights - Part III, Articles 12-35, called the 'Magna Carta of India'. Originally seven; the right to property was deleted by the 44th Amendment (1978) and is now a constitutional/legal right under Article 300A.
7. Art. 12 - 'State' means the Government and Parliament of India, the Government and legislature of each State, and all local and other authorities within India or under the control of the Government of India.
8. Art. 13 - laws inconsistent with Fundamental Rights are void; the express basis of judicial review. Art. 13(4), added by the 24th Amendment, keeps constitutional amendments outside Article 13.
9. Right to Equality: Art. 14 equality before law and equal protection of the laws; Art. 15 prohibition of discrimination on grounds of religion, race, caste, sex or place of birth; Art. 16 equality of opportunity in public employment; Art. 17 abolition of untouchability; Art. 18 abolition of titles.
10. Art. 15(4) inserted by the 1st Amendment (1951); Art. 15(5) on private educational institutions by the 93rd Amendment (2005); Art. 15(6) and 16(6) on EWS reservation by the 103rd Amendment (2019); Art. 16(4A) reservation in promotion by the 77th Amendment (1995); Art. 16(4B) backlog vacancies by the 81st Amendment (2000).
11. Art. 17 is enforced through the Protection of Civil Rights Act, 1955 (originally the Untouchability (Offences) Act, 1955). Art. 18 exempts military and academic distinctions; national awards were upheld in *Balaji Raghavan v. Union of India* (1996).
12. Art. 19 - six freedoms: speech and expression; assembly without arms; association or unions or co-operative societies (the last added by the 97th Amendment, 2011); free movement; residence; profession, occupation, trade or business. The seventh freedom - property - was removed by the 44th Amendment.
13. Art. 20 - no ex post facto criminal law, no double jeopardy, no self-incrimination. Articles 20 and 21 cannot be suspended even during a National Emergency (44th Amendment, 1978).
14. Art. 21 - protection of life and personal liberty. *A. K. Gopalan* (1950) took a narrow view; *Maneka Gandhi v. Union of India* (1978) held that the procedure must be fair, just and reasonable.
15. Judicial expansion of Art. 21: right to livelihood - *Olga Tellis* (1985); clean environment - *Subhash Kumar v. State of Bihar* (1991); speedy trial and free legal aid - *Hussainara Khatoon* (1979); education

- Unni Krishnan (1993); privacy - K. S. Puttaswamy v. Union of India (2017, nine-judge bench); death with dignity - Common Cause (2018). Gian Kaur (1996) held the right to life does not include the right to die.
- 16. Art. 21A - free and compulsory education for children of 6-14 years; inserted by the 86th Amendment, 2002; the RTE Act, 2009 came into force on 1 April 2010.
- 17. Art. 22 - grounds of arrest to be communicated, right to consult a lawyer, production before the nearest magistrate within 24 hours (excluding journey time); these do not apply to enemy aliens or to preventive detention. Preventive detention beyond three months requires the opinion of an advisory board.
- 18. Art. 23 - prohibition of traffic in human beings, begar and other forms of forced labour. Art. 24 - no child below 14 years to be employed in any factory, mine or hazardous employment.
- 19. Freedom of religion: Art. 25 conscience and free profession, practice and propagation; Art. 26 management of religious affairs; Art. 27 no tax for the promotion of any religion; Art. 28 no religious instruction in wholly State-funded educational institutions.
- 20. Cultural and educational rights: Art. 29 protection of the language, script and culture of any section of citizens; Art. 30 right of minorities to establish and administer educational institutions of their choice.
- 21. Art. 32 - right to constitutional remedies; Dr. Ambedkar called it 'the very soul of the Constitution and the very heart of it'. It is itself a Fundamental Right and cannot be suspended except as provided by Article 359.
- 22. Five writs: habeas corpus ('to have the body'), mandamus ('we command'), prohibition, certiorari ('to be certified') and quo warranto ('by what authority').
- 23. Article 32 can be invoked only for the enforcement of Fundamental Rights; Article 226, which empowers High Courts, is wider - it covers Fundamental Rights 'and for any other purpose'.
- 24. Art. 33 - Parliament may restrict the Fundamental Rights of the armed forces, paramilitary forces, police, intelligence agencies and analogous services. Art. 34 - restriction while martial law is in force. Art. 35 - only Parliament may legislate on certain Fundamental Rights matters.
- 25. Fundamental Rights available only to citizens: Articles 15, 16, 19, 29 and 30. All other Fundamental Rights - including Articles 14, 20, 21, 21A, 22, 23, 24 and 25-28 - are available to citizens and foreigners alike.
- 26. Doctrines: eclipse (Bhikaji Narain Dhakras v. State of Madhya Pradesh, 1955), severability, non-waiver of Fundamental Rights (Bhikaji Nath v. CIT, 1959) and basic structure (Kesavananda Bharati, 1973).
- 27. Articles 31A, 31B and 31C save certain laws; Art. 31B protects laws placed in the Ninth Schedule. In I. R. Coelho v. State of Tamil Nadu (2007) the Supreme Court held that laws added to the Ninth Schedule after 24 April 1973 are open to judicial review.
- 28. Sajjan Singh v. State of Rajasthan upheld the 17th Amendment and reaffirmed Parliament's power to amend Fundamental Rights - a view reversed two years later in Golaknath (1967).

1. The provisions relating to citizenship are contained in which Part of the Constitution of India?

- | | |
|--------------|-------------|
| (A) Part I | (B) Part II |
| (C) Part III | (D) Part IV |

2. Which Article of the Constitution empowers Parliament to regulate the right of citizenship by law?

- | | |
|----------------|----------------|
| (A) Article 8 | (B) Article 9 |
| (C) Article 10 | (D) Article 11 |

3. The Citizenship Act, which lays down the modes of acquisition and loss of Indian citizenship, was enacted in the year:

- | | |
|----------|----------|
| (A) 1955 | (B) 1950 |
| (C) 1951 | (D) 1957 |

- 4.** The Person of Indian Origin (PIO) card scheme was merged with the Overseas Citizen of India (OCI) card scheme by the Citizenship (Amendment) Act of:
- (A) 2003 (B) 2005
(C) 2019 (D) 2015
- 5.** The Citizenship (Amendment) Act, 2019 reduces the period of residence required for naturalisation of the specified communities from eleven years to:
- (A) Three years (B) Six years
(C) Five years (D) Seven years
- 6.** Under the Citizenship (Amendment) Act, 2019, the cut-off date of entry into India for the specified communities is:
- (A) 31 December 2014 (B) 24 March 1971
(C) 1 July 1987 (D) 31 December 2019
- 7.** Article 12 of the Constitution of India defines the term:
- (A) Law (B) Citizen
(C) Fundamental Right (D) State
- 8.** Article 13 of the Constitution provides for:
- (A) Right to equality
(B) Judicial review of laws inconsistent with Fundamental Rights
(C) Right to constitutional remedies
(D) Abolition of titles
- 9.** The abolition of titles is dealt with in which Article of the Constitution?
- (A) Article 15 (B) Article 16
(C) Article 17 (D) Article 18
- 10.** How many freedoms are guaranteed to citizens under Article 19 of the Constitution at present?
- (A) Six (B) Five
(C) Seven (D) Eight
- 11.** The right to property was removed from the list of Fundamental Rights by the: RAS PRE 2021
- (A) 44th Amendment Act, 1978 (B) 24th Amendment Act, 1971
(C) 42nd Amendment Act, 1976 (D) 25th Amendment Act, 1971
- 12.** At present, the right to property is a constitutional (legal) right under:
- (A) Article 31 (B) Article 19(1)(f)
(C) Article 300A (D) Article 31C
- 13.** Article 20(2) of the Constitution embodies the principle of:
- (A) Ex post facto law (B) Self-incrimination
(C) Double jeopardy (D) Preventive detention
- 14.** Under Article 22, a person who is arrested must be produced before the nearest magistrate within:
- (A) 12 hours (B) 24 hours
(C) 48 hours (D) 72 hours
- 15.** Under Article 22, a person may be kept under preventive detention without obtaining the opinion of an advisory board for a maximum period of:
- (A) One month (B) Two months
(C) Three months (D) Six months

- 16.** Article 23 of the Constitution prohibits:
- (A) Untouchability (B) Employment of children in factories
(C) Traffic in human beings and forced labour (D) Discrimination in public employment
- 17.** Article 24 prohibits the employment of children below which age in any factory, mine or hazardous employment?
- (A) Twelve years (B) Fourteen years
(C) Fifteen years (D) Eighteen years
- 18.** Article 21A, which makes elementary education a Fundamental Right, was inserted by the: **RAS PRE 2018**
- (A) 42nd Amendment Act, 1976 (B) 86th Amendment Act, 2002
(C) 44th Amendment Act, 1978 (D) 93rd Amendment Act, 2005
- 19.** The Right of Children to Free and Compulsory Education Act, 2009 came into force on:
- (A) 1 April 2010 (B) 1 April 2009
(C) 26 January 2010 (D) 15 August 2010
- 20.** Dr. B. R. Ambedkar described which Article of the Constitution as 'the very soul of the Constitution and the very heart of it'?
- (A) Article 14 (B) Article 21
(C) Article 32 (D) Article 356
- 21.** The writ issued by a court directing a public official or a public body to perform a public duty which it has failed to perform is:
- (A) Habeas corpus (B) Mandamus
(C) Certiorari (D) Quo warranto
- 22.** In which case did the Supreme Court hold that the 'procedure established by law' under Article 21 must be fair, just and reasonable? **RAS PRE 2018, 2023**
- (A) A. K. Gopalan v. State of Madras (B) Kesavananda Bharati v. State of Kerala
(C) Golaknath v. State of Punjab (D) Maneka Gandhi v. Union of India
- 23.** The right to privacy was declared a Fundamental Right flowing from Article 21 in: **RAS PRE 2024**
- (A) Kharak Singh case (1963) (B) K. S. Puttaswamy v. Union of India (2017)
(C) Gobind case (1975) (D) Maneka Gandhi case (1978)
- 24.** The right to livelihood was read into the right to life under Article 21 in: **HARD**
- (A) Subhash Kumar v. State of Bihar
(B) Hussainara Khatoon v. State of Bihar
(C) Olga Tellis v. Bombay Municipal Corporation
(D) Unni Krishnan v. State of Andhra Pradesh
- 25.** Article 30 of the Constitution confers on minorities the right to:
- (A) Conserve their language, script and culture
(B) Reservation in public employment
(C) Freedom of religion
(D) Establish and administer educational institutions of their choice
- 26.** Article 33 of the Constitution empowers Parliament to restrict or abrogate the Fundamental Rights of:
- (A) Foreigners
(B) Government servants in general
(C) Members of Parliament and State legislatures
(D) Members of the armed forces and forces charged with the maintenance of public order

27. The doctrine under which a pre-Constitution law inconsistent with a Fundamental Right becomes operative again once the inconsistency is removed is known as the doctrine of: **HARD**

- (A) Severability
- (B) Waiver
- (C) Colourable legislation
- (D) Eclipse

28. Articles 15(6) and 16(6), providing reservation for the economically weaker sections, were inserted by the:

- (A) 93rd Amendment Act, 2005
- (B) 103rd Amendment Act, 2019
- (C) 102nd Amendment Act, 2018
- (D) 104th Amendment Act, 2019

29. Consider the following statements about citizenship under the Constitution of India:

- I. Article 5 deals with citizenship at the commencement of the Constitution.
- II. Article 11 empowers Parliament to regulate the right of citizenship by law.
- III. The Constitution provides for dual citizenship - of the Union and of the State.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

30. Consider the following statements about the Citizenship Act, 1955:

- I. An Overseas Citizen of India cardholder has the right to vote in elections in India.
- II. It provides five modes of acquisition of Indian citizenship.
- III. It provides three modes of loss of Indian citizenship.

Which of the statements given above are correct?

- (A) I and III only
- (B) II and III only
- (C) I and II only
- (D) I, II and III

31. Consider the following statements about the term 'State' as defined in Article 12:

- I. It includes all local and other authorities within the territory of India.
- II. It is confined to the Union and State Governments only.
- III. It includes bodies which are under the control of the Government of India.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

32. Consider the following statements about Article 14 of the Constitution:

- I. It is available to all persons, including foreigners.
- II. The expression 'equality before the law' is of British origin, while 'equal protection of the laws' is of American origin.
- III. It permits reasonable classification but forbids class legislation.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

33. Consider the following statements about Article 19:

- I. The freedom to form co-operative societies was added to Article 19(1)(c) by the 97th Amendment.
- II. The freedoms under Article 19 are available only to citizens of India.
- III. The right to strike is a Fundamental Right under Article 19(1)(c).

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

34. Consider the following statements about the judicial expansion of Article 21:

- I. The right to a clean and pollution-free environment was recognised in *Subhash Kumar v. State of Bihar*.
- II. In *Gian Kaur v. State of Punjab* the Supreme Court held that the right to life includes the right to die.
- III. The right to a speedy trial was recognised in *Hussainara Khatoon v. State of Bihar*.

Which of the statements given above are correct? RAS PRE 2023

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

35. Consider the following statements about Article 22 of the Constitution:

- I. The protection under Article 22 is not available to an enemy alien.
- II. An arrested person must be produced before the nearest magistrate within 24 hours, excluding the time of the journey.
- III. The protection under clauses (1) and (2) of Article 22 is available to persons detained under a preventive detention law.

Which of the statements given above are correct?

- (A) I and III only
- (B) II and III only
- (C) I and II only
- (D) I, II and III

36. Consider the following statements about the writ jurisdiction of the courts in India:

- I. The writ of habeas corpus can be issued against private individuals also.
- II. The writ of mandamus cannot be issued against the President of India or the Governor of a State.
- III. The writ jurisdiction of a High Court under Article 226 is wider than that of the Supreme Court under Article 32.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

37. Consider the following statements:

- I. The freedoms guaranteed by Article 19 are available only to citizens of India.
- II. The protection of life and personal liberty under Article 21 is available to foreigners also.
- III. The prohibition of discrimination under Article 15 is available to foreigners also.

Which of the statements given above are correct? RAS PRE 2024

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

38. Consider the following statements about Article 32 of the Constitution:

- I. Article 32 empowers only the Supreme Court to issue writs.
- II. It can be invoked only for the enforcement of Fundamental Rights.
- III. The right guaranteed by Article 32 is itself a Fundamental Right.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

39. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Subject)

- A. Article 24 1. Equality before the law
- B. Article 28 2. Abolition of untouchability
- C. Article 14 3. Prohibition of employment of children in factories
- D. Article 17 4. Freedom from attending religious instruction in State-funded institutions

- (A) A-3, B-4, C-2, D-1
- (B) A-3, B-4, C-1, D-2
- (C) A-4, B-3, C-1, D-2
- (D) A-1, B-2, C-3, D-4

40. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Writ) List-II (Purpose)

- A. Quo warrant 1. Release of a person unlawfully detained
- B. Prohibition 2. Command to a public authority to perform its legal duty
- C. Habeas corpus 3. Preventing a lower court from exceeding its jurisdiction
- D. Mandamus 4. Enquiry into the legality of a claim to a public office

- (A) A-4, B-3, C-2, D-1
- (B) A-3, B-4, C-1, D-2
- (C) A-4, B-3, C-1, D-2
- (D) A-4, B-1, C-3, D-2

41. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Case) List-II (Principle laid down)

- A. Vishaka v. State of Rajasthan 1. Procedure established by law must be fair, just and reasonable
- B. Maneka Gandhi v. Union of India 2. Right to livelihood is part of the right to life
- C. K. S. Puttaswamy v. Union of India 3. Right to privacy is a Fundamental Right
- D. Olga Tellis v. Bombay Municipal Corporation 4. Guidelines against sexual harassment of women at the workplace

PRE 2023

- (A) A-4, B-1, C-3, D-2
- (B) A-1, B-4, C-3, D-2
- (C) A-4, B-3, C-1, D-2
- (D) A-4, B-1, C-2, D-3

42. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Amendment) List-II (Provision inserted)

- A. 93rd Amendment Act, 2005 1. Article 15(4)
 B. First Amendment Act, 1951 2. Article 21A
 C. 103rd Amendment Act, 2019 3. Article 15(5)
 D. 86th Amendment Act, 2002 4. Article 15(6) **HARD**

- (A) A-3, B-1, C-2, D-4
 (B) A-1, B-3, C-4, D-2
 (C) A-3, B-4, C-1, D-2
 (D) A-3, B-1, C-4, D-2

43. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Subject)

- A. Article 9 1. Citizenship at the commencement of the Constitution
 B. Article 8 2. Rights of citizenship of certain persons who migrated to India from Pakistan
 C. Article 6 3. Rights of citizenship of certain persons of Indian origin residing outside India
 D. Article 5 4. Persons voluntarily acquiring citizenship of a foreign State not to be citizens **HARD**

- (A) A-4, B-3, C-1, D-2
 (B) A-4, B-2, C-3, D-1
 (C) A-4, B-3, C-2, D-1
 (D) A-3, B-4, C-2, D-1

44. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Category of Fundamental Rights) List-II (Articles)

- A. Cultural and Educational Rights 1. Articles 14-18
 B. Right to Equality 2. Articles 19-22
 C. Right to Freedom 3. Articles 23-24
 D. Right against Exploitation 4. Articles 29-30

- (A) A-4, B-1, C-3, D-2
 (B) A-1, B-4, C-2, D-3
 (C) A-4, B-2, C-1, D-3
 (D) A-4, B-1, C-2, D-3

45. Which one of the following Fundamental Rights is NOT available to foreigners in India? **RAS PRE 2016, 2024**

- (A) Right to equality before the law under Article 14
 (B) Protection of life and personal liberty under Article 21
 (C) Freedom of speech and expression under Article 19
 (D) Freedom of conscience and religion under Article 25

46. Which one of the following is NOT a mode of acquiring Indian citizenship under the Citizenship Act, 1955?

- (A) Marriage (B) Birth
 (C) Descent (D) Naturalisation

47. Which one of the following pairs is NOT correctly matched?

- (A) Article 15 - Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth
 (B) Article 18 - Abolition of untouchability
 (C) Article 16 - Equality of opportunity in matters of public employment
 (D) Article 20 - Protection in respect of conviction for offences

48. Which one of the following is NOT a writ that the Supreme Court may issue under Article 32?

- (A) Certiorari
- (B) Prohibition
- (C) Quo warranto
- (D) Injunction

49. Which one of the following statements about Article 21A is NOT correct?

- (A) It was inserted by the 86th Amendment Act, 2002
- (B) It covers children of the age of six to fourteen years
- (C) It makes elementary education a Fundamental Right
- (D) It is enforceable only against the Union Government

50. Arrange the following judgments of the Supreme Court in the correct chronological order:

I. Maneka Gandhi v. Union of India

II. A. K. Gopalan v. State of Madras

III. K. S. Puttaswamy v. Union of India

IV. Olga Tellis v. Bombay Municipal Corporation

- (A) I, II, IV, III
- (B) II, I, III, IV
- (C) II, I, IV, III
- (D) II, IV, I, III

IP03

Directive Principles and Fundamental Duties

35 questions · 30 fact-sheet points

Must-know facts

1. Directive Principles of State Policy - Part IV, Articles 36-51; borrowed from the Constitution of Ireland (which had itself taken the idea from Spain).
2. Art. 36 defines 'State' for Part IV in the same terms as Art. 12. Art. 37 - the Directive Principles are NOT enforceable by any court, but are 'fundamental in the governance of the country' and it is the duty of the State to apply them in making laws.
3. Dr. B. R. Ambedkar called the Directive Principles a 'novel feature'; K. T. Shah called them 'pious superfluities'; Sir Ivor Jennings called them 'pious aspirations'; Granville Austin saw Part III and Part IV together as the 'conscience of the Constitution'.
4. Art. 38 - State to promote the welfare of the people by securing a social order in which justice (social, economic and political) informs all institutions. Art. 38(2), added by the 44th Amendment Act, 1978, directs the State to minimise inequalities in income, status, facilities and opportunities.
5. Art. 39 - six directives: (a) adequate means of livelihood; (b) distribution of the material resources of the community for the common good; (c) prevention of concentration of wealth; (d) equal pay for equal work for men and women; (e) health and strength of workers and children not abused; (f) children given opportunities to develop in a healthy manner (clause (f) recast by the 42nd Amendment).
6. Art. 39A - equal justice and free legal aid; inserted by the 42nd Amendment Act, 1976; given statutory form by the Legal Services Authorities Act, 1987 (NALSA, State and District Legal Services Authorities, Lok Adalats).
7. Art. 40 - organisation of village panchayats as units of self-government. Art. 41 - right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement.
8. Art. 42 - just and humane conditions of work and maternity relief. Art. 43 - living wage, decent standard of life and promotion of cottage industries. Art. 43A - participation of workers in the management of industries (42nd Amendment, 1976). Art. 43B - promotion of co-operative societies (97th Amendment, 2011).
9. Art. 44 - uniform civil code for the citizens throughout the territory of India.
10. Art. 45 - as substituted by the 86th Amendment Act, 2002, directs the State to provide early childhood care and education to all children until they complete the age of six years. (Originally it directed free and compulsory education for all children up to 14 years within 10 years.)
11. Art. 46 - promotion of the educational and economic interests of the Scheduled Castes, Scheduled Tribes and other weaker sections, and their protection from social injustice and exploitation.
12. Art. 47 - raise the level of nutrition and the standard of living, improve public health, and bring about prohibition of intoxicating drinks and of drugs injurious to health.
13. Art. 48 - organisation of agriculture and animal husbandry on modern and scientific lines; prohibition of the slaughter of cows, calves and other milch and draught cattle. Art. 48A - protection and improvement of the environment and safeguarding of forests and wildlife (42nd Amendment, 1976).
14. Art. 49 - protection of monuments and places and objects of artistic or historic interest declared to be of national importance. Art. 50 - separation of the judiciary from the executive in the public services of the State.
15. Art. 51 - promotion of international peace and security: (a) promote international peace and security; (b) maintain just and honourable relations between nations; (c) foster respect for international law and treaty obligations; (d) encourage settlement of international disputes by arbitration.

16. Classification (Laxmikanth): Socialistic - Arts. 38, 39, 39A, 41, 42, 43, 43A, 47; Gandhian - Arts. 40, 43, 43B, 46, 47, 48; Liberal-intellectual - Arts. 44, 45, 48, 48A, 49, 50, 51.
17. Directives outside Part IV: Art. 335 (claims of SCs and STs to services), Art. 350A (instruction in the mother tongue at the primary stage), Art. 351 (promotion and development of Hindi).
18. New Directive Principles added by amendment: 42nd Amendment 1976 - Arts. 39A, 43A and 48A; 44th Amendment 1978 - Art. 38(2); 86th Amendment 2002 - substituted Art. 45; 97th Amendment 2011 - Art. 43B.
19. Champakam Dorairajan (1951): Fundamental Rights prevail; the Directive Principles must run subsidiary to them - this led directly to the 1st Amendment Act, 1951.
20. Golaknath (1967): Parliament cannot abridge or take away any Fundamental Right. Reversed by the 24th Amendment Act, 1971.
21. Article 31C was inserted by the 25th Amendment Act, 1971: laws giving effect to Art. 39(b) and 39(c) cannot be challenged as violating Arts. 14, 19 (and then 31).
22. Kesavananda Bharati (1973): upheld the first part of Art. 31C but struck down the second part (which barred judicial review of such laws); propounded the basic structure doctrine.
23. The 42nd Amendment, 1976 extended Art. 31C's protection to laws implementing ANY Directive Principle; Minerva Mills (1980) struck down that extension and held that harmony and balance between Fundamental Rights and Directive Principles is an essential feature of the basic structure.
24. Fundamental Duties - Part IVA, single Article 51A, added by the 42nd Amendment Act, 1976 on the recommendation of the Sardar Swaran Singh Committee (1976), set up during the internal emergency; the idea was borrowed from the Constitution of the erstwhile USSR.
25. The Swaran Singh Committee recommended EIGHT duties; the 42nd Amendment incorporated TEN. Its recommendations of a penalty for non-compliance and of a duty to pay taxes were NOT accepted.
26. The 86th Amendment Act, 2002 added the eleventh duty - Art. 51A(k): a parent or guardian shall provide opportunities for education to his child or ward between the ages of six and fourteen years.
27. The eleven duties, Art. 51A(a)-(k): (a) abide by the Constitution and respect its ideals, institutions, the National Flag and the National Anthem; (b) cherish the noble ideals of the freedom struggle; (c) uphold and protect the sovereignty, unity and integrity of India; (d) defend the country and render national service; (e) promote harmony and common brotherhood and renounce practices derogatory to the dignity of women; (f) value and preserve the rich heritage of our composite culture; (g) protect and improve the natural environment and have compassion for living creatures; (h) develop the scientific temper, humanism and the spirit of inquiry and reform; (i) safeguard public property and abjure violence; (j) strive towards excellence in all spheres; (k) provide education to one's child or ward aged 6-14.
28. Fundamental Duties are non-justiciable and apply only to CITIZENS, not to foreigners; unlike some Directive Principles, no writ lies for their enforcement.
29. Justice J. S. Verma Committee (1999) was set up to work out a strategy for the operationalisation of the Fundamental Duties; it listed existing laws such as the Prevention of Insults to National Honour Act 1971, the Protection of Civil Rights Act 1955, the Wildlife (Protection) Act 1972 and the Representation of the People Act 1951.
30. In Union of India v. Rajendra N. Shah (July 2021) the Supreme Court struck down Part IXB of the Constitution insofar as it applied to co-operative societies within a State, but Article 43B remains intact.

1. The Directive Principles of State Policy are contained in which Part of the Constitution of India?

- | | |
|--------------|-------------|
| (A) Part III | (B) Part IV |
| (C) Part IVA | (D) Part V |

2. Article 36 defines the term 'State' for the purposes of the Directive Principles in the same terms as which other Article of the Constitution?
- (A) Article 12 (B) Article 13
(C) Article 19 (D) Article 32
3. Article 39A, which directs the State to secure equal justice and to provide free legal aid, was inserted into the Constitution by which Amendment Act? **RAS PRE 2018, 2024**
- (A) The 24th Amendment Act, 1971 (B) The 44th Amendment Act, 1978
(C) The 86th Amendment Act, 2002 (D) The 42nd Amendment Act, 1976
4. Which Article of the Constitution directs the State to organise village panchayats as units of self-government?
- (A) Article 38 (B) Article 39
(C) Article 40 (D) Article 43
5. The directive to secure for the citizens a uniform civil code throughout the territory of India is contained in:
- (A) Article 44 (B) Article 45
(C) Article 46 (D) Article 47
6. Article 48A, directing the State to protect and improve the environment and to safeguard the forests and wildlife of the country, was added by:
- (A) The 40th Amendment Act, 1976 (B) The 42nd Amendment Act, 1976
(C) The 44th Amendment Act, 1978 (D) The 52nd Amendment Act, 1985
7. The separation of the judiciary from the executive in the public services of the State is directed by which Article?
- (A) Article 47 (B) Article 48
(C) Article 49 (D) Article 50
8. Which one of the following Articles directs the State to promote international peace and security?
- (A) Article 51 (B) Article 51A
(C) Article 49 (D) Article 48A
9. The directive to raise the level of nutrition and the standard of living, to improve public health and to bring about prohibition of intoxicating drinks and drugs injurious to health is contained in:
- (A) Article 45 (B) Article 46
(C) Article 47 (D) Article 48
10. Article 43B, which directs the State to promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies, was inserted by:
- (A) The 73rd Amendment Act, 1992 (B) The 97th Amendment Act, 2011
(C) The 101st Amendment Act, 2016 (D) The 86th Amendment Act, 2002
11. As substituted by the 86th Amendment Act, 2002, Article 45 now directs the State to provide:
- (A) early childhood care and education to all children until they complete the age of six years
(B) free and compulsory education to all children up to the age of fourteen years
(C) free legal aid to the weaker sections of society
(D) a living wage to all industrial workers
12. Which Article of the Constitution declares that the Directive Principles shall not be enforceable by any court but are nevertheless fundamental in the governance of the country?
- (A) Article 36 (B) Article 38
(C) Article 51 (D) Article 37

- 13.** The Fundamental Duties were added to the Constitution of India by which Amendment Act? RAS PRE 2018, 2021
- (A) The 40th Amendment Act, 1976 (B) The 42nd Amendment Act, 1976
(C) The 44th Amendment Act, 1978 (D) The 43rd Amendment Act, 1977
- 14.** The Fundamental Duties were incorporated in the Constitution on the recommendation of: RAS PRE 2016, 2021
- (A) The Sardar Swaran Singh Committee (B) The Santhanam Committee
(C) The Justice J. S. Verma Committee (D) The M. N. Venkatachaliah Commission
- 15.** How many Fundamental Duties did the Sardar Swaran Singh Committee recommend for inclusion in the Constitution?
- (A) Ten (B) Eleven
(C) Eight (D) Six
- 16.** The eleventh Fundamental Duty, added by the 86th Amendment Act, 2002, casts a duty on a parent or guardian to provide opportunities for education to his child or ward between the ages of:
- (A) five and fifteen years (B) six and sixteen years
(C) five and fourteen years (D) six and fourteen years
- 17.** 'To develop the scientific temper, humanism and the spirit of inquiry and reform' is a Fundamental Duty listed under: HARD
- (A) Article 51A(h) (B) Article 51A(f)
(C) Article 51A(i) (D) Article 51A(j)
- 18.** The committee set up in 1999 to work out a strategy for the operationalisation of the Fundamental Duties was headed by: HARD
- (A) Sardar Swaran Singh (B) Justice J. S. Verma
(C) Justice M. N. Venkatachaliah (D) K. Santhanam
- 19.** The promotion of the educational and economic interests of the Scheduled Castes, the Scheduled Tribes and other weaker sections is directed by:
- (A) Article 43 (B) Article 45
(C) Article 46 (D) Article 49
- 20.** Consider the following statements about the Directive Principles of State Policy:
- I. They are enforceable by the courts.
II. They are fundamental in the governance of the country.
III. It is the duty of the State to apply these principles in making laws.
- Which of the statements given above are correct?
- (A) II and III only
(B) I and II only
(C) I and III only
(D) I, II and III
- 21.** Consider the following statements about the Fundamental Duties:
- I. They are contained in Part IVA of the Constitution.
II. They are enforceable in a court of law through a writ petition.
III. They apply only to the citizens of India.
- Which of the statements given above are correct?
- (A) I and II only
(B) II and III only
(C) I and III only
(D) I, II and III

22. Consider the following statements about the Sardar Swaran Singh Committee:

- I. It was constituted in 1976, during the operation of the internal emergency.
- II. It recommended the incorporation of eleven Fundamental Duties.
- III. It recommended that a duty to pay taxes should be included among the Fundamental Duties.

Which of the statements given above are correct? RAS PRE 2018, 2021 HARD

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

23. Consider the following statements about the Minerva Mills case (1980):

- I. It struck down the provision of the 42nd Amendment that had given all Directive Principles primacy over the Fundamental Rights conferred by Articles 14 and 19.
- II. It held that harmony and balance between Fundamental Rights and Directive Principles is an essential feature of the basic structure of the Constitution.
- III. It restored the scope of Article 31C to laws giving effect to Article 39(b) and 39(c) only.

Which of the statements given above are correct? HARD

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

24. Consider the following statements about Article 31C of the Constitution:

- I. It was inserted by the 25th Amendment Act, 1971.
- II. As it stands today, it protects laws giving effect to Article 39(b) and 39(c) from challenge under Articles 14 and 19.
- III. Its second provision, which barred courts from questioning such laws, was struck down in the Kesavananda Bharati case.

Which of the statements given above are correct? HARD

- (A) I, II and III
- (B) I and II only
- (C) II and III only
- (D) I and III only

25. Consider the following Directive Principles:

- I. Article 39A - equal justice and free legal aid
- II. Article 43A - participation of workers in the management of industries
- III. Article 43B - promotion of co-operative societies

Which of the above were added by the 42nd Amendment Act, 1976?

- (A) I and III only
- (B) I and II only
- (C) II and III only
- (D) I, II and III

26. Consider the following statements about Article 39 of the Constitution:

- I. It directs the State to secure a uniform civil code for the citizens.
- II. It directs the State to secure equal pay for equal work for both men and women.
- III. It directs the State to ensure that the ownership and control of the material resources of the community are so distributed as best to subserve the common good.

Which of the statements given above are correct?

- (A) I and III only
- (B) I and II only
- (C) II and III only
- (D) I, II and III

27. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Directive Principle)

- A. Article 39A 1. Organisation of village panchayats
- B. Article 40 2. Uniform civil code
- C. Article 44 3. Protection and improvement of the environment
- D. Article 48A 4. Equal justice and free legal aid

RAS PRE 2021, 2023

- (A) A-4, B-1, C-2, D-3
- (B) A-4, B-2, C-1, D-3
- (C) A-3, B-1, C-2, D-4
- (D) A-4, B-1, C-3, D-2

28. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Subject)

- A. Article 41 1. Separation of the judiciary from the executive
- B. Article 43 2. Right to work, to education and to public assistance
- C. Article 46 3. Living wage and promotion of cottage industries
- D. Article 50 4. Promotion of the interests of the Scheduled Castes and Scheduled Tribes

- (A) A-2, B-4, C-3, D-1
- (B) A-3, B-2, C-4, D-1
- (C) A-2, B-3, C-1, D-4
- (D) A-2, B-3, C-4, D-1

29. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Amendment Act) List-II (Change made in Part IV)

- A. 42nd Amendment, 1976 1. Inserted Article 38(2) on minimising inequalities in income
- B. 44th Amendment, 1978 2. Inserted Article 43B on co-operative societies
- C. 86th Amendment, 2002 3. Inserted Article 48A on protection of the environment
- D. 97th Amendment, 2011 4. Substituted Article 45 with early childhood care and education

HARD

- (A) A-3, B-1, C-2, D-4
- (B) A-3, B-1, C-4, D-2
- (C) A-1, B-3, C-4, D-2
- (D) A-3, B-4, C-1, D-2

30. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Case) List-II (Principle laid down)

- A. Champakam Dorairajan (1951) 1. Parliament cannot abridge or take away a Fundamental Right
B. Golaknath (1967) 2. Harmony and balance between Fundamental Rights and Directive Principles is part of the basic structure
C. Kesavananda Bharati (1973) 3. Directive Principles must run subsidiary to the Fundamental Rights
D. Minerva Mills (1980) 4. Basic structure doctrine; the second part of Article 31C held unconstitutional

RAS PRE 2023

- (A) A-3, B-1, C-2, D-4
(B) A-1, B-3, C-4, D-2
(C) A-3, B-1, C-4, D-2
(D) A-3, B-4, C-1, D-2

31. Which one of the following pairs of an Article and its Directive Principle is NOT correctly matched?

- (A) Article 42 - Just and humane conditions of work and maternity relief
(B) Article 43A - Uniform civil code
(C) Article 47 - Prohibition of intoxicating drinks and drugs injurious to health
(D) Article 49 - Protection of monuments and places of national importance

32. Which one of the following is NOT a Fundamental Duty under Article 51A of the Constitution?

- (A) To pay taxes to the State honestly and in time
(B) To safeguard public property and to abjure violence
(C) To develop the scientific temper, humanism and the spirit of inquiry and reform
(D) To value and preserve the rich heritage of our composite culture

33. Which one of the following Directive Principles was NOT inserted by the 42nd Amendment Act, 1976?

- (A) Article 39A
(B) Article 43A
(C) Article 38(2)
(D) Article 48A

34. Which one of the following statements about the relationship between the Directive Principles and the Fundamental Rights is NOT correct? **HARD**

- (A) In Champakam Dorairajan (1951) the Supreme Court held that the Directive Principles override the Fundamental Rights
(B) The 1st Amendment Act, 1951 was passed in the wake of the Champakam Dorairajan judgment
(C) Article 31C was inserted by the 25th Amendment Act, 1971
(D) After Minerva Mills (1980) Article 31C protects only laws giving effect to Article 39(b) and 39(c)

35. Arrange the following judgments of the Supreme Court in the correct chronological order:

- I. Champakam Dorairajan case
II. Kesavananda Bharati case
III. Golaknath case
IV. Minerva Mills case

- (A) I, III, II, IV
(B) I, II, III, IV
(C) III, I, II, IV
(D) I, III, IV, II

IP04

Union Executive: President, Vice-President, PM and Council of Ministers

45 questions · 30 fact-sheet points

Must-know facts

1. Article 52 — there shall be a President of India; Article 53 — the executive power of the Union is vested in the President and exercised by him directly or through officers subordinate to him.
2. Article 54 — electoral college for the President: elected members of both Houses of Parliament + elected members of the Legislative Assemblies of the States + elected members of the Assemblies of Delhi and Puducherry (added by the 70th Amendment Act, 1992). Nominated MPs/MLAs and all MLCs are excluded.
3. Article 55 — election by proportional representation through a single transferable vote by secret ballot; uniformity of representation among States is to be secured.
4. Value of an MLA's vote = (population of the State as per the 1971 census / number of elected MLAs) / 1000. Value of an MP's vote = (total value of the votes of all MLAs) / (total number of elected MPs).
5. Nomination of a presidential candidate needs 50 proposers and 50 seconders; security deposit Rs 15,000. For the Vice-President it is 20 proposers, 20 seconders and Rs 15,000.
6. Article 56 — term of five years; resignation is addressed to the Vice-President; the President continues in office until his successor enters upon office. Article 57 — eligible for re-election any number of times.
7. Article 58 — qualifications: citizen of India, completed 35 years of age, qualified for election as a member of the Lok Sabha, and not holding any office of profit.
8. Article 60 — the oath is administered by the Chief Justice of India, and in his absence by the senior-most available judge of the Supreme Court.
9. Article 61 — impeachment: the sole ground is 'violation of the Constitution'; the charge may be preferred by either House; the resolution must be signed by not less than one-fourth of the total members of that House; 14 days' notice; passed by not less than two-thirds of the total membership of the House.
10. In impeachment, nominated members of Parliament participate but elected members of State Legislative Assemblies do not — the reverse of the presidential election. No President of India has ever been impeached.
11. Article 62 — a vacancy caused by death, resignation or removal must be filled by an election held within six months; the new incumbent gets a fresh full term of five years.
12. Article 65 — the Vice-President acts as President during a vacancy. For a simultaneous vacancy in both offices, the Presidential (Discharge of Functions) Act, 1969 puts the Chief Justice of India first — Justice M. Hidayatullah so acted in 1969.
13. Article 71 — all doubts and disputes arising out of the election of the President or the Vice-President are inquired into and decided by the Supreme Court, whose decision is final; the election is not invalidated by a vacancy in the electoral college.
14. Three vetoes are available to the President — absolute, suspensive and pocket. There is NO qualified veto in India (that exists in the USA). Over a State Bill reserved under Article 201 the President enjoys an absolute veto.
15. Pocket veto: Article 111 prescribes no time limit for the President to act on a Bill. Famously used by President Giani Zail Singh on the Indian Post Office (Amendment) Bill, 1986.
16. Article 72 — pardoning power: pardon, commutation, remission, respite and reprieve. Only the President can pardon a death sentence or a sentence by a court martial; the Governor under Article 161 can do neither.

17. Article 123 — ordinance-making power; the ordinance is co-extensive with Parliament's legislative power, must be laid before both Houses and ceases to operate six weeks after the reassembly of Parliament. It cannot amend the Constitution.
18. D. C. Wadhwa v. State of Bihar (1987) — repeated re-promulgation of ordinances is a fraud on the Constitution; reaffirmed in Krishna Kumar Singh v. State of Bihar (2017).
19. Article 63 — there shall be a Vice-President of India; Article 64 — the Vice-President is ex-officio Chairman of the Council of States and draws the salary payable to the Chairman.
20. Article 66 — the Vice-President is elected by an electoral college of the members of BOTH Houses of Parliament, including the nominated members, by proportional representation with a single transferable vote. No State legislature takes part.
21. Article 66(3) — qualifications for Vice-President: citizen of India, 35 years of age, and qualified for election as a member of the Rajya Sabha (not the Lok Sabha).
22. Article 67(b) — removal of the Vice-President: a resolution passed by a majority of all the then members of the Rajya Sabha (effective majority) and agreed to by the Lok Sabha, after 14 days' notice. The Constitution states no ground. Resignation is addressed to the President.
23. Article 74 — a Council of Ministers with the Prime Minister at the head to aid and advise the President; the advice was made binding by the 42nd Amendment Act, 1976, and the 44th Amendment Act, 1978 allowed the President to require reconsideration once. The advice is not enquirable in any court.
24. Article 75 — the PM is appointed by the President and other Ministers on the PM's advice; Ministers hold office during the pleasure of the President; the Council of Ministers is collectively responsible to the House of the People alone.
25. Article 75(5) — a Minister who is not a member of either House for six consecutive months ceases to be a Minister.
26. 91st Amendment Act, 2003 — Article 75(1A): total Ministers including the PM cannot exceed 15% of the total strength of the Lok Sabha; Article 164(1A): 15% of the Legislative Assembly for a State, subject to a minimum of 12.
27. Article 77 — conduct of the business of the Government of India; Article 78 — duties of the Prime Minister to communicate the decisions of the Council of Ministers to the President.
28. The Cabinet, Cabinet Committees and the 'Kitchen Cabinet' are extra-constitutional; the word 'Cabinet' entered the Constitution only through Article 352 as amended by the 44th Amendment (written recommendation of the Cabinet required for a National Emergency).
29. Article 76 — the Attorney General of India is appointed by the President, must be qualified to be a judge of the Supreme Court, holds office during the President's pleasure, has a right of audience in all courts, and under Article 88 may speak in either House without a right to vote. He is not barred from private practice.
30. The Solicitor General and Additional Solicitors General are NOT constitutional posts — the Constitution mentions only the Attorney General (Article 165 is the Advocate General of a State).

1. Under which Article of the Constitution is the executive power of the Union vested in the President?

- | | |
|----------------|----------------|
| (A) Article 51 | (B) Article 52 |
| (C) Article 53 | (D) Article 54 |

2. The oath of office to the President of India is administered by

- | | |
|--|----------------------------------|
| (A) the Vice-President | (B) the Speaker of the Lok Sabha |
| (C) the senior-most judge of the Supreme Court | (D) the Chief Justice of India |

3. Consider the following statements regarding the electoral college for the election of the President of India:

- I. It consists of the elected members of both Houses of Parliament and the elected members of the Legislative Assemblies of the States.
- II. The elected members of the Legislative Assemblies of Delhi and Puducherry were included in it by the 70th Constitutional Amendment Act.
- III. Members of the State Legislative Councils also take part in the election.

Which of the statements given above are correct? RAS PRE 2016, 2024

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

4. The value of the vote of a member of a State Legislative Assembly in the presidential election is determined with reference to the population of the State as per which census? RAS PRE 2016

- (A) Census of 1951
- (B) Census of 1961
- (C) Census of 1971
- (D) Census of 2011

5. The President of India is elected in accordance with the system of

- (A) direct election by secret ballot of all adult citizens
- (B) proportional representation by means of a single transferable vote
- (C) first-past-the-post voting in a joint sitting of Parliament
- (D) a simple majority of the members of the electoral college

6. A person is qualified for election as President of India only if he has completed the age of

- (A) 21 years
- (B) 25 years
- (C) 30 years
- (D) 35 years

7. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Subject)

- A. Article 56 1. Pardoning power of the President
- B. Article 61 2. Term of office of the President
- C. Article 72 3. Ordinance-making power of the President
- D. Article 123 4. Procedure for impeachment of the President

- (A) A-2, B-4, C-1, D-3
- (B) A-2, B-1, C-4, D-3
- (C) A-4, B-2, C-1, D-3
- (D) A-3, B-4, C-1, D-2

8. The only ground on which the President of India can be removed by impeachment is RAS PRE 2024

- (A) proved misbehaviour
- (B) incapacity to discharge the functions of the office
- (C) violation of the Constitution
- (D) conviction for a criminal offence

9. Consider the following statements about the impeachment of the President of India:

- I. The charge may be preferred by either House of Parliament.
- II. The resolution containing the charge must be signed by not less than one-fourth of the total number of members of that House.
- III. A notice of 14 days must be given to the President.

Which of the statements given above are correct? RAS PRE 2016, 2024 HARD

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

10. A resolution containing a charge for the impeachment of the President must be passed by the House in which it is introduced by a majority of HARD

- (A) not less than two-thirds of the members present and voting
- (B) not less than two-thirds of the total membership of that House
- (C) an absolute majority of that House
- (D) three-fourths of the members present and voting

11. Which one of the following statements about the impeachment of the President is NOT correct?

- (A) Nominated members of Parliament can participate in the impeachment process
- (B) Elected members of the State Legislative Assemblies can participate in the impeachment process
- (C) The President has the right to appear and be represented at the investigation of the charge
- (D) The charge, when investigated by the other House, must also be passed by a two-thirds majority of its total membership

12. If the office of the President falls vacant on account of death, resignation or removal, a fresh election must be held within

- (A) one month
- (B) three months
- (C) four months
- (D) six months

13. The President of India addresses his resignation to

- (A) the Prime Minister
- (B) the Chief Justice of India
- (C) the Vice-President
- (D) the Speaker of the Lok Sabha

14. All doubts and disputes arising out of or in connection with the election of the President are inquired into and decided by

- (A) the Election Commission of India
- (B) Parliament by a resolution
- (C) the Supreme Court
- (D) a tribunal appointed by the Vice-President

15. Consider the following statements regarding the veto powers of the President of India:

- I. The President enjoys a pocket veto because the Constitution prescribes no time limit within which he must act on a Bill.
- II. The President cannot return a Money Bill for reconsideration.
- III. The President enjoys a qualified veto over ordinary Bills.

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

- 16.** The pocket veto was notably exercised by President Giani Zail Singh in respect of
- (A) the Indian Post Office (Amendment) Bill, 1986
 - (B) the Dowry Prohibition Bill, 1961
 - (C) the Prevention of Terrorism Bill, 2002
 - (D) the Banking Service Commission (Repeal) Bill, 1978
- 17.** In respect of a State Bill reserved for his consideration by the Governor, the President enjoys HARD
- (A) a suspensive veto
 - (B) a qualified veto
 - (C) no veto at all
 - (D) an absolute veto
- 18.** Which one of the following is NOT a form of veto power available to the President of India?
- (A) Absolute veto
 - (B) Suspensive veto
 - (C) Pocket veto
 - (D) Qualified veto
- 19.** Under Article 72, the pardoning power of the President extends to a sentence of death and also to
- (A) a sentence awarded by a court martial
 - (B) a sentence awarded under a State law only
 - (C) a sentence of imprisonment for life only
 - (D) a sentence awarded by a High Court only
- 20.** Match List-I with List-II and select the correct answer using the codes given below:
- List-I (Term) List-II (Meaning)
- A. Commutation 1. Substituting one form of punishment with a lighter form
- B. Remission 2. Reducing the period of a sentence without changing its character
- C. Respite 3. Awarding a lesser sentence on account of some special fact, such as the physical disability of the convict
- D. Reprieve 4. A temporary stay of the execution of a sentence
- (A) A-1, B-2, C-3, D-4
 - (B) A-2, B-1, C-4, D-3
 - (C) A-1, B-2, C-4, D-3
 - (D) A-3, B-2, C-1, D-4
- 21.** Consider the following statements:
- I. The President can pardon a sentence awarded by a court martial, but the Governor cannot.
- II. The President can pardon a death sentence, but the Governor cannot.
- III. The pardoning power of the President extends only to offences against Union laws.
- Which of the statements given above are correct? HARD
- (A) I and II only
 - (B) I and III only
 - (C) II and III only
 - (D) I, II and III
- 22.** The ordinance-making power of the President is provided for under
- (A) Article 121
 - (B) Article 123
 - (C) Article 143
 - (D) Article 213
- 23.** An ordinance promulgated by the President ceases to operate on the expiry of
- (A) six weeks from the reassembly of Parliament
 - (B) six months from the date of promulgation
 - (C) six weeks from the date of promulgation
 - (D) three months from the reassembly of Parliament

24. Consider the following statements about the ordinance-making power of the President:

- I. It is co-extensive with the legislative power of Parliament.
- II. An ordinance can be promulgated only when both Houses of Parliament are not in session.
- III. An ordinance can amend or repeal any provision of the Constitution.

Which of the statements given above are correct? **HARD**

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

25. In which case did the Supreme Court hold that the repeated re-promulgation of ordinances amounts to a fraud on the Constitution? **HARD**

- (A) Shamsher Singh v. State of Punjab
- (B) R. C. Cooper v. Union of India
- (C) D. C. Wadhwa v. State of Bihar
- (D) A. K. Roy v. Union of India

26. The Vice-President of India is the ex-officio Chairman of the Council of States under

- (A) Article 63
- (B) Article 64
- (C) Article 66
- (D) Article 89

27. Consider the following statements about the election of the Vice-President of India:

- I. The electoral college consists of the members of both Houses of Parliament, including the nominated members.
- II. Members of the State Legislative Assemblies take part in the election.
- III. The election is held in accordance with the system of proportional representation by means of a single transferable vote.

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

28. To be qualified for election as Vice-President, a person must be qualified for election as a member of

- (A) the Lok Sabha
- (B) the Rajya Sabha
- (C) either House of Parliament
- (D) a State Legislative Assembly

29. A resolution for the removal of the Vice-President of India can be moved only in

- (A) the Lok Sabha
- (B) either House of Parliament
- (C) a joint sitting of both Houses
- (D) the Rajya Sabha

30. Which one of the following statements about the Vice-President of India is NOT correct?

- (A) The Constitution does not lay down any ground for his removal
- (B) He addresses his resignation to the President
- (C) While acting as President he continues to perform the duties of the Chairman of the Rajya Sabha
- (D) Nominated members of Parliament participate in his election

31. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Provision)

A. Article 63 1. Vice-President to be ex-officio Chairman of the Council of States

B. Article 64 2. There shall be a Vice-President of India

C. Article 65 3. Election of the Vice-President

D. Article 66 4. Vice-President to act as President or discharge his functions **HARD**

(A) A-2, B-1, C-3, D-4

(B) A-1, B-2, C-4, D-3

(C) A-2, B-1, C-4, D-3

(D) A-2, B-4, C-1, D-3

32. In the event of a vacancy in the offices of both the President and the Vice-President, who discharges the functions of the President?

(A) The Speaker of the Lok Sabha

(B) The Prime Minister

(C) The Chief Justice of India

(D) The senior-most Governor of a State

33. Consider the following statements:

I. When the Vice-President acts as President he is not entitled to the salary of the Chairman of the Rajya Sabha.

II. The Vice-President can act as President for a maximum period of six months.

III. Justice M. Hidayatullah discharged the functions of the President of India in 1969.

Which of the statements given above are correct?

(A) I and II only

(B) I and III only

(C) II and III only

(D) I, II and III

34. Article 74 of the Constitution provides for

(A) the appointment of the Prime Minister

(B) the duties of the Prime Minister

(C) the Attorney General of India

(D) a Council of Ministers to aid and advise the President

35. The advice tendered by the Council of Ministers was made binding on the President by which Constitutional Amendment?

(A) 24th Amendment Act

(B) 42nd Amendment Act

(C) 44th Amendment Act

(D) 52nd Amendment Act

36. Consider the following statements regarding the Council of Ministers:

I. The Prime Minister is appointed by the President and the other Ministers are appointed by the President on the advice of the Prime Minister.

II. The Council of Ministers is collectively responsible to both Houses of Parliament.

III. A Minister who is not a member of either House of Parliament for six consecutive months ceases to be a Minister.

Which of the statements given above are correct?

(A) I and II only

(B) I and III only

(C) II and III only

(D) I, II and III

37. The 91st Constitutional Amendment Act, 2003 provides that the total number of Ministers, including the Prime Minister, shall not exceed

- (A) 10 per cent of the total strength of the Lok Sabha
- (B) 12 per cent of the total strength of the Lok Sabha
- (C) 15 per cent of the total strength of the Lok Sabha
- (D) 20 per cent of the total strength of the Lok Sabha

38. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Provision) List-II (Article)

- A. Ordinance-making power of the President 1. Article 111
- B. Assent to Bills 2. Article 123
- C. Joint sitting of both Houses 3. Article 108
- D. Summoning and prorogation of Parliament 4. Article 85

- (A) A-2, B-1, C-4, D-3
- (B) A-2, B-1, C-3, D-4
- (C) A-1, B-2, C-3, D-4
- (D) A-2, B-3, C-1, D-4

39. Which one of the following statements about the Cabinet is NOT correct?

- (A) The original text of Article 74 did not use the word 'Cabinet'
- (B) The word 'Cabinet' was inserted in Article 352 by the 44th Amendment Act
- (C) Cabinet Committees are constitutional bodies
- (D) The Kitchen Cabinet is an extra-constitutional body

40. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Subject)

- A. Article 74 1. Duties of the Prime Minister
- B. Article 75 2. Conduct of business of the Government of India
- C. Article 77 3. Council of Ministers to aid and advise the President
- D. Article 78 4. Other provisions as to Ministers HARD

- (A) A-3, B-4, C-1, D-2
- (B) A-4, B-3, C-2, D-1
- (C) A-3, B-4, C-2, D-1
- (D) A-3, B-2, C-4, D-1

41. The Attorney General of India is appointed under which Article, and must possess the qualifications of

- (A) Article 88; a judge of the Supreme Court
- (B) Article 165; a judge of the Supreme Court
- (C) Article 76; a judge of a High Court
- (D) Article 76; a judge of the Supreme Court

42. Consider the following statements about the Attorney General of India:

- I. He has the right to speak and take part in the proceedings of both Houses of Parliament but has no right to vote.
- II. He holds office during the pleasure of the President.
- III. He is a whole-time counsel of the Government and is barred from taking up private practice.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

43. Which one of the following pairs of Article and subject is NOT correctly matched?

- (A) Article 76 — Attorney General of India
- (B) Article 79 — Solicitor General of India
- (C) Article 77 — Conduct of business of the Government of India
- (D) Article 78 — Duties of the Prime Minister

44. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Office-holder) List-II (Distinction)

- A. Dr. Rajendra Prasad 1. First President of India to die in office
- B. Dr. Zakir Husain 2. Only person elected President of India twice
- C. V. V. Giri 3. Elected President on the basis of second-preference votes
- D. Dr. S. Radhakrishnan 4. First Vice-President of India

- (A) A-2, B-1, C-4, D-3
- (B) A-1, B-2, C-3, D-4
- (C) A-2, B-3, C-1, D-4
- (D) A-2, B-1, C-3, D-4

45. Arrange the following Presidents of India in the correct chronological order of their assumption of office:

- I. V. V. Giri
- II. Dr. Zakir Husain
- III. Dr. S. Radhakrishnan
- IV. Fakhruddin Ali Ahmed

- (A) III, II, I, IV
- (B) II, III, I, IV
- (C) III, I, II, IV
- (D) I, III, II, IV

IP05

Parliament and the Legislative Process

45 questions · 30 fact-sheet points

Must-know facts

1. Article 79 — Parliament of India consists of the President and the two Houses, the Council of States (Rajya Sabha) and the House of the People (Lok Sabha).
2. Article 80 — maximum strength of the Rajya Sabha is 250: 238 representatives of States and Union Territories elected indirectly + 12 nominated by the President for special knowledge in literature, science, art and social service. Present strength 245; allocation of seats is in the Fourth Schedule.
3. Article 81 — maximum strength of the Lok Sabha is 550: 530 from States + 20 from Union Territories. Present strength 543. The two nominated Anglo-Indian seats (Article 331) were discontinued by the 104th Amendment Act, 2019, with effect from 25 January 2020.
4. Article 82 — readjustment of seats after each census; the 42nd and 84th Amendments froze the allocation of seats on the basis of the 1971 census until the first census taken after 2026.
5. Article 83 — the Rajya Sabha is a permanent body not subject to dissolution; one-third of its members retire every second year, the term being six years. The Lok Sabha's term is five years, extendable by Parliament by one year at a time during a Proclamation of Emergency and not beyond six months after the Proclamation ceases.
6. Article 84 — qualifications: citizen of India; minimum age 30 years for the Rajya Sabha and 25 years for the Lok Sabha.
7. Article 85 — the gap between two sessions of Parliament must not exceed six months; by convention there are three sessions — Budget, Monsoon and Winter. Summoning, prorogation and dissolution are done by the President.
8. Article 100 — quorum is one-tenth of the total number of members of the House; the presiding officer has no ordinary vote but exercises a casting vote in a tie.
9. Article 93 — Speaker and Deputy Speaker of the Lok Sabha; Article 89 — Chairman and Deputy Chairman of the Rajya Sabha. Removal is by a resolution passed by a majority of all the then members (effective majority) after 14 days' notice.
10. The Speaker certifies whether a Bill is a Money Bill (Article 110(4)), presides over a joint sitting (Article 118(4)) and decides questions of disqualification on the ground of defection; but disqualification under Article 102(1) is decided by the President on the opinion of the Election Commission (Article 103).
11. Article 105 — powers, privileges and immunities of the Houses and their members, including freedom of speech in Parliament and immunity from proceedings in any court for anything said or any vote given.
12. Article 108 — joint sitting to resolve a deadlock over an ordinary or a financial Bill; it is NOT available for a Money Bill or a Constitution Amendment Bill. Only three joint sittings have been held: Dowry Prohibition Bill (1961), Banking Service Commission (Repeal) Bill (1978) and Prevention of Terrorism Bill (2002).
13. Article 110 — a Money Bill may be introduced only in the Lok Sabha and only on the recommendation of the President; the Rajya Sabha must return it within 14 days and may only make recommendations; the Speaker's certificate is final and the President cannot return a Money Bill for reconsideration.
14. Article 109 — special procedure for Money Bills; Article 117 — Financial Bills; every Money Bill is a Financial Bill but every Financial Bill is not a Money Bill.
15. Article 112 — the Annual Financial Statement (Budget); Article 113 — demands for grants, voted only by the Lok Sabha; Article 114 — Appropriation Bill; Article 115 — supplementary, additional and excess grants; Article 116 — vote on account, votes of credit and exceptional grants.

16. Cut motions: a policy cut reduces the demand to Re 1, an economy cut reduces it by a specified amount, and a token cut reduces it by Rs 100 to air a specific grievance.
17. Article 265 — no tax shall be levied or collected except by authority of law; Article 266 — Consolidated Fund of India and Public Account of India; Article 267 — Contingency Fund of India, whose corpus was raised from Rs 500 crore to Rs 30,000 crore by the Finance Act, 2021 and which is held by the Finance Secretary on behalf of the President.
18. Expenditure 'charged' on the Consolidated Fund of India (salaries of the President, Speaker, judges, CAG, debt charges) can be discussed but is not submitted to the vote of Parliament.
19. Question Hour is the first hour of a sitting and is regulated by the Rules — starred questions get an oral answer with supplementaries, unstarred questions a written answer, and short notice questions relate to urgent matters at less than ten days' notice. Zero Hour follows Question Hour, is an Indian innovation and finds no mention in the Rules of Procedure.
20. A no-confidence motion can be moved only in the Lok Sabha, needs the support of at least 50 members and need not state any reason; an adjournment motion also needs 50 members and is likewise available only in the Lok Sabha.
21. Anti-defection — Tenth Schedule, inserted by the 52nd Amendment Act, 1985. The 91st Amendment Act, 2003 deleted the exemption for a 'split' by one-third of the legislature party, leaving only a merger by two-thirds. *Kihoto Hollohan v. Zachillhu* (1992) upheld the Schedule but held the presiding officer's decision subject to judicial review.
22. Public Accounts Committee — 22 members: 15 elected by the Lok Sabha and 7 by the Rajya Sabha; term one year; first set up in 1921; its Chairman has been drawn from the Opposition by convention since 1967; it examines the audit reports of the Comptroller and Auditor General.
23. Estimates Committee — 30 members, ALL elected from the Lok Sabha; no Rajya Sabha representation; term one year; constituted in 1950 on John Mathai's recommendation; the largest of the parliamentary committees and known as the 'continuous economy committee'; it examines estimates only after the Budget has been voted.
24. Committee on Public Undertakings — 22 members: 15 from the Lok Sabha and 7 from the Rajya Sabha; created in 1964 on the recommendation of the Krishna Menon Committee; strength raised from 15 to 22 in 1974.
25. There are 24 Departmentally Related Standing Committees, each with 31 members — 21 from the Lok Sabha and 10 from the Rajya Sabha; 16 are serviced by the Lok Sabha Secretariat and 8 by the Rajya Sabha Secretariat. Introduced in 1993 with 17 committees and restructured to 24 in 2004; a Minister cannot be a member.
26. Committee on the Welfare of Scheduled Castes and Scheduled Tribes — 30 members (20 Lok Sabha + 10 Rajya Sabha); Committee on Empowerment of Women — 30 members (20 + 10); Joint Committee on Offices of Profit — 15 members (10 + 5).
27. Business Advisory Committee — 15 members in the Lok Sabha with the Speaker as Chairman; 11 members in the Rajya Sabha with the Chairman presiding. The Committee on Private Members' Bills and Resolutions is a Lok Sabha committee of 15 members.
28. Articles 148-151 — Comptroller and Auditor General; his audit reports on the Union accounts are submitted to the President, who causes them to be laid before each House of Parliament under Article 151, after which they stand referred to the Public Accounts Committee.
29. Article 169 — Parliament may by law create or abolish a Legislative Council in a State if the Legislative Assembly first passes a resolution by a majority of the total membership of the Assembly AND by a majority of not less than two-thirds of the members present and voting; such a law is not deemed to be an amendment under Article 368, and Parliament is not bound to act on the Assembly's resolution.
30. Articles 102 and 191 lay down disqualifications for membership; under Article 103 the question is decided by the President after obtaining the opinion of the Election Commission, and his decision is final.

- 1.** Under which Article does the Constitution declare that there shall be a Parliament for the Union consisting of the President and two Houses?
- (A) Article 78 (B) Article 79
(C) Article 80 (D) Article 81
- 2.** The maximum strength of the Rajya Sabha as laid down in the Constitution is
- (A) 238 (B) 245
(C) 250 (D) 252
- 3.** The twelve members nominated by the President to the Rajya Sabha are chosen for their special knowledge or practical experience in
- (A) literature, science, art and social service
(B) literature, science, sports and social service
(C) science, art, education and social service
(D) literature, law, art and social service
- 4.** The nomination of two members of the Anglo-Indian community to the Lok Sabha was discontinued by
- (A) the 102nd Amendment Act (B) the 103rd Amendment Act
(C) the 104th Amendment Act (D) the 105th Amendment Act
- 5.** Consider the following statements about the Rajya Sabha:
- I. It is not subject to dissolution.
II. One-third of its members retire on the expiry of every second year.
III. Its members representing a State are elected by the elected members of that State's Legislative Assembly by proportional representation with a single transferable vote.
- Which of the statements given above are correct?
- (A) I and II only
(B) II and III only
(C) I and III only
(D) I, II and III
- 6.** The minimum age prescribed for membership of the Rajya Sabha is
- (A) 21 years (B) 25 years
(C) 30 years (D) 35 years
- 7.** The quorum to constitute a meeting of either House of Parliament is
- (A) one-tenth of the total number of members of the House
(B) one-fifth of the total number of members of the House
(C) one-sixth of the total number of members of the House
(D) one-fourth of the total number of members of the House
- 8.** The maximum permissible interval between two sessions of Parliament is
- (A) three months (B) four months
(C) six months (D) one year

9. Consider the following statements about the duration of the Houses of Parliament:

- I. The Lok Sabha continues for five years from the date appointed for its first meeting.
- II. During a Proclamation of Emergency its term may be extended by Parliament by law for one year at a time.
- III. Such an extension cannot continue beyond a period of six months after the Proclamation ceases to operate.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

10. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Provision)

- A. Article 89 1. Speaker and Deputy Speaker of the House of the People
- B. Article 93 2. Chairman and Deputy Chairman of the Council of States
- C. Article 100 3. Powers, privileges and immunities of Parliament and its members
- D. Article 105 4. Voting in Houses, vacancies and quorum

- (A) A-1, B-2, C-4, D-3
- (B) A-2, B-1, C-3, D-4
- (C) A-2, B-1, C-4, D-3
- (D) A-2, B-4, C-1, D-3

11. A resolution for the removal of the Speaker of the Lok Sabha must be passed by

- (A) a simple majority of the members present and voting
- (B) a majority of all the then members of the House, after 14 days' notice
- (C) a two-thirds majority of the total membership of the House
- (D) a two-thirds majority of the members present and voting

12. Which one of the following is NOT a function of the Speaker of the Lok Sabha?

- (A) Certifying whether a Bill is a Money Bill
- (B) Presiding over a joint sitting of both Houses of Parliament
- (C) Deciding questions of disqualification on the ground of defection
- (D) Deciding questions of disqualification arising under Article 102(1)

13. Consider the following statements about the Speaker of the Lok Sabha:

- I. He exercises a vote only in the case of an equality of votes.
- II. He presides over the House while a resolution for his own removal is under consideration.
- III. He continues in office even after the dissolution of the Lok Sabha, until immediately before the first meeting of the new House.

Which of the statements given above are correct? HARD

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

14. A Money Bill is defined in which Article of the Constitution?

- (A) Article 109
- (B) Article 110
- (C) Article 112
- (D) Article 117

15. Consider the following statements regarding a Money Bill:

- I. It can be introduced only in the Lok Sabha and only on the recommendation of the President.
- II. The Rajya Sabha must return it within fourteen days with or without its recommendations.
- III. The President may return a Money Bill to the Lok Sabha for reconsideration.

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

16. Whether a Bill is a Money Bill or not is finally decided by

- (A) the President
- (B) the Chairman of the Rajya Sabha
- (C) the Speaker of the Lok Sabha
- (D) the Supreme Court

17. The provision for a joint sitting of the two Houses to resolve a deadlock over a Bill is contained in

- (A) Article 107
- (B) Article 108
- (C) Article 109
- (D) Article 111

18. A joint sitting of the two Houses of Parliament may be convened in respect of all of the following EXCEPT

- (A) an ordinary Bill passed by one House and rejected by the other
- (B) a Bill on which the two Houses have disagreed over amendments
- (C) a Constitution Amendment Bill
- (D) a financial Bill other than a Money Bill

19. Arrange the following Bills, in respect of which joint sittings of the two Houses of Parliament were held, in the correct chronological order:

- I. Banking Service Commission (Repeal) Bill
- II. Dowry Prohibition Bill
- III. Prevention of Terrorism Bill

- (A) II, I, III
- (B) I, II, III
- (C) II, III, I
- (D) III, II, I

20. The Budget is described in the Constitution as the 'Annual Financial Statement' under

- (A) Article 110
- (B) Article 111
- (C) Article 112
- (D) Article 113

21. Consider the following statements about the Union budgetary process:

- I. Demands for grants are submitted to and voted upon only by the Lok Sabha.
- II. Expenditure charged upon the Consolidated Fund of India is not submitted to the vote of Parliament.
- III. The Rajya Sabha may reject the Appropriation Bill.

Which of the statements given above are correct? **HARD**

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

22. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Device) List-II (Effect)

- A. Policy cut 1. Reduction of the demand by Rs 100
B. Economy cut 2. Reduction of the amount of the demand to Re 1
C. Token cut 3. Reduction of the demand by a specified amount
D. Vote on account 4. Advance grant to meet expenditure pending the passing of the Appropriation Bill

- (A) A-2, B-3, C-1, D-4
(B) A-1, B-3, C-2, D-4
(C) A-2, B-1, C-3, D-4
(D) A-3, B-2, C-1, D-4

23. The corpus of the Contingency Fund of India, as enhanced by the Finance Act, 2021, presently stands at

- (A) Rs 500 crore (B) Rs 5,000 crore
(C) Rs 20,000 crore (D) Rs 30,000 crore

24. Consider the following statements:

- I. The Consolidated Fund of India and the Public Account of India are provided for in Article 266.
II. The Contingency Fund of India is placed at the disposal of the Prime Minister.
III. No money can be withdrawn from the Consolidated Fund of India except under an appropriation made by law.

Which of the statements given above are correct?

- (A) I and II only
(B) I and III only
(C) II and III only
(D) I, II and III

25. The total membership of the Public Accounts Committee of Parliament is RAS PRE 2018

- (A) 15 (B) 22
(C) 30 (D) 31

26. The Public Accounts Committee consists of RAS PRE 2018

- (A) 15 members from the Lok Sabha and 7 from the Rajya Sabha
(B) 20 members from the Lok Sabha and 10 from the Rajya Sabha
(C) 22 members, all from the Lok Sabha
(D) 21 members from the Lok Sabha and 10 from the Rajya Sabha

27. The Estimates Committee of Parliament consists of RAS PRE 2013, 2021

- (A) 22 members drawn from both Houses (B) 30 members drawn from both Houses
(C) 30 members, all elected from the Lok Sabha (D) 15 members, all from the Lok Sabha

28. Consider the following statements about the Estimates Committee:

- I. It is the largest of the parliamentary committees.
II. It has no member from the Rajya Sabha.
III. It examines the estimates only after they have been voted by Parliament.

Which of the statements given above are correct? RAS PRE 2018, 2021

- (A) I and II only
(B) II and III only
(C) I and III only
(D) I, II and III

29. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Committee) List-II (Year of first constitution)

- A. Public Accounts Committee 1. 1993
 B. Estimates Committee 2. 1921
 C. Committee on Public Undertakings 3. 1950
 D. Departmentally Related Standing Committees 4. 1964 **HARD**

- (A) A-2, B-3, C-1, D-4
 (B) A-2, B-3, C-4, D-1
 (C) A-3, B-2, C-4, D-1
 (D) A-2, B-4, C-3, D-1

30. The Committee on Public Undertakings consists of

- (A) 15 members, all from the Lok Sabha
 (B) 22 members — 15 from the Lok Sabha and 7 from the Rajya Sabha
 (C) 30 members — 20 from the Lok Sabha and 10 from the Rajya Sabha
 (D) 31 members — 21 from the Lok Sabha and 10 from the Rajya Sabha

31. Each Departmentally Related Standing Committee of Parliament consists of

- (A) 45 members — 30 from the Lok Sabha and 15 from the Rajya Sabha
 (B) 22 members — 15 from the Lok Sabha and 7 from the Rajya Sabha
 (C) 31 members — 21 from the Lok Sabha and 10 from the Rajya Sabha
 (D) 30 members — 20 from the Lok Sabha and 10 from the Rajya Sabha

32. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Committee) List-II (Total membership)

- A. Estimates Committee 1. 22
 B. Committee on Public Undertakings 2. 30
 C. Departmentally Related Standing Committee 3. 31
 D. Joint Committee on Offices of Profit 4. 15 **HARD**

- (A) A-1, B-2, C-3, D-4
 (B) A-2, B-3, C-1, D-4
 (C) A-2, B-1, C-4, D-3
 (D) A-2, B-1, C-3, D-4

33. Which one of the following statements about parliamentary committees is NOT correct?

- (A) The Estimates Committee has no member from the Rajya Sabha
 (B) A Minister cannot be elected as a member of a Departmentally Related Standing Committee
 (C) The Public Accounts Committee examines the audit reports of the Comptroller and Auditor General
 (D) The Committee on Public Undertakings consists of 30 members

34. By convention, the Chairman of the Public Accounts Committee has been appointed from the Opposition since **RAS PRE 2013**

- (A) 1950 (B) 1953
 (C) 1967 (D) 1985

35. The audit reports of the Comptroller and Auditor General relating to the accounts of the Union are laid before Parliament under **RAS PRE 2021**

- (A) Article 148 (B) Article 149
 (C) Article 150 (D) Article 151

- 36.** The provisions relating to disqualification of members on the ground of defection are contained in
- (A) the Ninth Schedule (B) the Tenth Schedule
(C) the Eleventh Schedule (D) the Twelfth Schedule
- 37.** The exemption from disqualification available in the case of a 'split' in a legislature party was deleted by
- (A) the 52nd Amendment Act, 1985 (B) the 91st Amendment Act, 2003
(C) the 97th Amendment Act, 2011 (D) the 44th Amendment Act, 1978
- 38.** In which case did the Supreme Court hold that the decision of the Speaker or Chairman under the Tenth Schedule is subject to judicial review? **HARD**
- (A) Kihoto Hollohan v. Zachillhu
(B) Ravi S. Naik v. Union of India
(C) Jagjit Singh v. State of Haryana
(D) G. Viswanathan v. Speaker, Tamil Nadu Legislative Assembly
- 39.** Consider the following statements:
- I. A no-confidence motion can be moved only in the Lok Sabha and requires the support of at least 50 members.
II. Zero Hour is not mentioned in the Rules of Procedure of the Lok Sabha.
III. An adjournment motion can be moved in the Rajya Sabha as well.
- Which of the statements given above are correct?
- (A) I and II only
(B) I and III only
(C) II and III only
(D) I, II and III
- 40.** Match List-I with List-II and select the correct answer using the codes given below:
- List-I (Parliamentary device) List-II (Feature)
- A. Starred question 1. Answered orally, supplementary questions permitted
B. Unstarred question 2. Answered in writing, no supplementary questions allowed
C. Short notice question 3. Relates to a matter of urgent public importance and is asked at less than ten days' notice
D. Half-an-hour discussion 4. Raised on a matter of sufficient public importance already answered in the House **HARD**
- (A) A-1, B-2, C-4, D-3
(B) A-2, B-1, C-3, D-4
(C) A-1, B-2, C-3, D-4
(D) A-1, B-3, C-2, D-4
- 41.** Which one of the following statements about Question Hour and Zero Hour is NOT correct?
- (A) Question Hour is the first hour of a sitting of the House
(B) Zero Hour starts immediately after Question Hour
(C) Zero Hour is an Indian innovation not found in the Rules of Procedure
(D) Question Hour is not regulated by the Rules of Procedure of the House
- 42.** Under Article 169, Parliament may create or abolish a Legislative Council in a State if the Legislative Assembly of that State passes a resolution by **RAS PRE 2016, 2021**
- (A) a simple majority of the members present and voting
(B) a two-thirds majority of the total membership of the Assembly
(C) a majority of not less than three-fourths of the members present and voting
(D) a majority of the total membership of the Assembly and a majority of not less than two-thirds of the members present and voting

43. Consider the following statements regarding Article 169 of the Constitution:

- I. Parliament may by law provide for the creation or abolition of a Legislative Council in a State.
- II. Such a law is not deemed to be an amendment of the Constitution for the purposes of Article 368.
- III. Parliament is bound to act upon a resolution passed by the State Legislative Assembly.

Which of the statements given above are correct? RAS PRE 2021

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

44. Which one of the following pairs of Article and financial provision is NOT correctly matched?

- | | |
|--|---|
| (A) Article 112 — Annual Financial Statement | (B) Article 114 — Appropriation Bill |
| (C) Article 117 — Financial Bills | (D) Article 266 — Contingency Fund of India |

45. Arrange the following stages in the enactment of the Union Budget in their correct sequence:

- I. Voting on demands for grants
- II. Presentation of the Annual Financial Statement
- III. Passing of the Appropriation Bill
- IV. General discussion HARD

- (A) II, IV, I, III
- (B) II, I, IV, III
- (C) IV, II, I, III
- (D) II, IV, III, I

IP06

Judiciary: Supreme Court, High Courts and Judicial Review

40 questions · 30 fact-sheet points

Must-know facts

1. Article 124 — establishment and constitution of the Supreme Court. The original strength was a Chief Justice and 7 other judges; it was raised in stages to 34 in 2019 and to 38 (the Chief Justice of India + 37 judges) by the Supreme Court (Number of Judges) Amendment Act, 2026.
2. The Supreme Court was inaugurated on 28 January 1950, replacing the Federal Court of India created under the Government of India Act, 1935; the first Chief Justice of India was H. J. Kania.
3. Article 124(3) — qualifications: citizen of India AND either five years as a judge of a High Court, or ten years as an advocate of a High Court, or a distinguished jurist in the President's opinion. No minimum age is prescribed; a Supreme Court judge retires at 65, a High Court judge at 62 (Article 217).
4. Article 124(4) — removal by the President after an address by each House supported by a majority of the total membership of that House AND by a majority of not less than two-thirds of the members present and voting, in the same session, on the ground of proved misbehaviour or incapacity. The procedure is governed by the Judges (Inquiry) Act, 1968.
5. No judge of the Supreme Court has ever been removed; the motion against Justice V. Ramaswami failed in the Lok Sabha in 1993 when the ruling party abstained.
6. Article 126 — acting Chief Justice; Article 127 — ad hoc judges; Article 128 — attendance of retired judges at the sittings of the Supreme Court; Article 224A — retired judges at the sittings of High Courts.
7. Article 129 — the Supreme Court is a court of record with power to punish for contempt of itself; Article 215 makes the same provision for High Courts. Truth was made a valid defence by the Contempt of Courts (Amendment) Act, 2006.
8. Article 130 — the seat of the Supreme Court is Delhi, or such other place as the Chief Justice of India may, with the approval of the President, appoint.
9. Jurisdiction: Article 131 original (federal disputes, exclusive), Article 132 appeal in constitutional matters, Article 133 civil, Article 134 criminal, Article 134A certificate, Article 136 special leave to appeal, Article 137 review, Article 143 advisory.
10. Article 141 — the law declared by the Supreme Court is binding on all courts within the territory of India; Article 142 — power to pass any decree necessary for doing complete justice; Article 144 — all civil and judicial authorities must act in aid of the Supreme Court.
11. Article 143 — the President may refer a question of law or fact of public importance under clause (1), and the Court MAY decline to answer; on a dispute arising out of a pre-Constitution treaty under clause (2) the Court MUST give its opinion. The opinion is advisory and not binding on the President. The 1993 Ram Janmabhoomi reference was returned unanswered.
12. In November 2025 a five-judge Constitution Bench headed by Chief Justice B. R. Gavai answered the Presidential Reference on the assent of Bills, holding that courts cannot fix timelines for the Governor or the President under Articles 200 and 201 and rejecting the concept of 'deemed assent'.
13. Writs — habeas corpus, mandamus, prohibition, certiorari and quo warranto — are issued by the Supreme Court under Article 32 and by High Courts under Article 226. Article 32 is itself a fundamental right and was called 'the heart and soul of the Constitution' by Dr. B. R. Ambedkar.
14. Article 226 is wider than Article 32 because a High Court can issue writs not only for the enforcement of fundamental rights but also 'for any other purpose'; the 15th Amendment Act, 1963 extended its reach to authorities outside the High Court's territorial jurisdiction where the cause of action arises within it.

15. Judicial review is nowhere defined in the Constitution; it flows from Articles 13, 32, 131-136, 143, 226, 227, 245, 246 and 372. Article 50, a Directive Principle, requires separation of the judiciary from the executive.
16. Collegium: First Judges Case (S. P. Gupta, 1981) gave primacy to the executive; the Second Judges Case (1993) created the collegium; the Third Judges Case (In re Special Reference, 1998) fixed the collegium at the CJI plus his four senior-most colleagues for Supreme Court appointments and the CJI plus two for High Court appointments.
17. The 99th Constitutional Amendment Act and the National Judicial Appointments Commission Act, 2014 were struck down on 16 October 2015 in the Fourth Judges Case for violating the independence of the judiciary, a basic feature. The proposed NJAC comprised the CJI, the two senior-most Supreme Court judges, the Union Law Minister and two eminent persons.
18. There are 25 High Courts in India; the Andhra Pradesh High Court at Amaravati, created on 1 January 2019, is the 25th. Calcutta, Bombay and Madras were established in 1862 under the Indian High Courts Act, 1861, Calcutta being the first; the Allahabad High Court (1866) has the largest sanctioned judge strength.
19. Article 214 — a High Court for each State; Article 231 — a common High Court for two or more States or Union Territories; Article 222 — transfer of a judge from one High Court to another; Article 224 — additional and acting judges.
20. Article 217 — a High Court judge must have held judicial office in India for ten years or have been an advocate of a High Court for ten years; there is NO 'distinguished jurist' category for High Courts.
21. Article 227 — power of superintendence of a High Court over all courts and tribunals within its territorial jurisdiction, except courts and tribunals constituted under any law relating to the armed forces.
22. Article 233 — district judges are appointed by the Governor in consultation with the High Court; a person not already in service must have been an advocate for at least seven years. Article 235 vests control over the subordinate judiciary in the High Court.
23. Articles 323A and 323B, inserted by the 42nd Amendment Act, 1976, provide for administrative tribunals and tribunals for other matters; only Parliament can legislate under Article 323A, while both Parliament and State Legislatures can act under Article 323B. The Central Administrative Tribunal was set up under the Administrative Tribunals Act, 1985.
24. L. Chandra Kumar v. Union of India (1997) — judicial review under Articles 32 and 226 is part of the basic structure, and decisions of tribunals are subject to scrutiny by a Division Bench of the High Court concerned.
25. Article 39A — equal justice and free legal aid, inserted by the 42nd Amendment Act, 1976; it is the constitutional basis of the Legal Services Authorities Act, 1987 (in force from 9 November 1995) and of the National Legal Services Authority.
26. The award of a Lok Adalat is deemed to be a decree of a civil court, is final and binding, and no appeal lies against it. National Legal Services Day is observed on 9 November. A Permanent Lok Adalat for public utility services is set up under Section 22B with pecuniary jurisdiction up to Rs 1 crore.
27. Gram Nyayalayas Act, 2008 (in force from 2 October 2009) — mobile courts at the intermediate panchayat level presided over by a Nyayadhikari having the status of a Judicial Magistrate of the first class.
28. Amendability line: Shankari Prasad (1951) and Sajjan Singh (1965) upheld amendment of fundamental rights; Golaknath (1967) reversed this; Kesavananda Bharati (1973), decided by a 13-judge bench by 7:6, laid down the basic structure doctrine.
29. Indira Nehru Gandhi v. Raj Narain (1975) first used the basic structure to strike down a constitutional amendment; Minerva Mills (1980) struck down Sections 4 and 55 of the 42nd Amendment and held the balance between Fundamental Rights and Directive Principles to be a basic feature; S. R. Bommai (1994) made a Proclamation under Article 356 justiciable.
30. Article 21 expansion — fair, just and reasonable procedure (Maneka Gandhi, 1978), speedy trial (Hussainara Khatoon, 1979), livelihood (Olga Tellis, 1985), education (Unni Krishnan, 1993), privacy (K.

S. Puttaswamy, 2017, nine-judge bench). Public interest litigation was pioneered by Justices P. N. Bhagwati and V. R. Krishna Iyer, with locus standi relaxed in S. P. Gupta (1981).

1. The Supreme Court of India was inaugurated on
 - (A) 28 January 1950
 - (B) 26 January 1950
 - (C) 26 November 1949
 - (D) 15 August 1947
2. The original strength of the Supreme Court, as fixed by the Constitution, was
 - (A) a Chief Justice and 7 other judges
 - (B) a Chief Justice and 10 other judges
 - (C) a Chief Justice and 13 other judges
 - (D) a Chief Justice and 17 other judges
3. The sanctioned strength of the Supreme Court of India was raised to 38 judges by
 - (A) the Supreme Court (Number of Judges) Amendment Act, 2019
 - (B) the Supreme Court (Number of Judges) Amendment Act, 2026
 - (C) the 99th Constitutional Amendment Act
 - (D) the Supreme Court Rules, 2013
4. Consider the following statements about the qualifications for appointment as a judge of the Supreme Court:
 - I. Service as a judge of a High Court for at least five years is one of the prescribed qualifications.
 - II. A person who is, in the opinion of the President, a distinguished jurist may be appointed.
 - III. The Constitution prescribes a minimum age of 45 years.Which of the statements given above are correct?
 - (A) I and II only
 - (B) I and III only
 - (C) II and III only
 - (D) I, II and III
5. A judge of the Supreme Court of India holds office until he attains the age of
 - (A) 60 years
 - (B) 62 years
 - (C) 65 years
 - (D) 70 years
6. The address for the removal of a judge of the Supreme Court must be supported in each House of Parliament by HARD
 - (A) a majority of the total membership of that House and a majority of not less than two-thirds of the members present and voting
 - (B) a majority of not less than two-thirds of the total membership of that House
 - (C) a simple majority of the members present and voting
 - (D) a majority of not less than three-fourths of the members present and voting
7. The procedure for the removal of a judge of the Supreme Court is regulated by
 - (A) the Contempt of Courts Act, 1971
 - (B) the Judges (Inquiry) Act, 1968
 - (C) the Supreme Court (Number of Judges) Act, 1956
 - (D) the Judicial Standards and Accountability Act

8. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Provision)

A. Article 129 1. Advisory jurisdiction of the Supreme Court

B. Article 136 2. Supreme Court to be a court of record

C. Article 141 3. Special leave to appeal

D. Article 143 4. Law declared by the Supreme Court to be binding on all courts

(A) A-2, B-3, C-1, D-4

(B) A-2, B-4, C-3, D-1

(C) A-2, B-3, C-4, D-1

(D) A-1, B-3, C-4, D-2

9. The power of the Supreme Court to pass any decree necessary for doing complete justice in any cause pending before it is contained in

(A) Article 139

(B) Article 141

(C) Article 142

(D) Article 144

10. The original jurisdiction of the Supreme Court under Article 131 extends to

(A) disputes between the Government of India and one or more States

(B) appeals from the High Courts in constitutional matters

(C) the transfer of cases from one High Court to another

(D) references made by the President on questions of law

11. Consider the following statements about the advisory jurisdiction of the Supreme Court:

I. The Supreme Court may refuse to give its opinion on a reference made under Article 143(1).

II. The opinion given by the Supreme Court on a Presidential reference is binding on the President.

III. The Supreme Court returned the Ram Janmabhoomi reference of 1993 unanswered.

Which of the statements given above are correct? **HARD**

(A) I and II only

(B) I and III only

(C) II and III only

(D) I, II and III

12. In November 2025 a five-judge Constitution Bench of the Supreme Court answered a Presidential Reference under Article 143 relating to **HARD**

(A) the timelines for the grant of assent to Bills by Governors and the President

(B) the appointment of Election Commissioners

(C) the validity of the reservation for economically weaker sections

(D) the reservation of seats for women in legislatures

13. Which one of the following writs is issued to secure the release of a person who has been unlawfully detained?

(A) Habeas corpus

(B) Mandamus

(C) Certiorari

(D) Quo warranto

14. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Writ) List-II (Meaning or purpose)

- A. Mandamus 1. 'We command' — directing a public authority to perform its public duty
B. Prohibition 2. Issued by a higher court to a lower court to stop proceedings exceeding its jurisdiction
C. Certiorari 3. 'To be certified' — transferring a case to itself or quashing the order of a lower court
D. Quo warrant 4. 'By what authority' — questioning a person's claim to a public office

- (A) A-1, B-3, C-2, D-4
(B) A-1, B-2, C-4, D-3
(C) A-2, B-1, C-3, D-4
(D) A-1, B-2, C-3, D-4

15. Consider the following statements:

- I. Article 226 is wider in scope than Article 32 because writs under it can be issued for purposes other than the enforcement of fundamental rights.
II. The right guaranteed by Article 32 can be suspended only as otherwise provided for by the Constitution.
III. Article 32 was described by Dr. B. R. Ambedkar as the heart and soul of the Constitution.

Which of the statements given above are correct?

- (A) I and II only
(B) II and III only
(C) I and III only
(D) I, II and III

16. The writ jurisdiction of a High Court under Article 226 extends to

- (A) only the territory in relation to which it exercises jurisdiction, in all cases
(B) its territorial jurisdiction and also to any authority outside it if the cause of action arises within its jurisdiction
(C) the whole of India in every case
(D) matters relating to fundamental rights only

17. Which one of the following pairs of Article and provision relating to the High Courts is NOT correctly matched?

- (A) Article 214 — High Court for each State
(B) Article 217 — Appointment of a judge of a High Court
(C) Article 222 — Transfer of a judge from one High Court to another
(D) Article 227 — Establishment of a common High Court for two or more States

18. How many High Courts are there in India?

- (A) 21 (B) 24
(C) 25 (D) 28

19. Match List-I with List-II and select the correct answer using the codes given below:

List-I (High Court) List-II (Year of establishment)

- A. Calcutta High Court 1. 1866
B. Allahabad High Court 2. 1862
C. Rajasthan High Court 3. 2019
D. Andhra Pradesh High Court at Amaravati 4. 1949

- (A) A-2, B-1, C-3, D-4
(B) A-1, B-2, C-4, D-3
(C) A-2, B-1, C-4, D-3
(D) A-2, B-4, C-1, D-3

20. Consider the following statements about the judges of the High Courts:

- I. A person who has held judicial office in the territory of India for at least ten years is qualified for appointment.
- II. A distinguished jurist may be appointed a judge of a High Court.
- III. A judge of a High Court holds office until he attains the age of 62 years.

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

21. A judge of a High Court may be transferred from one High Court to another by the President under

- (A) Article 217
- (B) Article 222
- (C) Article 224
- (D) Article 231

22. Consider the following statements about the subordinate judiciary:

- I. District judges are appointed by the Governor of the State in consultation with the High Court.
- II. Control over the district courts and the courts subordinate to them is vested in the High Court.
- III. A person not already in the service of the Union or the State is eligible for appointment as a district judge if he has been an advocate for at least seven years.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

23. The collegium system for the appointment of judges was evolved by the Supreme Court in

- (A) the First Judges Case (1981)
- (B) the Third Judges Case (1998)
- (C) the Second Judges Case (1993)
- (D) the Fourth Judges Case (2015)

24. For the appointment of a judge of the Supreme Court, the collegium consists of the Chief Justice of India and

- (A) the four senior-most judges of the Supreme Court
- (B) the two senior-most judges of the Supreme Court
- (C) the three senior-most judges of the Supreme Court
- (D) all the judges of the Supreme Court

25. The National Judicial Appointments Commission was declared unconstitutional by the Supreme Court in

- (A) 2013
- (B) 2014
- (C) 2015
- (D) 2018

26. Which one of the following was NOT a proposed member of the National Judicial Appointments Commission?

- (A) The Chief Justice of India
- (B) The Union Minister of Law and Justice
- (C) Two eminent persons
- (D) The Attorney General of India

27. The doctrine of basic structure of the Constitution was propounded by the Supreme Court in

- (A) Golaknath v. State of Punjab
- (B) Kesavananda Bharati v. State of Kerala
- (C) Minerva Mills v. Union of India
- (D) Indira Nehru Gandhi v. Raj Narain

28. Arrange the following cases in the correct chronological order:

- I. Kesavananda Bharati v. State of Kerala
- II. Golaknath v. State of Punjab
- III. Minerva Mills v. Union of India
- IV. Shankari Prasad v. Union of India

- (A) IV, II, I, III
- (B) II, IV, I, III
- (C) IV, I, II, III
- (D) IV, II, III, I

29. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Case) List-II (Principle laid down)

- A. Maneka Gandhi v. Union of India 1. The procedure established by law under Article 21 must be fair, just and reasonable
- B. S. R. Bommai v. Union of India 2. A Proclamation issued under Article 356 is subject to judicial review
- C. Vishaka v. State of Rajasthan 3. Guidelines against the sexual harassment of women at the workplace
- D. K. S. Puttaswamy v. Union of India 4. The right to privacy is a fundamental right under Article 21

- (A) A-1, B-2, C-4, D-3
- (B) A-2, B-1, C-3, D-4
- (C) A-1, B-3, C-2, D-4
- (D) A-1, B-2, C-3, D-4

30. Consider the following statements about the judicial expansion of Article 21:

- I. The right to livelihood was read into Article 21 in *Olga Tellis v. Bombay Municipal Corporation*.
- II. The right to a speedy trial was recognised in *Hussainara Khatoon v. State of Bihar*.
- III. The right to privacy was declared a fundamental right by a nine-judge bench in 2017.

Which of the statements given above are correct? RAS PRE 2018, 2024

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

31. In which case did the Supreme Court hold that the 'procedure established by law' under Article 21 must be fair, just and reasonable? RAS PRE 2023

- | | |
|---|--|
| (A) A. K. Gopalan v. State of Madras | (B) Maneka Gandhi v. Union of India |
| (C) Sunil Batra v. Delhi Administration | (D) Kharak Singh v. State of Uttar Pradesh |

32. Equal justice and free legal aid is enshrined in which Article of the Constitution? RAS PRE 2018, 2024

- | | |
|----------------|-----------------|
| (A) Article 38 | (B) Article 39A |
| (C) Article 41 | (D) Article 43A |

33. Consider the following statements:

- I. The Legal Services Authorities Act was enacted in 1987 and came into force in 1995.
- II. An award of a Lok Adalat is deemed to be a decree of a civil court and is final.
- III. An appeal against an award of a Lok Adalat lies to the High Court.

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

34. A Permanent Lok Adalat set up for public utility services has pecuniary jurisdiction up to **HARD**

- (A) Rs 10 lakh (B) Rs 50 lakh
(C) Rs 1 crore (D) Rs 5 crore

35. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Institution) List-II (Governing statute)

- A. Lok Adalat 1. Gram Nyayalayas Act, 2008
B. Gram Nyayalaya 2. Legal Services Authorities Act, 1987
C. Central Administrative Tribunal 3. Commercial Courts Act, 2015
D. Commercial Court 4. Administrative Tribunals Act, 1985

- (A) A-2, B-1, C-3, D-4
(B) A-1, B-2, C-4, D-3
(C) A-2, B-4, C-1, D-3
(D) A-2, B-1, C-4, D-3

36. Articles 323A and 323B, which provide for administrative and other tribunals, were inserted by

- (A) the 24th Amendment Act, 1971 (B) the 42nd Amendment Act, 1976
(C) the 44th Amendment Act, 1978 (D) the 52nd Amendment Act, 1985

37. In which case did the Supreme Court hold that judicial review under Articles 32 and 226 is part of the basic structure and that decisions of tribunals are subject to scrutiny by a Division Bench of the High Court? **HARD**

- (A) S. P. Sampath Kumar v. Union of India (B) Rupa Ashok Hurra v. Ashok Hurra
(C) Union of India v. R. Gandhi (D) L. Chandra Kumar v. Union of India

38. Which one of the following statements about the Supreme Court is NOT correct?

- (A) The Supreme Court is a court of record under Article 129
(B) The Constitution expressly defines the expression 'judicial review'
(C) The seat of the Supreme Court is Delhi or such other place as the Chief Justice of India may appoint with the approval of the President
(D) Truth was made a valid defence in contempt proceedings by an amendment to the Contempt of Courts Act in 2006

39. Which one of the following pairs of case and principle is NOT correctly matched?

- (A) Curative petition — Rupa Ashok Hurra v. Ashok Hurra
(B) Public interest litigation and relaxation of locus standi — S. P. Gupta v. Union of India
(C) Basic structure first applied to strike down a constitutional amendment — Indira Nehru Gandhi v. Raj Narain
(D) Balance between Fundamental Rights and Directive Principles held a basic feature — Golaknath v. State of Punjab

40. Assertion (A): The opinion tendered by the Supreme Court under Article 143 of the Constitution is not binding on the President.

Reason (R): An opinion under Article 143 is advisory in nature and is not a judgment delivered in the exercise of the Court's judicial power.

Select the correct answer using the codes given below:

- (A) Both A and R are true and R is the correct explanation of A
(B) Both A and R are true but R is not the correct explanation of A
(C) A is true but R is false
(D) A is false but R is true

IP07

Centre-State Relations, Emergency, Schedules and Amendments

45 questions · 30 fact-sheet points

Must-know facts

1. Legislative relations Centre-State: Articles 245-255. Union List originally 97 subjects, State List 66, Concurrent List 47 (7th Schedule).
2. Art. 248 + Entry 97 of Union List = residuary powers of legislation vest in Parliament.
3. Art. 249 - Rajya Sabha resolution by 2/3 of members present and voting lets Parliament legislate on a State List subject in national interest for 1 year (renewable).
4. Art. 250 - Parliament may legislate on State List during a National Emergency; such law lapses 6 months after the emergency ends.
5. Art. 252 - two or more State Legislatures request Parliament to legislate; Art. 253 - to implement international treaties/agreements. Art. 254 - repugnancy.
6. 42nd Amendment (1976) moved 5 subjects State List to Concurrent List: education, forests, weights and measures, protection of wild animals and birds, administration of justice.
7. Financial: Art. 268 duties levied by Union but collected/appropriated by States; Art. 269 taxes levied and collected by Union, assigned to States; Art. 269A GST on inter-State supply; Art. 270 taxes levied and distributed; Art. 271 surcharge (Union alone).
8. Art. 275 statutory grants-in-aid (charged on Consolidated Fund of India); Art. 282 discretionary grants; Art. 280 Finance Commission; Art. 293 State borrowing.
9. Art. 246A + Art. 279A (101st Amendment, 2016) - GST and GST Council; chair = Union Finance Minister; Centre 1/3 and States 2/3 of votes; decisions by 3/4 weighted majority.
10. Art. 262 - inter-State river water disputes; Inter-State River Water Disputes Act 1956 and River Boards Act 1956.
11. Art. 263 - Inter-State Council; set up by Presidential Order on 28 May 1990 on the recommendation of the Sarkaria Commission (1983, report 1988); Prime Minister is Chairman. Punchhi Commission on Centre-State relations: 2007, report 2010.
12. Zonal Councils - 5, created by the States Reorganisation Act 1956 (statutory, not constitutional); Union Home Minister is common Chairman; Rajasthan is in the Northern Zonal Council. North Eastern Council is separate (NEC Act, 1971).
13. Art. 301-307 - freedom of trade, commerce and intercourse; Art. 304(b) State restrictions need the President's previous sanction.
14. Art. 352 National Emergency - grounds war, external aggression or armed rebellion; 'armed rebellion' replaced 'internal disturbance' by the 44th Amendment, 1978.
15. Art. 352 procedure - written recommendation of the Union Cabinet; approval by both Houses within one month by special majority; continues 6 months at a time; Lok Sabha can revoke by simple majority (notice of 1/10th members).
16. National Emergency proclaimed thrice - 1962 (Chinese aggression), 1971 (Pakistan war), 1975 (internal disturbance).
17. Art. 358 - Art. 19 automatically suspended, and only when the emergency is on grounds of war/external aggression (44th Amendment). Art. 359 - President may suspend enforcement of other FRs, but never Art. 20 and Art. 21.
18. Art. 355 - duty of the Union to protect States against external aggression and internal disturbance.
19. Art. 356 President's Rule - approval within 2 months, 6 months at a time, maximum 3 years; beyond 1 year only if a National Emergency is in force and the Election Commission certifies that elections

cannot be held (44th Amendment).

20. President's Rule has been imposed in Rajasthan 4 times: 1967, 1977, 1980 and 1992-93 (the last being the longest, about a year).
21. S.R. Bommai v. Union of India (1994) - Art. 356 proclamation is subject to judicial review; majority is to be tested on the floor of the House; secularism is part of the basic structure.
22. Art. 360 Financial Emergency - never proclaimed in India.
23. Art. 368 - amendment procedure; Bill may start in either House, needs special majority, no joint sitting; 24th Amendment (1971) made the President's assent obligatory.
24. Ratification by half the State legislatures (simple majority) is needed for: election of the President, extent of executive power of Union/States, Supreme Court and High Courts, distribution of legislative powers, any List of the 7th Schedule, representation of States in Parliament, and Art. 368 itself.
25. Amendment landmarks: 1st (1951) 9th Schedule and Art. 15(4); 7th (1956) States reorganisation; 24th (1971) Parliament's power over FRs; 26th (1971) abolition of privy purses; 42nd (1976) 'mini-Constitution'.
26. 44th (1978) right to property made a legal right under Art. 300A; 52nd (1985) anti-defection, 10th Schedule; 61st (1988) voting age 21 to 18; 69th (1991) Delhi as NCT (Art. 239AA).
27. 73rd and 74th (1992) panchayats and municipalities; 86th (2002) Art. 21A right to education; 91st (2003) Council of Ministers capped at 15%; 97th (2011) co-operative societies, Art. 43B, Part IX-B.
28. 101st (2016) GST; 102nd (2018) NCBC constitutional status (Art. 338B, 342A); 103rd (2019) 10% EWS reservation (Art. 15(6), 16(6)); 104th (2019) SC/ST reservation extended to 2030 and Anglo-Indian nomination discontinued; 105th (2021) States' power to identify SEBCs; 106th (2023) one-third reservation for women (Art. 330A, 332A, 334A).
29. Schedules: 1 States and UTs; 2 emoluments; 3 oaths; 4 Rajya Sabha seats; 5 Scheduled Areas; 6 tribal areas of Assam, Meghalaya, Tripura, Mizoram; 7 three Lists; 8 languages (22); 9 land-reform laws (1st Amendment); 10 anti-defection; 11 panchayats (29 items); 12 municipalities (18 items).
30. Art. 371 series: 371A Nagaland, 371B Assam, 371C Manipur, 371D/E Andhra Pradesh, 371F Sikkim, 371G Mizoram, 371H Arunachal Pradesh, 371I Goa, 371J Karnataka (Hyderabad-Karnataka, 98th Amendment 2012).

1. Residuary powers of legislation are vested in the Parliament by which Article of the Constitution?

- | | |
|-----------------|-----------------|
| (A) Article 246 | (B) Article 248 |
| (C) Article 249 | (D) Article 254 |

2. Parliament can legislate on a subject of the State List in the national interest if the Rajya Sabha passes a resolution to that effect under which Article?

- | | |
|-----------------|-----------------|
| (A) Article 249 | (B) Article 250 |
| (C) Article 252 | (D) Article 253 |

3. Consider the following statements about Article 249 of the Constitution:

- I. The resolution must be passed by the Rajya Sabha by a majority of two-thirds of the members present and voting.
- II. The law so made remains in force for one year and the resolution can be renewed.
- III. Such a law can also be made by Parliament on a resolution of the Lok Sabha.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

4. Under which Article can Parliament legislate on a State List subject when two or more State Legislatures pass resolutions requesting it to do so?
- (A) Article 250 (B) Article 251
(C) Article 252 (D) Article 253
5. Which one of the following subjects was transferred from the State List to the Concurrent List by the 42nd Constitutional Amendment Act, 1976?
- (A) Public order (B) Police
(C) Education (D) Agriculture
6. Which one of the following subjects is NOT included in the Union List of the Seventh Schedule?
- (A) Atomic energy (B) Citizenship
(C) Public order (D) Banking
7. Match List-I with List-II and select the correct answer using the codes given below:
List-I (Article) List-II (Subject)
A. Article 268 1. Finance Commission
B. Article 275 2. Duties levied by the Union but collected and appropriated by the States
C. Article 280 3. Discretionary grants by the Union
D. Article 282 4. Statutory grants-in-aid to States
- (A) A-2, B-4, C-1, D-3
(B) A-4, B-2, C-3, D-1
(C) A-2, B-1, C-4, D-3
(D) A-3, B-4, C-1, D-2
8. Statutory grants-in-aid to needy States, charged on the Consolidated Fund of India, are provided under which Article?
- (A) Article 270 (B) Article 275
(C) Article 280 (D) Article 282
9. The Goods and Services Tax Council has been constituted under which Article of the Constitution?
- (A) Article 246A (B) Article 269A
(C) Article 279A (D) Article 280
10. Consider the following statements about the Goods and Services Tax Council:
I. The Union Finance Minister is its Chairperson.
II. Decisions are taken by a majority of not less than three-fourths of the weighted votes of the members present and voting.
III. The vote of the Central Government has a weightage of one-half of the total votes cast.
Which of the statements given above are correct? **HARD**
- (A) I and II only
(B) II and III only
(C) I and III only
(D) I, II and III
11. Adjudication of disputes relating to the waters of inter-State rivers is provided for under which Article?
- (A) Article 261 (B) Article 262
(C) Article 263 (D) Article 265
12. The Inter-State Council was set up in 1990 by a Presidential Order on the recommendation of which body?
- (A) Punchhi Commission (B) Sarkaria Commission
(C) Rajamannar Committee (D) Administrative Reforms Commission

- 13.** Which one of the following statements about the Zonal Councils is NOT correct?
- (A) They were created by the States Reorganisation Act, 1956
 - (B) They are statutory and not constitutional bodies
 - (C) The Union Home Minister is the common chairman of all Zonal Councils
 - (D) Rajasthan is a member of the Central Zonal Council
- 14.** Freedom of trade, commerce and intercourse throughout the territory of India is guaranteed by which Article?
- (A) Article 299
 - (B) Article 300A
 - (C) Article 301
 - (D) Article 304
- 15.** Which Article imposes a duty on the Union to protect every State against external aggression and internal disturbance?
- (A) Article 352
 - (B) Article 355
 - (C) Article 356
 - (D) Article 360
- 16.** After the 44th Constitutional Amendment Act, 1978, a National Emergency under Article 352 can be proclaimed on which of the following grounds?
- (A) War, external aggression or internal disturbance
 - (B) War, external aggression or armed rebellion
 - (C) War, armed rebellion or failure of constitutional machinery
 - (D) External aggression, armed rebellion or financial instability
- 17.** Consider the following statements about the proclamation of a National Emergency:
- I. The President can proclaim it only on the written recommendation of the Union Cabinet.
 - II. It must be approved by both Houses of Parliament within one month by a special majority.
 - III. Once approved, it continues for six months at a time.
- Which of the statements given above are correct?
- (A) I and II only
 - (B) I and III only
 - (C) II and III only
 - (D) I, II and III
- 18.** A National Emergency has been proclaimed in India on how many occasions?
- (A) Two
 - (B) Three
 - (C) Four
 - (D) Five
- 19.** Consider the following statements about Articles 358 and 359:
- I. Article 19 is automatically suspended only when the National Emergency is declared on grounds of war or external aggression.
 - II. Article 359 empowers the President to suspend the enforcement of Articles 20 and 21 as well.
- Which of the statements given above is/are correct?
- (A) I only
 - (B) II only
 - (C) Both I and II
 - (D) Neither I nor II
- 20.** What is the maximum period for which President's Rule under Article 356 can normally continue in a State?
- (A) One year
 - (B) Two years
 - (C) Three years
 - (D) Five years

21. Consider the following statements about President's Rule under Article 356:

I. The proclamation must be approved by both Houses of Parliament within two months.

II. Extension beyond one year requires that a National Emergency be in operation and that the Election Commission certify that elections cannot be held.

III. Approval of the proclamation requires a special majority in both Houses.

Which of the statements given above are correct? **HARD**

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

22. How many times has President's Rule been imposed in the State of Rajasthan? **RAS PRE 2016, 2024**

- (A) Two
- (B) Three
- (C) Four
- (D) Five

23. President's Rule was imposed in Rajasthan in all of the following years EXCEPT: **RAS PRE 2013**

- (A) 1967
- (B) 1977
- (C) 1980
- (D) 1985

24. In which year was President's Rule imposed in Rajasthan for the first time? **RAS PRE 2013, 2024**

- (A) 1952
- (B) 1967
- (C) 1971
- (D) 1977

25. In which case did the Supreme Court hold that a proclamation under Article 356 is subject to judicial review and that the majority of a government must be tested on the floor of the House?

- (A) Kesavananda Bharati case
- (B) Minerva Mills case
- (C) Indra Sawhney case
- (D) S.R. Bommai case

26. Which one of the following statements about a Financial Emergency is correct?

- (A) It has been proclaimed once, in 1991
- (B) It is declared under Article 360 and has never been proclaimed
- (C) It can be proclaimed only on the advice of the Finance Commission
- (D) It automatically suspends Article 19

27. Arrange the following Constitutional Amendment Acts in correct chronological order of their enactment:

I. Anti-defection (Tenth Schedule)

II. Fundamental Duties

III. Reduction of voting age to 18 years

IV. Right to property made a legal right

- (A) II, IV, I, III
- (B) IV, II, III, I
- (C) II, I, IV, III
- (D) I, II, III, IV

28. Consider the following statements about the procedure for amending the Constitution under Article 368:

- I. An amendment Bill can be introduced in either House of Parliament.
- II. There is no provision for a joint sitting in case of a deadlock between the two Houses.
- III. The President is bound to give assent to a Constitution Amendment Bill.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

29. Which one of the following amendments does NOT require ratification by the legislatures of half of the States? HARD

- (A) An amendment affecting the election of the President
- (B) An amendment altering the Seventh Schedule
- (C) An amendment to the Fundamental Rights
- (D) An amendment altering the representation of States in Parliament

30. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Amendment Act) List-II (Subject)

- A. 1st Amendment 1. Anti-defection
- B. 52nd Amendment 2. Ninth Schedule
- C. 61st Amendment 3. Right to education
- D. 86th Amendment 4. Voting age lowered to 18 years RAS PRE 2023

- (A) A-2, B-1, C-4, D-3
- (B) A-1, B-2, C-3, D-4
- (C) A-2, B-4, C-1, D-3
- (D) A-3, B-1, C-4, D-2

31. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Amendment Act) List-II (Subject)

- A. 73rd Amendment 1. Goods and Services Tax
- B. 91st Amendment 2. Panchayati Raj institutions
- C. 101st Amendment 3. Ten per cent reservation for economically weaker sections
- D. 103rd Amendment 4. Size of the Council of Ministers limited to 15 per cent RAS PRE 2021, 2024

- (A) A-2, B-4, C-1, D-3
- (B) A-2, B-1, C-4, D-3
- (C) A-4, B-2, C-1, D-3
- (D) A-2, B-4, C-3, D-1

32. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Amendment Act) List-II (Subject)

- A. 26th Amendment 1. Delhi made the National Capital Territory
- B. 42nd Amendment 2. Abolition of privy purses
- C. 44th Amendment 3. Fundamental Duties added
- D. 69th Amendment 4. Right to property made a legal right

- (A) A-2, B-3, C-4, D-1
- (B) A-3, B-2, C-1, D-4
- (C) A-2, B-4, C-3, D-1
- (D) A-1, B-3, C-4, D-2

33. Which Constitutional Amendment Act gave constitutional status to co-operative societies by inserting Part IX-B and Article 43B?

- (A) 95th Amendment
- (B) 97th Amendment
- (C) 99th Amendment
- (D) 100th Amendment

34. The National Commission for Backward Classes was granted constitutional status by which amendment?

- (A) 89th Amendment
- (B) 93rd Amendment
- (C) 102nd Amendment
- (D) 105th Amendment

35. The 106th Constitutional Amendment Act, 2023 relates to which of the following?

- (A) Reservation for economically weaker sections
- (B) One-third reservation of seats for women in the Lok Sabha and State Legislative Assemblies
- (C) Constitutional status to the National Commission for Backward Classes
- (D) Extension of Scheduled Caste reservation to 2030

36. Which Constitutional Amendment Act discontinued the nomination of Anglo-Indian members to the Lok Sabha and State Legislative Assemblies?

- (A) 95th Amendment
- (B) 102nd Amendment
- (C) 104th Amendment
- (D) 105th Amendment

37. Which one of the following pairs of amendment and subject is NOT correctly matched? **HARD**

- (A) 7th Amendment - Reorganisation of States
- (B) 24th Amendment - Power of Parliament to amend Fundamental Rights
- (C) 71st Amendment - Addition of Konkani, Manipuri and Nepali to the Eighth Schedule
- (D) 92nd Amendment - Right to education

38. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Schedule) List-II (Subject)

- A. Second Schedule 1. Allocation of seats in the Rajya Sabha
- B. Fourth Schedule 2. Emoluments of the President, Governors and Judges
- C. Ninth Schedule 3. Anti-defection provisions
- D. Tenth Schedule 4. Land reform and other laws immune from challenge

RAS PRE 2018

- (A) A-2, B-1, C-4, D-3
- (B) A-1, B-2, C-3, D-4
- (C) A-2, B-4, C-1, D-3
- (D) A-2, B-1, C-3, D-4

39. Which Schedule of the Constitution contains provisions for the administration and control of Scheduled Areas and Scheduled Tribes?

- (A) Fourth Schedule
- (B) Fifth Schedule
- (C) Sixth Schedule
- (D) Eleventh Schedule

40. The Sixth Schedule of the Constitution applies to the tribal areas of which group of States?

- (A) Assam, Meghalaya, Tripura and Mizoram
- (B) Assam, Nagaland, Manipur and Tripura
- (C) Meghalaya, Mizoram, Nagaland and Sikkim
- (D) Assam, Arunachal Pradesh, Meghalaya and Tripura

41. Consider the following statements about the Fifth Schedule:

- I. The Governor of a State having Scheduled Areas must submit an annual report to the President.
- II. A Tribes Advisory Council is to be established, with three-fourths of its members drawn from the Scheduled Tribe representatives in the Legislative Assembly.

Which of the statements given above is/are correct? **HARD**

- (A) I only
- (B) II only
- (C) Both I and II
- (D) Neither I nor II

42. Special provisions with respect to the State of Nagaland, protecting Naga customary law and ownership of land and resources, are contained in which Article?

- (A) Article 370
- (B) Article 371A
- (C) Article 371C
- (D) Article 371G

43. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (State)

- A. Article 371D 1. Sikkim
- B. Article 371F 2. Andhra Pradesh
- C. Article 371G 3. Karnataka
- D. Article 371J 4. Mizoram **HARD**

- (A) A-2, B-1, C-4, D-3
- (B) A-2, B-4, C-1, D-3
- (C) A-1, B-2, C-4, D-3
- (D) A-2, B-1, C-3, D-4

44. Consider the following statements:

- I. The Constitution originally had eight Schedules.
- II. The Eighth Schedule at present recognises 22 languages.
- III. The Ninth Schedule was added by the First Constitutional Amendment Act, 1951.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

45. Which one of the following statements about Article 254 is correct?

- (A) It deals with the residuary power of legislation
- (B) It provides that in case of repugnancy between a Union law and a State law on a Concurrent List subject, the Union law prevails
- (C) It empowers the Governor to reserve any Bill for the President
- (D) It restricts the taxing power of the States

IP08

Local Government: Rural and Urban

40 questions · 30 fact-sheet points

Must-know facts

1. Article 40 (DPSP) directs the State to organise village panchayats as units of self-government; Lord Ripon's Resolution of 1882 earned him the title 'Father of local self-government in India'.
2. Royal Commission on Decentralisation, 1907 (report 1909) recommended strengthening village panchayats; Montagu-Chelmsford Reforms 1919 made local self-government a transferred subject.
3. Balwant Rai Mehta Committee - appointed January 1957, reported November 1957; recommended 'democratic decentralisation' and a three-tier system: Gram Panchayat, Panchayat Samiti, Zila Parishad.
4. Rajasthan was the first State to implement Panchayati Raj - inaugurated by Jawaharlal Nehru at Nagaur on 2 October 1959; Andhra Pradesh was the second (1 November 1959).
5. Ashok Mehta Committee - appointed 1977, reported August 1978; recommended a two-tier system of Zila Parishad and Mandal Panchayat (for 15,000-20,000 population) and open participation of political parties.
6. G.V.K. Rao Committee, 1985 (Planning Commission) - called the system 'grass without roots'; recommended the Zila Parishad as the pivotal body and creation of the post of District Development Commissioner.
7. L.M. Singhvi Committee, 1986 - first recommended constitutional status for panchayats, treated the Gram Sabha as the embodiment of direct democracy and revived Nyaya Panchayats.
8. Other committees: Hanumantha Rao (1983), P.K. Thungon (1988), V.N. Gadgil (1988). The 64th Constitutional Amendment Bill, 1989 (Rajiv Gandhi) was passed by the Lok Sabha but defeated in the Rajya Sabha.
9. 73rd Amendment Act, 1992 - added Part IX (Articles 243 to 243-O) and the Eleventh Schedule; came into force 24 April 1993, now observed as National Panchayati Raj Day.
10. 74th Amendment Act, 1992 - added Part IX-A (Articles 243P to 243ZG) and the Twelfth Schedule; came into force 1 June 1993.
11. Eleventh Schedule - 29 functional items for panchayats, linked to Article 243G. Twelfth Schedule - 18 items for municipalities, linked to Article 243W.
12. Article 243A Gram Sabha; 243B constitution of panchayats (a State with population not exceeding 20 lakh need not constitute the intermediate level); 243C composition; 243D reservation.
13. Article 243E five-year term (fresh elections within six months of dissolution); 243F disqualifications, minimum age 21 years; 243H taxes and funds; 243I State Finance Commission; 243J audit; 243K State Election Commission; 243M non-application; 243-O bar on courts in electoral matters.
14. Article 243Q - three types of urban bodies: Nagar Panchayat (transitional area), Municipal Council (smaller urban area), Municipal Corporation (larger urban area).
15. Article 243S - Ward Committees are mandatory in municipalities with a population of three lakh or more; 243T reservation (States may also reserve for backward classes); 243U duration; 243W powers.
16. Article 243ZD District Planning Committee - four-fifths of members elected by elected members of the district panchayat and the municipalities from among themselves, in proportion to rural-urban population.
17. Article 243ZE Metropolitan Planning Committee - for a metropolitan area of population ten lakh or more; two-thirds of members elected by elected members of municipalities and chairpersons of panchayats in that area.

18. Reservation: seats for SCs and STs in proportion to population, and not less than one-third of total seats (including of SC/ST seats) reserved for women; offices of chairperson also reserved.
19. State Election Commission (Art. 243K/243ZA) - State Election Commissioner appointed by the Governor, removable only in the manner and on the grounds of a High Court judge.
20. State Finance Commission (Art. 243I/243Y) - constituted by the Governor every five years to review the finances of panchayats and municipalities.
21. PESA, the Panchayats (Extension to the Scheduled Areas) Act, was enacted in December 1996 on the recommendations of the Bhuria Committee (1995, chaired by Dilip Singh Bhuria).
22. PESA applies to Fifth Schedule areas in ten States: Andhra Pradesh, Telangana, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha and Rajasthan.
23. Under PESA the Gram Sabha approves plans and beneficiaries, owns minor forest produce, is consulted before land acquisition, controls minor water bodies and minor minerals, and may prohibit intoxicants.
24. Bikaner was the first princely state in Rajasthan to enact its own Gram Panchayat Act, in 1928; Jodhpur, Jaipur, Udaipur, Sirohi, Bharatpur and Karauli also legislated on panchayats before independence.
25. Rajasthan Panchayat Act, 1953 and the Rajasthan Panchayat Samitis and Zila Parishads Act, 1959 preceded the present Rajasthan Panchayati Raj Act, 1994; Mount Abu (1864) had Rajasthan's first municipality.
26. 15th Finance Commission recommended Rs 4.36 lakh crore for local governments for 2021-26 - Rs 2.36 lakh crore for rural and Rs 1.21 lakh crore for urban local bodies, plus Rs 70,051 crore of health grants.
27. 15th Finance Commission grants to local bodies are distributed among States on population (90 per cent weight) and area (10 per cent weight); the vertical devolution share of States is 41 per cent.
28. Article 280(3)(bb) and (c) require the Central Finance Commission to recommend measures to augment a State's Consolidated Fund to supplement the resources of panchayats and municipalities.
29. In a Municipal Corporation the Mayor is the ceremonial/deliberative head while the Municipal Commissioner, usually an IAS or State service officer, is the executive head.
30. Panchayat elections and municipal electoral rolls are outside the jurisdiction of ordinary courts by virtue of Articles 243-O and 243ZG; challenges lie only by election petition.

1. Which Directive Principle of State Policy requires the State to organise village panchayats as units of self-government?

- | | |
|----------------|-----------------|
| (A) Article 38 | (B) Article 39A |
| (C) Article 40 | (D) Article 43 |

2. Which committee first recommended a three-tier structure of Panchayati Raj and the concept of 'democratic decentralisation'?

- | | |
|----------------------------|---------------------------------|
| (A) Ashok Mehta Committee | (B) Balwant Rai Mehta Committee |
| (C) L.M. Singhvi Committee | (D) G.V.K. Rao Committee |

3. Consider the following statements about the Balwant Rai Mehta Committee's recommendations:

- I. The Gram Panchayat was to be directly elected.
- II. The Panchayat Samiti and Zila Parishad were to be indirectly constituted.
- III. The District Collector was to be the Chairman of the Zila Parishad.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

- 4.** Panchayati Raj was first inaugurated in India on 2 October 1959 at which place? RAS PRE 2018
- (A) Nagaur, Rajasthan (B) Shadnagar, Andhra Pradesh
(C) Ajmer, Rajasthan (D) Jaipur, Rajasthan
- 5.** The Ashok Mehta Committee, which reported in 1978, recommended which pattern of Panchayati Raj?
- (A) A single-tier system at the district level
(B) A two-tier system of Zila Parishad and Mandal Panchayat
(C) A three-tier system with the Panchayat Samiti as the pivot
(D) A four-tier system including a State-level council
- 6.** Which committee described the Panchayati Raj institutions of the time as 'grass without roots' and recommended creating the post of District Development Commissioner?
- (A) L.M. Singhvi Committee (B) P.K. Thungon Committee
(C) G.V.K. Rao Committee (D) V.N. Gadgil Committee
- 7.** Which committee was the first to recommend constitutional status for Panchayati Raj institutions?
- (A) Balwant Rai Mehta Committee (B) Ashok Mehta Committee
(C) G.V.K. Rao Committee (D) L.M. Singhvi Committee
- 8.** Match List-I with List-II and select the correct answer using the codes given below:
List-I (Committee) List-II (Year of appointment/report)
- A. Balwant Rai Mehta Committee 1. 1986
B. Ashok Mehta Committee 2. 1957
C. G.V.K. Rao Committee 3. 1977
D. L.M. Singhvi Committee 4. 1985
- (A) A-2, B-3, C-4, D-1
(B) A-2, B-4, C-3, D-1
(C) A-1, B-3, C-4, D-2
(D) A-2, B-3, C-1, D-4
- 9.** Match List-I with List-II and select the correct answer using the codes given below:
List-I (Committee) List-II (Key recommendation)
- A. Balwant Rai Mehta 1. Nyaya Panchayats and constitutional status
B. Ashok Mehta 2. District Development Commissioner
C. G.V.K. Rao 3. Democratic decentralisation in three tiers
D. L.M. Singhvi 4. Mandal Panchayat as the base unit HARD
- (A) A-3, B-4, C-2, D-1
(B) A-3, B-2, C-4, D-1
(C) A-4, B-3, C-2, D-1
(D) A-3, B-4, C-1, D-2
- 10.** The 64th Constitutional Amendment Bill on Panchayati Raj, introduced in 1989, met which fate?
- (A) It was passed and became the 64th Amendment Act
(B) It was passed by the Lok Sabha but defeated in the Rajya Sabha
(C) It was withdrawn before introduction
(D) It was struck down by the Supreme Court

11. Consider the following statements:

- I. The 73rd Constitutional Amendment Act came into force on 24 April 1993.
- II. The 74th Constitutional Amendment Act came into force on 1 June 1993.
- III. National Panchayati Raj Day is observed on 2 October every year.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

12. Consider the following statements:

- I. Part IX of the Constitution, relating to panchayats, comprises Articles 243 to 243-O.
- II. Part IX-A, relating to municipalities, comprises Articles 243P to 243ZG.
- III. Part IX-B, relating to co-operative societies, comprises Articles 243ZH to 243ZT.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

13. The Eleventh Schedule of the Constitution contains how many functional items for panchayats? RAS PRE 2021

- (A) 18
- (B) 22
- (C) 29
- (D) 31

14. Which one of the following subjects is NOT included in the Eleventh Schedule of the Constitution?

- (A) Minor forest produce
- (B) Fisheries
- (C) Rural electrification
- (D) Fire services

15. Which one of the following subjects is NOT included in the Twelfth Schedule of the Constitution?

- (A) Urban forestry and protection of the environment
- (B) Slum improvement and upgradation
- (C) Regulation of slaughter houses and tanneries
- (D) Minor irrigation and watershed development

16. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Provision) List-II (Article)

- A. Gram Sabha 1. Article 243K
- B. State Finance Commission for panchayats 2. Article 243A
- C. State Election Commission 3. Article 243ZD
- D. District Planning Committee 4. Article 243I

- (A) A-2, B-4, C-1, D-3
- (B) A-2, B-1, C-4, D-3
- (C) A-4, B-2, C-1, D-3
- (D) A-2, B-4, C-3, D-1

17. Under Article 243B, which States may choose not to constitute panchayats at the intermediate level?

- (A) States having a population not exceeding ten lakh
- (B) States having a population not exceeding twenty lakh
- (C) States having fewer than five districts
- (D) States with more than sixty per cent urban population

18. What is the minimum age prescribed for being chosen as a member of a panchayat?

- (A) 18 years
- (B) 21 years
- (C) 25 years
- (D) 30 years

19. Consider the following statements about the duration of panchayats:

- I. Every panchayat continues for five years from the date appointed for its first meeting unless dissolved earlier.
- II. If a panchayat is dissolved before the expiry of its term, fresh elections must be completed within six months.
- III. A panchayat constituted after dissolution serves a fresh full term of five years.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

20. The superintendence, direction and control of the preparation of electoral rolls and the conduct of all elections to panchayats is vested in the State Election Commission under which Article?

- (A) Article 243I
- (B) Article 243J
- (C) Article 243K
- (D) Article 243-O

21. The State Finance Commission for reviewing the financial position of panchayats is constituted by the Governor at what interval?

- (A) Every three years
- (B) Every four years
- (C) Every five years
- (D) Every ten years

22. Consider the following statements about reservation in panchayats under Article 243D:

- I. Seats are reserved for Scheduled Castes and Scheduled Tribes in proportion to their population in the panchayat area.
- II. Not less than one-third of the total number of seats is reserved for women.
- III. Reservation for women applies also within the seats reserved for Scheduled Castes and Scheduled Tribes.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

23. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Type of urban body) List-II (Area)

- A. Nagar Panchayat 1. A larger urban area
- B. Municipal Council 2. An area in transition from rural to urban
- C. Municipal Corporation 3. A metropolitan area of ten lakh or more population
- D. Metropolitan Planning Committee 4. A smaller urban area

- (A) A-2, B-4, C-1, D-3
- (B) A-2, B-1, C-4, D-3
- (C) A-4, B-2, C-1, D-3
- (D) A-2, B-4, C-3, D-1

24. Under Article 243S, the constitution of Ward Committees is mandatory in municipalities having a population of:

HARD

- (A) One lakh or more
- (B) Two lakh or more
- (C) Three lakh or more
- (D) Five lakh or more

25. Consider the following statements about the District Planning Committee:

I. It is provided for under Article 243ZD.

II. Four-fifths of its members are elected by the elected members of the district panchayat and the municipalities in the district from amongst themselves.

III. Its seats are filled in proportion to the ratio of rural and urban population in the district.

Which of the statements given above are correct? **RAS PRE 2024**

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

26. A Metropolitan Planning Committee is constituted under Article 243ZE for a metropolitan area having a population of:

- (A) Five lakh or more
- (B) Ten lakh or more
- (C) Twenty lakh or more
- (D) Fifty lakh or more

27. The Panchayats (Extension to the Scheduled Areas) Act was enacted in which year? **RAS PRE 2018**

- (A) 1992
- (B) 1994
- (C) 1996
- (D) 2000

28. PESA, 1996 was enacted largely on the recommendations of which committee?

- (A) Bhuria Committee
- (B) Singhvi Committee
- (C) Thungon Committee
- (D) Xaxa Committee

29. Consider the following statements about the powers of the Gram Sabha under PESA, 1996:

I. It has ownership of minor forest produce.

II. It must be consulted before land acquisition in Scheduled Areas.

III. Its recommendation is mandatory for grant of prospecting licences for minor minerals.

Which of the statements given above are correct? **RAS PRE 2021**

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

30. PESA, 1996 currently applies to the Fifth Schedule areas of how many States?

- (A) Eight
- (B) Nine
- (C) Ten
- (D) Twelve

31. Which one of the following States does NOT have Scheduled Areas covered by PESA, 1996?

- (A) Rajasthan
- (B) Himachal Pradesh
- (C) Jharkhand
- (D) West Bengal

32. Which was the first princely state in Rajasthan to enact its own Gram Panchayat Act? **RAS PRE 2016, 2024** **HARD**

- (A) Jaipur
- (B) Bikaner
- (C) Jodhpur
- (D) Udaipur

33. Which one of the following princely states of Rajasthan is NOT usually listed among those that enacted panchayat legislation before independence? **RAS PRE 2018** **HARD**

- (A) Jodhpur
- (B) Sirohi
- (C) Karauli
- (D) Dholpur

- 34.** Lord Ripon's Resolution of 1882, regarded as the Magna Carta of local self-government in India, is associated with which of the following?
- (A) Creation of the first Municipal Corporation in India
 - (B) Introduction of elected local boards with non-official chairmen
 - (C) Transfer of local self-government to Indian ministers
 - (D) Constitution of the Royal Commission on Decentralisation
- 35.** Which Article bars the interference of courts in electoral matters relating to panchayats? **HARD**
- (A) Article 243J
 - (B) Article 243M
 - (C) Article 243-O
 - (D) Article 243ZG
- 36.** Consider the following statements about the 15th Finance Commission's grants to local governments for 2021-26:
- I. The total recommended amount is about Rs 4.36 lakh crore.
 - II. Rural local bodies were allotted a larger share than urban local bodies.
 - III. Health grants were also to be channelled through local governments.
- Which of the statements given above are correct? **HARD**
- (A) I and II only
 - (B) II and III only
 - (C) I and III only
 - (D) I, II and III
- 37.** Grants recommended by the 15th Finance Commission for local bodies are distributed among the States on the basis of population and area with what weightage? **HARD**
- (A) Population 60 per cent and area 40 per cent
 - (B) Population 75 per cent and area 25 per cent
 - (C) Population 90 per cent and area 10 per cent
 - (D) Population and area equally
- 38.** In a Municipal Corporation, who is the executive head responsible for implementing the decisions of the corporation?
- (A) The Mayor
 - (B) The Deputy Mayor
 - (C) The Chairman of the Standing Committee
 - (D) The Municipal Commissioner
- 39.** Arrange the following in correct chronological order:
- I. Balwant Rai Mehta Committee report
 - II. Ashok Mehta Committee report
 - III. L.M. Singhvi Committee report
 - IV. 73rd Constitutional Amendment Act
- (A) I, II, III, IV
 - (B) II, I, III, IV
 - (C) I, III, II, IV
 - (D) I, II, IV, III
- 40.** Assertion (A): The 73rd Constitutional Amendment Act made it obligatory for States to hold panchayat elections at fixed intervals.
Reason (R): Article 243E provides a fixed five-year term for every panchayat and requires elections to be completed before the expiry of that term.
Select the correct answer using the codes given below:
- (A) Both A and R are true and R is the correct explanation of A
 - (B) Both A and R are true but R is not the correct explanation of A
 - (C) A is true but R is false
 - (D) A is false but R is true

IP09

Constitutional, Statutory and Executive Bodies

55 questions · 30 fact-sheet points

Must-know facts

1. Election Commission of India - Article 324; came into existence 25 January 1950; became a permanent multi-member body (CEC + 2 ECs) from 1 October 1993.
2. CEC is removed in the same manner and on the same grounds as a Judge of the Supreme Court; other Election Commissioners are removed by the President only on the recommendation of the CEC.
3. CEC and Other ECs (Appointment, Conditions of Service and Term of Office) Act, 2023 - Selection Committee = Prime Minister (chair) + a Union Cabinet Minister nominated by the PM + Leader of Opposition in Lok Sabha; a Search Committee headed by the Cabinet Secretary sends a panel of five names.
4. EC tenure 6 years or 65 years, whichever earlier; no re-appointment. Elections to panchayats and municipalities are conducted by the State Election Commission (Art. 243K/243ZA), not the ECI.
5. Art. 325 - no exclusion from electoral rolls on grounds of religion, race, caste or sex; Art. 326 - adult suffrage, voting age lowered 21 to 18 by the 61st Amendment, 1988; Art. 329 - bar to interference by courts in electoral matters.
6. Model Code of Conduct is non-statutory (evolved from Kerala, 1960); EVMs first used at Paravur, Kerala (1982); VVPAT first used at the Noksen (Nagaland) bye-election, 2013; NOTA introduced in 2013 after PUCL v. Union of India.
7. Delimitation Commission is a statutory (not constitutional) body - four so far: 1952, 1963, 1973, 2002. The 84th Amendment froze seat allocation till 2026; the 87th Amendment (2003) shifted delimitation to the 2001 Census.
8. UPSC - Articles 315-323. Chairman and members appointed by the President; term 6 years or 65 years (State PSC: 6 years or 62 years). At least one-half of the members must have held office for at least ten years under the Union or a State.
9. Art. 316 appointment; Art. 317 removal (only by the President on a report of the Supreme Court after inquiry); Art. 318 conditions of service; Art. 320 functions; Art. 321 extension of functions; Art. 322 expenses charged on the Consolidated Fund; Art. 323 reports.
10. UPSC is NOT consulted on reservations for backward classes (Art. 320(4) proviso). UPSC Chairman is ineligible for any further government employment; a UPSC member may become UPSC Chairman or Chairman of a State PSC.
11. Joint State Public Service Commission (Art. 315(2)) - created by Parliament by law on the request of two or more state legislatures; its chairman and members are appointed and removed by the President.
12. CAG - Art. 148; appointed by the President by warrant under his hand and seal; term 6 years or 65 years; removed like a Supreme Court judge; salary equal to a Supreme Court judge and charged on the Consolidated Fund of India; ineligible for further office under the Union or any State.
13. Art. 149 - duties and powers prescribed by Parliament (CAG's Duties, Powers and Conditions of Service Act, 1971); Art. 150 - form of accounts prescribed by the President on the advice of the CAG; Art. 151 - Union reports to the President, State reports to the Governor.
14. First CAG of India: V. Narahari Rao. Ambedkar called the CAG probably the most important officer under the Constitution. Accounts and audit were separated in 1976. CAG is the friend, philosopher and guide of the Public Accounts Committee.
15. Finance Commission - Art. 280; constituted by the President every fifth year or earlier; Chairman + 4 other members; qualifications fixed by the Finance Commission (Miscellaneous Provisions) Act, 1951; recommendations are advisory only.

16. FC functions: distribution of net proceeds of taxes between Union and States and inter se among States; principles of grants-in-aid out of the Consolidated Fund of India (Art. 275); measures to augment State funds to supplement panchayat and municipality resources (added by the 73rd and 74th Amendments); any other matter referred by the President. State borrowing limits (Art. 293) are NOT its mandate.
17. First FC (1951) - Chairman K.C. Neogy. 14th FC (Y.V. Reddy) raised devolution to 42%; 15th FC (N.K. Singh) recommended 41%. 16th FC constituted 31 December 2023 under Arvind Panagariya; report for 2026-27 to 2030-31 submitted 17 November 2025.
18. Attorney General - Art. 76; appointed by the President; must be qualified to be a Supreme Court judge; holds office during the pleasure of the President; right of audience in all courts and to speak in both Houses without a vote. First AG: M.C. Setalvad. Advocate General of a State - Art. 165.
19. National Commission for SCs - Art. 338; National Commission for STs - Art. 338A (both by the 89th Amendment, 2003; NCST effective 19 February 2004); National Commission for Backward Classes - Art. 338B (102nd Amendment, 2018). Each: Chairperson, Vice-Chairperson and three other members appointed by the President.
20. Art. 350B - Special Officer for Linguistic Minorities, inserted by the 7th Amendment, 1956 on the recommendation of the States Reorganisation Commission; appointed by the President.
21. NHRC - Protection of Human Rights Act, 1993. Chairperson: a person who has been Chief Justice of India OR a Judge of the Supreme Court (widened by the 2019 Amendment). Term 3 years or 70 years (reduced from 5 years in 2019).
22. NHRC composition after 2019: Chairperson + 5 full-time members (one serving/retired SC judge, one serving/retired HC Chief Justice, three members of whom at least one woman) + deemed members (chairpersons of NCSC, NCST, NCW, NCBC, NCPDR and the Chief Commissioner for Persons with Disabilities).
23. NHRC selection committee: Prime Minister (chair), Speaker of the Lok Sabha, Deputy Chairman of the Rajya Sabha, Leaders of Opposition in both Houses, Union Home Minister. NHRC cannot inquire into a violation more than one year old; its recommendations are not binding; it cannot punish.
24. CVC - recommended by the Santhanam Committee on Prevention of Corruption; set up by executive resolution on 11 February 1964; made statutory by the CVC Act, 2003 following Vineet Narain (1997). First CVC: Nittoor Srinivasa Rau.
25. CVC composition: Central Vigilance Commissioner (chairperson) + not more than two Vigilance Commissioners; appointed by the President on the recommendation of a committee of the Prime Minister, the Union Home Minister and the Leader of Opposition in the Lok Sabha; term 4 years or 65 years. CVC exercises superintendence over the CBI in Prevention of Corruption Act cases.
26. CBI - set up 1 April 1963 by a Home Ministry resolution; derives police powers from the Delhi Special Police Establishment Act, 1946; needs State consent under Section 6; under the Ministry of Personnel (DoPT). Director appointed on the recommendation of the PM, the LoP in Lok Sabha and the CJI or an SC judge nominated by him; minimum tenure 2 years, extendable up to 5 years (2021 amendment).
27. Lokpal and Lokayuktas Act, 2013 (assent 1 January 2014, in force 16 January 2014) - Lokpal = Chairperson + maximum 8 members, at least half judicial; term 5 years or 70 years. Selection Committee: PM, Speaker of Lok Sabha, LoP in Lok Sabha, CJI or his nominee, one eminent jurist. First Lokpal: Justice Pinaki Chandra Ghose (2019).
28. NITI Aayog - executive resolution of 1 January 2015, replacing the Planning Commission (set up 15 March 1950 by a Cabinet resolution). PM is ex officio Chairperson; Governing Council = all Chief Ministers + Lieutenant Governors of UTs; CEO of the rank of Secretary to the Government of India. First Vice-Chairman: Arvind Panagariya. It is a think tank and allocates no funds.
29. National Development Council - set up 6 August 1952; neither constitutional nor statutory; chaired by the Prime Minister. Law Commission of India - a non-statutory executive body; the first Law Commission of independent India (1955) was chaired by M.C. Setalvad.
30. NGT - National Green Tribunal Act, 2010; established 18 October 2010, principal bench at New Delhi; India was the third country in the world (after Australia and New Zealand) to set up such a body. CCI -

Competition Act, 2002, established 14 October 2003. NCW - National Commission for Women Act, 1990 (functioning from 31 January 1992). NCPCR - Commissions for Protection of Child Rights Act, 2005 (set up March 2007).

1. The Election Commission of India is constituted under which Article of the Constitution? **RAS PRE 2023**

- (A) Article 324 (B) Article 326
(C) Article 320 (D) Article 329

2. Consider the following statements about the Election Commission of India:

I. The Chief Election Commissioner can be removed from office in the same manner and on the same grounds as a Judge of the Supreme Court.

II. An Election Commissioner other than the Chief Election Commissioner can be removed by the President only on the recommendation of the Chief Election Commissioner.

III. The Election Commission conducts elections to panchayats and municipalities in the States.

Which of the statements given above are correct? **RAS PRE 2024**

- (A) I and II only
(B) II and III only
(C) I and III only
(D) I, II and III

3. Under the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, the Selection Committee that recommends names for appointment consists of

- (A) The Prime Minister, a Union Cabinet Minister nominated by the Prime Minister and the Leader of Opposition in the Lok Sabha
(B) The Prime Minister, the Leader of Opposition in the Lok Sabha and the Chief Justice of India
(C) The President, the Prime Minister and the Chief Justice of India
(D) The Vice-President, the Speaker of the Lok Sabha and the Prime Minister

4. The voting age in India was reduced from 21 years to 18 years by which Constitutional Amendment Act?

- (A) 61st Amendment (B) 44th Amendment
(C) 42nd Amendment (D) 73rd Amendment

5. NOTA (None of the Above) was introduced as an option for voters in 2013 following the Supreme Court's judgment in

- (A) S.R. Bommai v. Union of India
(B) Kihoto Hollohan v. Zachillhu
(C) Indra Sawhney v. Union of India
(D) People's Union for Civil Liberties v. Union of India

6. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Subject)

A. Article 324 1. No person to be ineligible for inclusion in electoral rolls on grounds of religion, race, caste or sex

B. Article 325 2. Superintendence, direction and control of elections vested in the Election Commission

C. Article 326 3. Bar to interference by courts in electoral matters

D. Article 329 4. Elections to the House of the People and State Legislative Assemblies on the basis of adult suffrage

- (A) A-2, B-1, C-4, D-3
(B) A-2, B-4, C-1, D-3
(C) A-1, B-2, C-4, D-3
(D) A-2, B-1, C-3, D-4

- 7.** The Delimitation Commission of India is **HARD**
- (A) a statutory body constituted under an Act of Parliament
 - (B) a body constituted by an executive order of the Union Cabinet
 - (C) a constitutional body appointed under Article 82
 - (D) a standing committee of the Election Commission of India
- 8.** The Union Public Service Commission is dealt with in which group of Articles of the Constitution?
- (A) Articles 280-283
 - (B) Articles 338-342
 - (C) Articles 324-329
 - (D) Articles 315-323
- 9.** A member of the Union Public Service Commission holds office for a term of six years or until he attains the age of
- (A) 60 years
 - (B) 62 years
 - (C) 70 years
 - (D) 65 years
- 10.** A member of a State Public Service Commission can be removed on the ground of misbehaviour by **HARD**
- (A) the Governor, after an inquiry by the High Court
 - (B) the Governor, on the advice of the State Council of Ministers
 - (C) the State Legislature by a resolution passed by a special majority
 - (D) the President, after an inquiry held by the Supreme Court
- 11.** Consider the following statements regarding the Union Public Service Commission:
- I. Not less than one-half of the members of the Commission must be persons who have held office for at least ten years under the Government of India or a State Government.
- II. The expenses of the Commission are charged on the Consolidated Fund of India.
- III. The Chairman of the UPSC is eligible for re-appointment as Chairman on the expiry of his term.
- Which of the statements given above are correct?
- (A) I and III only
 - (B) II and III only
 - (C) I and II only
 - (D) I, II and III
- 12.** Which one of the following is NOT a function of the Union Public Service Commission?
- (A) Conducting examinations for appointment to the services of the Union
 - (B) Advising on disciplinary matters affecting a person serving under the Government of India
 - (C) Advising on claims for reimbursement of legal expenses incurred by a civil servant in defending legal proceedings
 - (D) Making reservations of appointments in favour of any backward class of citizens
- 13.** Match List-I with List-II and select the correct answer using the codes given below:
- List-I (Article) List-II (Provision relating to Public Service Commissions)
- A. Article 315 1. Removal and suspension of a member of a Public Service Commission
- B. Article 317 2. Constitution of Public Service Commissions for the Union and the States
- C. Article 320 3. Expenses charged on the Consolidated Fund
- D. Article 322 4. Functions of Public Service Commissions
- (A) A-2, B-4, C-1, D-3
 - (B) A-2, B-1, C-4, D-3
 - (C) A-1, B-2, C-3, D-4
 - (D) A-2, B-1, C-3, D-4

14. The Comptroller and Auditor General of India is appointed by the President under which Article of the Constitution? RAS

PRE 2021

- | | |
|-----------------|-----------------|
| (A) Article 145 | (B) Article 151 |
| (C) Article 149 | (D) Article 148 |

15. The Comptroller and Auditor General of India holds office for a term of six years or until he attains the age of

- | | |
|--------------|--------------|
| (A) 60 years | (B) 62 years |
| (C) 70 years | (D) 65 years |

16. Consider the following statements about the Comptroller and Auditor General of India:

I. He can be removed from office by the President in the same manner as a Judge of the Supreme Court.

II. His salary is charged on the Consolidated Fund of India.

III. He is eligible for further office under the Government of India after ceasing to hold office.

Which of the statements given above are correct? RAS PRE 2023

- (A) I, II and III
 (B) I and III only
 (C) II and III only
 (D) I and II only

17. The duties and powers of the Comptroller and Auditor General of India are prescribed by Parliament under

- | | |
|-----------------|-----------------|
| (A) Article 149 | (B) Article 150 |
| (C) Article 148 | (D) Article 151 |

18. Which one of the following statements about the Comptroller and Auditor General of India is NOT correct?

- (A) He exercises control over the issue of money from the Consolidated Fund at the time of expenditure.
 (B) He is the head of the Indian Audit and Accounts Department.
 (C) He audits the accounts of government companies.
 (D) He audits all expenditure from the Consolidated Fund of India and of each State.

19. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Article) List-II (Provision relating to the CAG)

- A. Article 148 1. Form of accounts of the Union and the States
 B. Article 149 2. Audit reports to be laid before the legislature
 C. Article 150 3. Appointment, oath and conditions of service
 D. Article 151 4. Duties and powers as prescribed by Parliament

- (A) A-4, B-3, C-1, D-2
 (B) A-3, B-1, C-4, D-2
 (C) A-3, B-4, C-1, D-2
 (D) A-3, B-4, C-2, D-1

20. The Finance Commission is constituted by the President of India under which Article of the Constitution? RAS PRE

2024

- | | |
|-----------------|-----------------|
| (A) Article 275 | (B) Article 293 |
| (C) Article 282 | (D) Article 280 |

21. The Finance Commission consists of a Chairman and

- | | |
|------------------------|-------------------------|
| (A) four other members | (B) three other members |
| (C) two other members | (D) five other members |

22. Which one of the following is NOT a function assigned to the Finance Commission under Article 280 of the Constitution?

RAS PRE 2024 HARD

- (A) Recommending the distribution of the net proceeds of taxes between the Union and the States
- (B) Recommending the principles governing grants-in-aid to the States out of the Consolidated Fund of India
- (C) Fixing the annual borrowing limits of State Governments under Article 293
- (D) Recommending measures needed to augment the Consolidated Fund of a State to supplement the resources of panchayats and municipalities

23. Consider the following statements about the Finance Commission of India:

I. The qualifications of its members are determined by Parliament by law.

II. Its recommendations are binding on the Government of India.

III. The recommendations relating to panchayats and municipalities were added to its terms of reference by the 73rd and 74th Amendments.

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

24. The Sixteenth Finance Commission, which submitted its report for the award period 2026-27 to 2030-31, was chaired by

- (A) N.K. Singh
- (B) Vijay Kelkar
- (C) Arvind Panagariya
- (D) Y.V. Reddy

25. The Fifteenth Finance Commission recommended that the share of the States in the divisible pool of central taxes be

- (A) 41 per cent
- (B) 32 per cent
- (C) 42 per cent
- (D) 50 per cent

26. The Attorney General of India is appointed by the President under which Article of the Constitution?

- (A) Article 74
- (B) Article 78
- (C) Article 76
- (D) Article 165

27. Consider the following statements about the Attorney General of India:

I. He must be a person qualified to be appointed a Judge of the Supreme Court.

II. He has the right to speak and take part in the proceedings of both Houses of Parliament, but without a right to vote.

III. He holds office for a fixed term of five years.

Which of the statements given above are correct?

- (A) I and II only
- (B) I and III only
- (C) II and III only
- (D) I, II and III

28. The National Commission for Backward Classes was given constitutional status by inserting Article 338B through the

- (A) 89th Amendment Act, 2003
- (B) 101st Amendment Act, 2016
- (C) 102nd Amendment Act, 2018
- (D) 105th Amendment Act, 2021

29. The National Commission for Scheduled Tribes was created as a separate body by which Constitutional Amendment Act?

- (A) 65th Amendment Act
- (B) 86th Amendment Act
- (C) 89th Amendment Act
- (D) 91st Amendment Act

30. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Body) List-II (Constitutional provision)

- A. National Commission for Scheduled Castes 1. Article 338A
B. National Commission for Scheduled Tribes 2. Article 350B
C. National Commission for Backward Classes 3. Article 338
D. Special Officer for Linguistic Minorities 4. Article 338B

- (A) A-3, B-1, C-2, D-4
(B) A-3, B-4, C-1, D-2
(C) A-1, B-3, C-4, D-2
(D) A-3, B-1, C-4, D-2

31. Which one of the following is NOT a constitutional body?

- (A) National Commission for Scheduled Castes (B) National Commission for Women
(C) National Commission for Backward Classes (D) Finance Commission

32. The National Human Rights Commission was established under

- (A) the Protection of Civil Rights Act, 1955 (B) the Human Rights Commission Act, 2000
(C) Article 338 of the Constitution (D) the Protection of Human Rights Act, 1993

33. After the Protection of Human Rights (Amendment) Act, 2019, who among the following is eligible to be appointed Chairperson of the National Human Rights Commission? RAS PRE 2023

- (A) Only a person who has been Chief Justice of India
(B) Any person who has been Chief Justice of a High Court
(C) A person who has been Chief Justice of India or a Judge of the Supreme Court
(D) Any person of eminence in the field of human rights

34. Consider the following statements about the National Human Rights Commission:

I. Its Chairperson and members are appointed by the President on the recommendation of a six-member committee headed by the Prime Minister.

II. The term of the Chairperson and members is three years or until the age of seventy years, whichever is earlier.

III. The Commission can inquire into a violation of human rights that occurred more than one year before the complaint.

Which of the statements given above are correct?

- (A) I and III only
(B) II and III only
(C) I and II only
(D) I, II and III

35. Which one of the following statements about the National Human Rights Commission is NOT correct?

- (A) Its recommendations are advisory and not binding on the government.
(B) It has the powers of a civil court while inquiring into complaints.
(C) It can intervene in any proceeding involving an allegation of violation of human rights pending before a court.
(D) It can itself punish a public servant found guilty of violating human rights.

36. As per the Protection of Human Rights Act as amended in 2019, apart from the Chairperson, how many full-time members does the National Human Rights Commission have? HARD

- (A) Three (B) Four
(C) Five (D) Six

- 37.** Which one of the following is a member of the committee that recommends appointments to the National Human Rights Commission? **HARD**
- (A) Chief Justice of India (B) Attorney General of India
(C) Union Home Minister (D) Vice-President of India
- 38.** The Central Vigilance Commission was set up in 1964 on the recommendation of **RAS PRE 2018, 2024**
- (A) the Kothari Committee (B) the Ashok Mehta Committee
(C) the Gorwala Report (D) the Santhanam Committee
- 39.** The Central Vigilance Commission was conferred statutory status by an Act of Parliament in the year
- (A) 1997 (B) 1998
(C) 2003 (D) 2005
- 40.** The Central Vigilance Commissioner is appointed by the President on the recommendation of a committee consisting of the Prime Minister, the Leader of Opposition in the Lok Sabha and **RAS PRE 2024**
- (A) the Union Minister of Home Affairs (B) the Chief Justice of India
(C) the Speaker of the Lok Sabha (D) the Union Finance Minister
- 41.** Consider the following statements about the Central Vigilance Commission:
- I. It consists of a Central Vigilance Commissioner and not more than two Vigilance Commissioners.
II. Its members hold office for a term of four years or until they attain the age of 65 years, whichever is earlier.
III. It exercises superintendence over the functioning of the Central Bureau of Investigation in matters relating to the Prevention of Corruption Act.
- Which of the statements given above are correct?
- (A) I and II only
(B) II and III only
(C) I and III only
(D) I, II and III
- 42.** The Central Bureau of Investigation derives its police powers from
- (A) the Delhi Special Police Establishment Act, 1946
(B) the CBI Act, 1963
(C) the Central Vigilance Commission Act, 2003
(D) the Code of Criminal Procedure, 1973
- 43.** The Director of the Central Bureau of Investigation is appointed on the recommendation of a committee comprising the Prime Minister, the Leader of Opposition in the Lok Sabha and **HARD**
- (A) the Chief Justice of India or a Supreme Court Judge nominated by him
(B) the Union Home Minister
(C) the Central Vigilance Commissioner
(D) the Cabinet Secretary
- 44.** The Lokpal and Lokayuktas Act was enacted by Parliament in the year
- (A) 2011 (B) 2019
(C) 2014 (D) 2013

45. Consider the following statements about the Lokpal:

- I. The Lokpal consists of a Chairperson and a maximum of eight members.
- II. Not less than fifty per cent of the members shall be judicial members.
- III. The Chairperson and members hold office for a term of five years or until the age of seventy years, whichever is earlier.

Which of the statements given above are correct?

- (A) I and II only
- (B) I, II and III
- (C) I and III only
- (D) II and III only

46. NITI Aayog was constituted on

- (A) 15 August 2014
- (B) 26 January 2015
- (C) 1 April 2015
- (D) 1 January 2015

47. Consider the following statements about NITI Aayog:

- I. The Prime Minister is its ex officio Chairperson.
- II. Its Governing Council comprises the Chief Ministers of all States and the Lieutenant Governors of Union Territories.
- III. It is a statutory body created by an Act of Parliament.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

48. The National Development Council was set up in the year

- (A) 1950
- (B) 1964
- (C) 1956
- (D) 1952

49. Arrange the following bodies in the chronological order of their establishment, beginning with the earliest:

- I. Central Vigilance Commission
- II. National Human Rights Commission
- III. Central Information Commission
- IV. NITI Aayog

- (A) I, II, III, IV
- (B) II, I, III, IV
- (C) I, III, II, IV
- (D) II, III, I, IV

50. Arrange the following Acts in the chronological order of their enactment, beginning with the earliest:

- I. Protection of Human Rights Act
- II. Delhi Special Police Establishment Act
- III. Lokpal and Lokayuktas Act
- IV. Central Vigilance Commission Act

- (A) II, IV, I, III
- (B) I, II, III, IV
- (C) II, I, IV, III
- (D) II, I, III, IV

51. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Body) List-II (Authority that appoints its head)

- A. Comptroller and Auditor General 1. President, on the recommendation of a committee of the PM, Home Minister and Leader of Opposition in Lok Sabha
 B. Central Vigilance Commissioner 2. President, by warrant under his hand and seal
 C. Chief Information Commissioner 3. President, on the recommendation of a committee of the PM, Leader of Opposition in Lok Sabha and a Union Cabinet Minister nominated by the PM
 D. Chairperson of NITI Aayog 4. Holds office ex officio as Prime Minister

HARD

- (A) A-2, B-1, C-3, D-4
 (B) A-2, B-3, C-1, D-4
 (C) A-1, B-2, C-3, D-4
 (D) A-2, B-1, C-4, D-3

52. Which one of the following pairs of a body and the year of its establishment is NOT correctly matched?

- (A) Central Information Commission - 2003 (B) Competition Commission of India - 2003
 (C) National Commission for Women - 1992 (D) National Green Tribunal - 2010

53. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Body) List-II (Statute or provision under which it is set up)

- A. National Commission for Women 1. Commissions for Protection of Child Rights Act, 2005
 B. National Commission for Protection of Child Rights 2. Right to Information Act, 2005
 C. Central Information Commission 3. National Commission for Women Act, 1990
 D. National Green Tribunal 4. National Green Tribunal Act, 2010

- (A) A-1, B-3, C-2, D-4
 (B) A-3, B-1, C-2, D-4
 (C) A-3, B-2, C-1, D-4
 (D) A-3, B-1, C-4, D-2

54. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Office) List-II (First incumbent in India)

- A. Comptroller and Auditor General 1. Nittoor Srinivasa Rau
 B. Central Vigilance Commissioner 2. Wajahat Habibullah
 C. Chief Information Commissioner 3. Pinaki Chandra Ghose
 D. Lokpal 4. V. Narahari Rao

HARD

- (A) A-1, B-4, C-2, D-3
 (B) A-4, B-2, C-1, D-3
 (C) A-4, B-1, C-2, D-3
 (D) A-4, B-1, C-3, D-2

55. Consider the following statements about the National Commission for Scheduled Castes:

- I. While investigating any matter it has all the powers of a civil court trying a suit.
 II. It presents an annual report to the President, who causes it to be laid before both Houses of Parliament.
 III. Before the 89th Amendment Act, 2003 there was a single National Commission for Scheduled Castes and Scheduled Tribes.

Which of the statements given above are correct?

- (A) I and II only
 (B) II and III only
 (C) I, II and III
 (D) I and III only

IP10

Governance: Public Policy, Citizen Charter, Social Audit, Grievance Redressal, RTI

40 questions · 30 fact-sheet points

Must-know facts

1. Public policy - Thomas Dye: 'whatever governments choose to do or not to do'. Harold Lasswell is regarded as the father of the policy sciences.
2. Stages of the policy process: problem identification and agenda setting - policy formulation - policy adoption/legitimation - policy implementation - policy evaluation.
3. Policy models: rational-comprehensive and bounded rationality (Herbert Simon), incrementalism or 'muddling through' (Charles Lindblom), mixed scanning (Amitai Etzioni), garbage-can model (Cohen, March and Olsen), systems model (David Easton - inputs, conversion, outputs, feedback).
4. Citizen's Charter originated in the United Kingdom in 1991 under Prime Minister John Major; its six principles are Quality, Choice, Standards, Value, Accountability and Transparency.
5. India adopted the Citizen's Charter after the Conference of Chief Ministers on 24 May 1997, which approved the 'Action Plan for Effective and Responsive Government'; DARPG is the nodal agency and the first charters were issued in 1997.
6. Components of a Citizen's Charter: (1) Vision and Mission statement, (2) details of business transacted by the organisation, (3) details of clients, (4) details of services provided to each client group, (5) details of the grievance redress mechanism and how to access it, (6) expectations from the clients.
7. A Citizen's Charter is NOT legally enforceable or justiciable; penalty or punishment for defaulting officials is not one of its components. Its main criticism is that it is drafted without consulting the citizens it serves.
8. Sevottam - DARPG's service delivery excellence model; three modules: Citizen's Charter, Public Grievance Redress, and Service Delivery Capability. Its assessment standard is IS 15700:2005 of the Bureau of Indian Standards.
9. Second ARC - constituted 31 August 2005; chairman Veerappa Moily (later V. Ramachandran); submitted 15 reports. First report: 'Right to Information - Master Key to Good Governance' (2006); 4th 'Ethics in Governance'; 11th 'Promoting e-Governance - The SMART Way Forward'; 12th 'Citizen Centric Administration - The Heart of Governance'.
10. First ARC - constituted 1966, chairman Morarji Desai and later K. Hanumanthaiah; submitted 20 reports; recommended the setting up of Lokpal and Lokayuktas (1966).
11. SMART governance = Simple, Moral, Accountable, Responsive and Transparent. The World Bank popularised the term 'good governance' in its 1992 report 'Governance and Development'.
12. The United Nations lists eight attributes of good governance: participation, rule of law, transparency, responsiveness, consensus orientation, equity and inclusiveness, effectiveness and efficiency, and accountability.
13. Social audit - first given a statutory mandate in India by Section 17 of MGNREGA, 2005, which requires the Gram Sabha to conduct social audits of all works in the Gram Panchayat; the MGNREGA Audit of Scheme Rules, 2011 were framed in consultation with the CAG.
14. Meghalaya was the first state to enact a dedicated social audit law - the Meghalaya Community Participation and Public Services Social Audit Act, 2017.
15. Rajasthan's Jan Sunwai (public hearing) tradition grew out of the Mazdoor Kisan Shakti Sangathan founded in 1990 at Devdungri, Rajsamand (Aruna Roy, Nikhil Dey, Shankar Singh); slogan 'Hamara Paisa, Hamara Hisab'. It led the national campaign for the right to information.

16. CPGRAMS - Centralised Public Grievance Redress and Monitoring System, the online grievance portal run by DARPG (Ministry of Personnel, Public Grievances and Pensions). The redressal timeline was cut from 30 days to 21 days in August 2024; an appeal lies to the Appellate Authority within 30 days.
17. RTI Act, 2005 - assent 15 June 2005; came fully into force 12 October 2005; replaced the Freedom of Information Act, 2002; extends to the whole of India (Jammu and Kashmir's separate RTI Act was repealed in 2019).
18. RTI preamble: 'to provide for setting out the practical regime of right to information for citizens to secure access to information under the control of public authorities, in order to promote transparency and accountability in the working of every public authority'.
19. Section 4 - suo motu / proactive disclosure by every public authority; Section 6 - request for information (no reason need be given, only contact details); Section 5 - designation of PIOs and Assistant PIOs.
20. Section 7 time limits: 30 days ordinarily; 48 hours where the information concerns the life or liberty of a person; 35 days if the application is filed with an Assistant PIO; 40 days where third-party interest is involved; free information if the deadline is missed.
21. Section 8 - ten grounds of exemption; Section 8(2) - public interest override; Section 8(3) - information more than 20 years old ordinarily to be supplied; Section 9 - rejection on copyright grounds; Section 10 - severability; Section 11 - third-party information.
22. Section 19 - first appeal to the officer senior to the PIO within 30 days; second appeal to the CIC or SIC within 90 days; the burden of proving that a refusal was justified lies on the PIO.
23. Section 20 - penalty of Rs. 250 per day of delay, subject to a maximum of Rs. 25,000, imposed on the Public Information Officer, plus recommendation for disciplinary action for persistent default.
24. Section 22 - the RTI Act overrides the Official Secrets Act, 1923 and any inconsistent law; Section 23 - bar on the jurisdiction of courts; Section 24 - intelligence and security organisations listed in the Second Schedule are exempt, except for allegations of corruption and human rights violations.
25. Central Information Commission (Section 12) - Chief Information Commissioner and not more than ten Information Commissioners, appointed by the President on the recommendation of a committee of the Prime Minister (chair), the Leader of Opposition in the Lok Sabha and a Union Cabinet Minister nominated by the Prime Minister. First CIC: Wajahat Habibullah.
26. State Information Commission (Section 15) - State Chief Information Commissioner and up to ten State Information Commissioners appointed by the Governor on the recommendation of a committee of the Chief Minister (chair), the Leader of Opposition in the Legislative Assembly and a State Cabinet Minister nominated by the Chief Minister.
27. RTI (Amendment) Act, 2019 amended Sections 13, 16 and 27: the term and salary of the CIC, ICs and their state counterparts are no longer fixed in the statute but are 'as prescribed by the Central Government'. The RTI Rules, 2019 fix the term at three years (earlier five years); the upper age limit of 65 years remains.
28. Whistle Blowers Protection Act, 2014 (assent 9 May 2014) - allows public interest disclosures to the Central or State Vigilance Commission and protects the complainant's identity; it followed the murder of Satyendra Dubey (2003) and the 2nd ARC's 'Ethics in Governance' report. It is still not fully operational.
29. Right to public services: Madhya Pradesh was the first state (Public Service Guarantee Act, 2010, effective 25 September 2010), followed by Bihar (2011). Rajasthan enacted the Guaranteed Delivery of Public Services Act, 2011 and the Rajasthan Right to Hearing Act, 2012 - the first such law in India.
30. E-governance: National e-Governance Plan approved 18 May 2006 with 27 Mission Mode Projects (later 31); e-Kranti (NeGP 2.0) approved March 2015 with 44 MMPs; Digital India launched 1 July 2015 with nine pillars and three vision areas; UMANG launched 2017; DBT launched 1 January 2013; UIDAI set up January 2009 and made statutory by the Aadhaar Act, 2016 (first Aadhaar issued 29 September 2010 at Tembhli, Nandurbar, Maharashtra). Interaction types: G2C, G2B, G2G and G2E.

- 1.** Public policy has been defined as 'whatever governments choose to do or not to do' by
- (A) Harold Lasswell (B) David Easton
(C) Charles Lindblom (D) Thomas R. Dye
- 2.** The incremental model of public policy making, popularly described as 'the science of muddling through', is associated with
- (A) Herbert Simon (B) Charles E. Lindblom
(C) Amitai Etzioni (D) Yehezkel Dror
- 3.** Match List-I with List-II and select the correct answer using the codes given below:
List-I (Model of policy making) List-II (Thinker)
- A. Bounded rationality 1. David Easton
B. Incrementalism 2. Amitai Etzioni
C. Mixed scanning 3. Herbert Simon
D. Systems model 4. Charles Lindblom
- (A) A-3, B-4, C-1, D-2
(B) A-3, B-2, C-4, D-1
(C) A-1, B-4, C-2, D-3
(D) A-3, B-4, C-2, D-1
- 4.** Consider the following statements about the public policy process:
- I. Agenda setting is the stage at which a problem is recognised as requiring government action.
II. Policy evaluation assesses whether a policy has achieved its stated objectives.
III. Policy implementation is carried out mainly by the legislature.
- Which of the statements given above are correct?
- (A) I, II and III
(B) II and III only
(C) I and III only
(D) I and II only
- 5.** The concept of the Citizen's Charter was first introduced in 1991 in
- (A) the United States of America (B) the United Kingdom
(C) Canada (D) Australia
- 6.** Which one of the following is NOT a component of a Citizen's Charter? RAS PRE 2021, 2024
- (A) Vision and mission statement of the organisation
(B) Details of the grievance redress mechanism and how to access it
(C) Provision of penalty and punishment for officials who fail to meet the declared standards
(D) Expectations of the organisation from its clients
- 7.** In India, the decision to formulate Citizen's Charters for central and state government departments was taken at the Conference of Chief Ministers held in
- (A) May 1994 (B) May 1997
(C) November 2000 (D) March 2005

8. Consider the following statements about the Citizen's Charter in India:

- I. It is a legally enforceable document and a citizen can sue for its breach.
- II. The Department of Administrative Reforms and Public Grievances is the nodal agency for Citizen's Charters.
- III. A common criticism is that charters are drafted without consulting the citizens and staff concerned.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

9. The three modules of the Sevottam model of service delivery excellence are

- (A) Citizen's Charter, Public Grievance Redress and Service Delivery Capability
- (B) Transparency, Accountability and Participation
- (C) Planning, Implementation and Evaluation
- (D) Right to Information, Right to Services and Right to Hearing

10. The Indian Standard against which an organisation's compliance with the Sevottam model is certified is HARD

- (A) IS 9001:2000
- (B) IS 15700:2005
- (C) IS 14001:2004
- (D) IS 18001:2007

11. Assertion (A): A Citizen's Charter does not create legally enforceable rights in favour of a citizen.

Reason (R): A Citizen's Charter is a voluntary declaration by an organisation of the standards of service it commits itself to deliver, and is not a statute.

Select the correct answer using the codes given below:

- (A) Both A and R are true and R is the correct explanation of A
- (B) Both A and R are true but R is not the correct explanation of A
- (C) A is true but R is false
- (D) A is false but R is true

12. Social audit was given a statutory basis in India for the first time by

- (A) the Right to Information Act, 2005
- (B) Section 17 of the MGNREGA, 2005
- (C) the Panchayats (Extension to Scheduled Areas) Act, 1996
- (D) the 73rd Constitutional Amendment Act, 1992

13. Which State became the first in India to enact a dedicated law providing for social audit of public services? HARD

- (A) Rajasthan
- (B) Andhra Pradesh
- (C) Meghalaya
- (D) Kerala

14. The Jan Sunwai (public hearing) movement that led to the national campaign for the right to information originated in Rajasthan with

- (A) the Bharat Krishak Samaj
- (B) the Mazdoor Kisan Shakti Sangathan
- (C) the Rajasthan Prajamandal
- (D) the Seva Mandir

15. Consider the following statements about social audit:

- I. It is an audit of the social and community impact of a programme conducted with the participation of the beneficiaries.
- II. Under MGNREGA it is to be conducted by the Gram Sabha at least once in every six months.
- III. It replaces the financial audit conducted by the Comptroller and Auditor General.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I and III only
- (D) I, II and III

16. In August 2024 the Government of India reduced the timeline for redressal of public grievances received on CPGRAMS to

- (A) 7 days
- (B) 15 days
- (C) 21 days
- (D) 30 days

17. Consider the following statements about the grievance redress machinery of the Government of India:

- I. The Directorate of Public Grievances functions under the Cabinet Secretariat.
- II. Every Ministry and Department has a designated Public Grievance Officer.
- III. An appeal against the disposal of a grievance on CPGRAMS lies to the Appellate Authority.

Which of the statements given above are correct? **HARD**

- (A) I and II only
- (B) II and III only
- (C) I, II and III
- (D) I and III only

18. The Right to Information Act, 2005 came fully into force with effect from **RAS PRE 2018**

- (A) 15 June 2005
- (B) 12 October 2005
- (C) 26 January 2006
- (D) 1 April 2006

19. Under Section 7 of the Right to Information Act, 2005, information concerning the life or liberty of a person must be supplied within **RAS PRE 2021**

- (A) 24 hours
- (B) 48 hours
- (C) 72 hours
- (D) 7 days

20. Under Section 20 of the Right to Information Act, 2005, the maximum penalty that can be imposed on a Public Information Officer is **RAS PRE 2023**

- (A) Rs. 10,000
- (B) Rs. 25,000
- (C) Rs. 50,000
- (D) Rs. 1,00,000

21. Under Section 19 of the Right to Information Act, 2005, a second appeal to the Central or State Information Commission must be filed within

- (A) 30 days
- (B) 45 days
- (C) 60 days
- (D) 90 days

22. Consider the following statements about the Right to Information Act, 2005:

- I. An applicant is not required to give any reason for requesting information.
- II. The Act has an overriding effect over the Official Secrets Act, 1923.
- III. Intelligence and security organisations listed in the Second Schedule are wholly outside the Act even in respect of allegations of corruption.

Which of the statements given above are correct?

- (A) I, II and III
- (B) II and III only
- (C) I and III only
- (D) I and II only

23. The Central Information Commission consists of the Chief Information Commissioner and

- (A) not more than five Information Commissioners
- (B) not more than eight Information Commissioners
- (C) not more than ten Information Commissioners
- (D) not more than twelve Information Commissioners

24. The Chief Information Commissioner is appointed by the President on the recommendation of a committee consisting of the Prime Minister, the Leader of Opposition in the Lok Sabha and RAS PRE 2023

- (A) the Chief Justice of India
- (B) a Union Cabinet Minister nominated by the Prime Minister
- (C) the Speaker of the Lok Sabha
- (D) the Central Vigilance Commissioner

25. Consider the following statements about the State Information Commission:

- I. Its members are appointed by the Governor.
- II. The recommending committee is headed by the Chief Minister and includes the Leader of Opposition in the Legislative Assembly.
- III. It consists of a State Chief Information Commissioner and not more than ten State Information Commissioners.

Which of the statements given above are correct? HARD

- (A) I and II only
- (B) I, II and III
- (C) I and III only
- (D) II and III only

26. As a result of the Right to Information (Amendment) Act, 2019 and the RTI Rules, 2019, the term of office of the Chief Information Commissioner is RAS PRE 2021 HARD

- | | |
|---|--|
| (A) five years or until the age of 65 years | (B) three years or until the age of 65 years |
| (C) six years or until the age of 65 years | (D) five years or until the age of 62 years |

27. Which one of the following statements about the Right to Information (Amendment) Act, 2019 is NOT correct?

- (A) It amended Sections 13, 16 and 27 of the principal Act.
- (B) It removed the right of a citizen to file a second appeal before the Information Commission.
- (C) It empowered the Central Government to prescribe the salaries of Information Commissioners.
- (D) It empowered the Central Government to prescribe the term of office of Information Commissioners.

28. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Section of the RTI Act, 2005) List-II (Subject)

- A. Section 4 1. Exemptions from disclosure of information
- B. Section 6 2. Constitution of the Central Information Commission
- C. Section 8 3. Suo motu disclosure by public authorities
- D. Section 12 4. Request for obtaining information

- (A) A-3, B-4, C-1, D-2
- (B) A-3, B-1, C-4, D-2
- (C) A-4, B-3, C-1, D-2
- (D) A-3, B-4, C-2, D-1

29. The Whistle Blowers Protection Act was passed by Parliament in the year

- (A) 2011
- (B) 2013
- (C) 2014
- (D) 2019

30. Which State was the first in India to enact a law guaranteeing the time-bound delivery of public services to citizens?

- (A) Bihar
- (B) Madhya Pradesh
- (C) Rajasthan
- (D) Delhi

31. The National e-Governance Plan was approved by the Government of India in the year

- (A) 2003
- (B) 2006
- (C) 2010
- (D) 2015

32. The Digital India programme was launched on

- (A) 15 August 2014
- (B) 26 January 2015
- (C) 1 July 2015
- (D) 1 April 2016

33. Consider the following statements about e-governance in India:

- I. e-Kranti, also called NeGP 2.0, was approved in 2015 with 44 Mission Mode Projects.
- II. UMANG is a single mobile platform providing access to a range of central and state government services.
- III. The Direct Benefit Transfer programme was launched on 1 January 2013.

Which of the statements given above are correct?

- (A) I, II and III
- (B) II and III only
- (C) I and III only
- (D) I and II only

34. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Initiative) List-II (Year of launch)

- A. Direct Benefit Transfer 1. 2006
- B. National e-Governance Plan 2. 2017
- C. Digital India 3. 2013
- D. UMANG 4. 2015

- (A) A-1, B-3, C-4, D-2
- (B) A-3, B-1, C-4, D-2
- (C) A-3, B-4, C-1, D-2
- (D) A-3, B-1, C-2, D-4

35. The first report of the Second Administrative Reforms Commission was titled

- (A) Ethics in Governance
- (B) Right to Information: Master Key to Good Governance
- (C) Citizen Centric Administration: The Heart of Governance
- (D) Promoting e-Governance: The SMART Way Forward

36. Consider the following statements about the Second Administrative Reforms Commission:

I. It was constituted in 2005.

II. Its first chairman was Veerappa Moily.

III. It submitted a total of fifteen reports.

Which of the statements given above are correct?

- (A) I and II only
- (B) II and III only
- (C) I, II and III
- (D) I and III only

37. Which one of the following is NOT among the attributes of good governance identified by the United Nations?

- (A) Participation and rule of law
- (B) Transparency and responsiveness
- (C) Equity and inclusiveness
- (D) Centralisation of decision making

38. Arrange the following legislations in chronological order of their enactment, beginning with the earliest:

I. Freedom of Information Act

II. Right to Information Act

III. Whistle Blowers Protection Act

IV. Meghalaya Community Participation and Public Services Social Audit Act

- (A) II, I, III, IV
- (B) I, II, III, IV
- (C) I, II, IV, III
- (D) II, I, IV, III

39. Which one of the following pairs is NOT correctly matched?

- (A) Social audit - First mandated in India by the Right to Information Act, 2005
- (B) CPGRAMS - Online grievance redress portal
- (C) Citizen's Charter - United Kingdom, 1991
- (D) Sevottam - Department of Administrative Reforms and Public Grievances

40. Match List-I with List-II and select the correct answer using the codes given below:

List-I (Report of the Second Administrative Reforms Commission) List-II (Report number)

A. Right to Information: Master Key to Good Governance 1. Fourth report

B. Ethics in Governance 2. Eleventh report

C. Promoting e-Governance: The SMART Way Forward 3. Twelfth report

D. Citizen Centric Administration: The Heart of Governance 4. First report

- (A) A-4, B-2, C-1, D-3
- (B) A-1, B-4, C-2, D-3
- (C) A-4, B-1, C-2, D-3
- (D) A-4, B-1, C-3, D-2

HARD

Answer key & explanations

IP01 – MAKING OF THE CONSTITUTION, PREAMBLE, SALIENT FEATURES, SOURCES

IP01.1 C	IP01.13 C	IP01.25 B	IP01.37 C
IP01.2 D	IP01.14 D	IP01.26 A	IP01.38 D
IP01.3 A	IP01.15 A	IP01.27 B	IP01.39 C
IP01.4 B	IP01.16 B	IP01.28 D	IP01.40 A
IP01.5 C	IP01.17 C	IP01.29 A	IP01.41 B
IP01.6 D	IP01.18 D	IP01.30 C	IP01.42 D
IP01.7 B	IP01.19 A	IP01.31 C	IP01.43 D
IP01.8 B	IP01.20 B	IP01.32 A	IP01.44 C
IP01.9 B	IP01.21 C	IP01.33 A	IP01.45 A
IP01.10 D	IP01.22 D	IP01.34 C	
IP01.11 B	IP01.23 C	IP01.35 B	
IP01.12 A	IP01.24 D	IP01.36 A	

IP02 – CITIZENSHIP AND FUNDAMENTAL RIGHTS

IP02.1 B	IP02.14 B	IP02.27 D	IP02.40 C
IP02.2 D	IP02.15 C	IP02.28 B	IP02.41 A
IP02.3 A	IP02.16 C	IP02.29 A	IP02.42 D
IP02.4 D	IP02.17 B	IP02.30 B	IP02.43 C
IP02.5 C	IP02.18 B	IP02.31 C	IP02.44 D
IP02.6 A	IP02.19 A	IP02.32 D	IP02.45 C
IP02.7 D	IP02.20 C	IP02.33 A	IP02.46 A
IP02.8 B	IP02.21 B	IP02.34 B	IP02.47 B
IP02.9 D	IP02.22 D	IP02.35 C	IP02.48 D
IP02.10 A	IP02.23 B	IP02.36 D	IP02.49 D
IP02.11 A	IP02.24 C	IP02.37 A	IP02.50 C
IP02.12 C	IP02.25 D	IP02.38 B	
IP02.13 C	IP02.26 D	IP02.39 B	

IP03 – DIRECTIVE PRINCIPLES AND FUNDAMENTAL DUTIES

IP03.1 B	IP03.10 B	IP03.19 C	IP03.28 D
IP03.2 A	IP03.11 A	IP03.20 A	IP03.29 B
IP03.3 D	IP03.12 D	IP03.21 C	IP03.30 C
IP03.4 C	IP03.13 B	IP03.22 B	IP03.31 B
IP03.5 A	IP03.14 A	IP03.23 D	IP03.32 A
IP03.6 B	IP03.15 C	IP03.24 A	IP03.33 C
IP03.7 D	IP03.16 D	IP03.25 B	IP03.34 A
IP03.8 A	IP03.17 A	IP03.26 C	IP03.35 A
IP03.9 C	IP03.18 B	IP03.27 A	

IP04 – UNION EXECUTIVE: PRESIDENT, VICE-PRESIDENT, PM AND COUNCIL OF MINISTERS

IP04.1 C	IP04.7 A	IP04.13 C	IP04.19 A
IP04.2 D	IP04.8 C	IP04.14 C	IP04.20 A
IP04.3 A	IP04.9 D	IP04.15 A	IP04.21 A
IP04.4 C	IP04.10 B	IP04.16 A	IP04.22 B
IP04.5 B	IP04.11 B	IP04.17 D	IP04.23 A
IP04.6 D	IP04.12 D	IP04.18 D	IP04.24 A

IP04.25 C	IP04.31 C	IP04.37 C	IP04.43 B
IP04.26 B	IP04.32 C	IP04.38 B	IP04.44 D
IP04.27 B	IP04.33 D	IP04.39 C	IP04.45 A
IP04.28 B	IP04.34 D	IP04.40 C	
IP04.29 D	IP04.35 B	IP04.41 D	
IP04.30 C	IP04.36 B	IP04.42 A	

IP05 – PARLIAMENT AND THE LEGISLATIVE PROCESS

IP05.1 B	IP05.13 B	IP05.25 B	IP05.37 B
IP05.2 C	IP05.14 B	IP05.26 A	IP05.38 A
IP05.3 A	IP05.15 A	IP05.27 C	IP05.39 A
IP05.4 C	IP05.16 C	IP05.28 D	IP05.40 C
IP05.5 D	IP05.17 B	IP05.29 B	IP05.41 D
IP05.6 C	IP05.18 C	IP05.30 B	IP05.42 D
IP05.7 A	IP05.19 A	IP05.31 C	IP05.43 A
IP05.8 C	IP05.20 C	IP05.32 D	IP05.44 D
IP05.9 D	IP05.21 A	IP05.33 D	IP05.45 A
IP05.10 C	IP05.22 A	IP05.34 C	
IP05.11 B	IP05.23 D	IP05.35 D	
IP05.12 D	IP05.24 B	IP05.36 B	

IP06 – JUDICIARY: SUPREME COURT, HIGH COURTS AND JUDICIAL REVIEW

IP06.1 A	IP06.11 B	IP06.21 B	IP06.31 B
IP06.2 A	IP06.12 A	IP06.22 D	IP06.32 B
IP06.3 B	IP06.13 A	IP06.23 C	IP06.33 A
IP06.4 A	IP06.14 D	IP06.24 A	IP06.34 C
IP06.5 C	IP06.15 D	IP06.25 C	IP06.35 D
IP06.6 A	IP06.16 B	IP06.26 D	IP06.36 B
IP06.7 B	IP06.17 D	IP06.27 B	IP06.37 D
IP06.8 C	IP06.18 C	IP06.28 A	IP06.38 B
IP06.9 C	IP06.19 C	IP06.29 D	IP06.39 D
IP06.10 A	IP06.20 B	IP06.30 D	IP06.40 A

IP07 – CENTRE-STATE RELATIONS, EMERGENCY, SCHEDULES AND AMENDMENTS

IP07.1 B	IP07.13 D	IP07.25 D	IP07.37 D
IP07.2 A	IP07.14 C	IP07.26 B	IP07.38 A
IP07.3 A	IP07.15 B	IP07.27 A	IP07.39 B
IP07.4 C	IP07.16 B	IP07.28 D	IP07.40 A
IP07.5 C	IP07.17 D	IP07.29 C	IP07.41 C
IP07.6 C	IP07.18 B	IP07.30 A	IP07.42 B
IP07.7 A	IP07.19 A	IP07.31 A	IP07.43 A
IP07.8 B	IP07.20 C	IP07.32 A	IP07.44 D
IP07.9 C	IP07.21 A	IP07.33 B	IP07.45 B
IP07.10 A	IP07.22 C	IP07.34 C	
IP07.11 B	IP07.23 D	IP07.35 B	
IP07.12 B	IP07.24 B	IP07.36 C	

IP08 – LOCAL GOVERNMENT: RURAL AND URBAN

IP08.1 C	IP08.3 D	IP08.5 B	IP08.7 D
IP08.2 B	IP08.4 A	IP08.6 C	IP08.8 A

IP08.9 A	IP08.17 B	IP08.25 D	IP08.33 D
IP08.10 B	IP08.18 B	IP08.26 B	IP08.34 B
IP08.11 A	IP08.19 A	IP08.27 C	IP08.35 C
IP08.12 D	IP08.20 C	IP08.28 A	IP08.36 D
IP08.13 C	IP08.21 C	IP08.29 D	IP08.37 C
IP08.14 D	IP08.22 D	IP08.30 C	IP08.38 D
IP08.15 D	IP08.23 A	IP08.31 D	IP08.39 A
IP08.16 A	IP08.24 C	IP08.32 B	IP08.40 A

IP09 – CONSTITUTIONAL, STATUTORY AND EXECUTIVE BODIES

IP09.1 A	IP09.15 D	IP09.29 C	IP09.43 A
IP09.2 A	IP09.16 D	IP09.30 D	IP09.44 D
IP09.3 A	IP09.17 A	IP09.31 B	IP09.45 B
IP09.4 A	IP09.18 A	IP09.32 D	IP09.46 D
IP09.5 D	IP09.19 C	IP09.33 C	IP09.47 A
IP09.6 A	IP09.20 D	IP09.34 C	IP09.48 D
IP09.7 A	IP09.21 A	IP09.35 D	IP09.49 A
IP09.8 D	IP09.22 C	IP09.36 C	IP09.50 C
IP09.9 D	IP09.23 B	IP09.37 C	IP09.51 A
IP09.10 D	IP09.24 C	IP09.38 D	IP09.52 A
IP09.11 C	IP09.25 A	IP09.39 C	IP09.53 B
IP09.12 D	IP09.26 C	IP09.40 A	IP09.54 C
IP09.13 B	IP09.27 A	IP09.41 D	IP09.55 C
IP09.14 D	IP09.28 C	IP09.42 A	

IP10 – GOVERNANCE: PUBLIC POLICY, CITIZEN CHARTER, SOCIAL AUDIT, GRIEVANCE REDRESSAL, RTI

IP10.1 D	IP10.11 A	IP10.21 D	IP10.31 B
IP10.2 B	IP10.12 B	IP10.22 D	IP10.32 C
IP10.3 D	IP10.13 C	IP10.23 C	IP10.33 A
IP10.4 D	IP10.14 B	IP10.24 B	IP10.34 B
IP10.5 B	IP10.15 A	IP10.25 B	IP10.35 B
IP10.6 C	IP10.16 C	IP10.26 B	IP10.36 C
IP10.7 B	IP10.17 C	IP10.27 B	IP10.37 D
IP10.8 B	IP10.18 B	IP10.28 A	IP10.38 B
IP10.9 A	IP10.19 B	IP10.29 C	IP10.39 A
IP10.10 B	IP10.20 B	IP10.30 B	IP10.40 C

IP01 – EXPLANATIONS

- (C) M. N. Roy** — M. N. Roy, a pioneer of the communist movement in India, first mooted the idea in 1934. The Indian National Congress adopted it as an official demand in 1935.
- (D) Cabinet Mission Plan, 1946** — The Assembly was constituted under the Cabinet Mission Plan of 1946; its members were elected indirectly by the provincial legislative assemblies through proportional representation with a single transferable vote.
- (A) 9 December 1946** — The first sitting took place on 9 December 1946 in the Constitution Hall, New Delhi. The Muslim League boycotted the sitting and demanded a separate constituent assembly.
- (B) Dr. Sachchidananda Sinha** — Dr. Sachchidananda Sinha, the oldest member, was made provisional President following French practice. Dr. Rajendra Prasad was later elected the permanent President.
- (C) 11 December 1946** — He was elected on 11 December 1946, along with H. C. Mukherjee as Vice-President; V. T. Krishnamachari was later elected a second Vice-President.

- 6. (D) B. N. Rau** — Sir B. N. Rau prepared the initial draft of the Constitution in October 1947. S. N. Mukherjee was the Chief Draftsman and H. V. R. Iyengar the Secretary of the Assembly.
- 7. (B) Jawaharlal Nehru** — Nehru's Objectives Resolution laid down the philosophy and guiding principles of the Constitution and became the basis of the Preamble.
- 8. (B) 22 January 1947** — Moved on 13 December 1946, it was adopted on 22 January 1947 after prolonged debate. Its substance was later reflected almost verbatim in the Preamble.
- 9. (B) Seven** — The seven-member Drafting Committee was chaired by Dr. B. R. Ambedkar. It was the most important of all the committees of the Assembly.
- 10. (D) T. T. Krishnamachari** — T. T. Krishnamachari replaced D. P. Khaitan; earlier N. Madhava Rau had replaced B. L. Mitter, who resigned on grounds of ill-health.
- 11. (B) 26 November 1949** — The Constitution was adopted on 26 November 1949, now observed as Constitution Day (Samvidhan Divas). It came into force on 26 January 1950.
- 12. (A) 2 years, 11 months and 18 days** — From 9 December 1946 to 26 November 1949 the Assembly took 2 years, 11 months and 18 days, holding 11 sessions over 165 days.
- 13. (C) 24 January 1950** — At the final session on 24 January 1950 the members signed the Constitution and also elected Dr. Rajendra Prasad as the first President of India.
- 14. (D) 395 Articles, 22 Parts and 8 Schedules** — The original Constitution had 395 Articles in 22 Parts and 8 Schedules. At present it has about 448 Articles, 25 Parts and 12 Schedules.
- 15. (A) 42nd Amendment Act, 1976** — The 42nd Amendment is the only amendment so far to have amended the Preamble. It changed 'Sovereign Democratic Republic' to 'Sovereign Socialist Secular Democratic Republic' and 'unity of the Nation' to 'unity and integrity of the Nation'.
- 16. (B) Berubari Union case, 1960** — In the Berubari Union case (1960) the Court held that the Preamble was not part of the Constitution, though it was a key to the minds of the makers.
- 17. (C) Kesavananda Bharati case** — Kesavananda Bharati (1973) reversed the Berubari view and held the Preamble to be part of the Constitution, amendable so long as the basic structure is not destroyed. This was reaffirmed in the LIC of India case (1995).
- 18. (D) 26 November 1949** — The Preamble ends with the words 'this twenty-sixth day of November, 1949'. Commencement, however, was on 26 January 1950.
- 19. (A) Ireland** — The Directive Principles, the method of election of the President and the nomination of members to the Rajya Sabha were all drawn from Ireland.
- 20. (B) Weimar Germany** — The suspension of Fundamental Rights during an emergency was taken from the Weimar Constitution of Germany.
- 21. (C) Japan** — 'Procedure established by law' comes from Japan, in contrast to the American 'due process of law'. Maneka Gandhi (1978) later infused due-process content into Article 21.
- 22. (D) A Union of States** — Article 1 says 'India, that is Bharat, shall be a Union of States'. Dr. Ambedkar explained that the term 'Union' signifies that the federation is not the result of an agreement and that no State has a right to secede.
- 23. (C) The languages recognised by the Constitution** — The Eighth Schedule now lists 22 languages. Sindhi was added by the 21st Amendment (1967) and Bodo, Dogri, Maithili and Santhali by the 92nd Amendment (2003).
- 24. (D) Prem Behari Narain Raizada** — Prem Behari Narain Raizada penned the manuscript; its decorative borders and illustrations were done by Nandalal Bose and his students at Shantiniketan.
- 25. (B) I and III only** — Members were elected indirectly by the provincial legislative assemblies, not directly by the people, so II is wrong. The 389 seats comprised 296 for British India and 93 for the princely states.
- 26. (A) II and III only** — The Preamble is non-justiciable and is not a source of any substantive power. Only the 42nd Amendment (1976) has amended it so far.
- 27. (B) I and II only** — The Objectives Resolution was moved on 13 December 1946 and adopted on 22 January 1947, not in 1949.
- 28. (D) I, II and III** — All three are correct. The other members were N. Gopalaswami Ayyangar, Syed Mohammad Saadullah, N. Madhava Rau and T. T. Krishnamachari.

- 29. (A) I and II only** — Article 4 expressly provides that laws made under Articles 2 and 3 are not to be deemed amendments under Article 368; they are passed by simple majority.
- 30. (C) II and III only** — India has single citizenship for the whole country, unlike the United States. Statements II and III are correct.
- 31. (C) I and II only** — The Directive Principles came from Ireland, not Canada. From Canada came the federation with a strong Centre and residuary powers with the Union.
- 32. (A) II and III only** — The Eleventh Schedule contains 29 subjects of panchayats (73rd Amendment); the 18 municipal subjects are in the Twelfth Schedule (74th Amendment).
- 33. (A) A-1, B-2, C-3, D-4** — Nehru chaired the Union Powers, Union Constitution and States Committees; Patel the Provincial Constitution and the Advisory Committee on Fundamental Rights and Minorities; Rajendra Prasad the Steering and Rules of Procedure Committees.
- 34. (C) A-3, B-1, C-4, D-2** — K. M. Munshi headed the Order of Business Committee, Alladi Krishnaswami Ayyar the Credentials Committee, G. V. Mavalankar the Committee on the Functions of the Assembly and B. Pattabhi Sitaramayya the House Committee.
- 35. (B) A-2, B-4, C-1, D-3** — The Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas, chaired by Sardar Patel, worked through these five sub-committees.
- 36. (A) A-3, B-4, C-1, D-2** — Ireland gave the nomination of Rajya Sabha members and the Directive Principles; Australia the Concurrent List and freedom of trade; Britain the rule of law; the USA judicial review.
- 37. (C) A-2, B-1, C-4, D-3** — The Fourth Schedule allocates Rajya Sabha seats, the Second lists emoluments, the Seventh contains the three Lists and the Sixth deals with the tribal areas of the four north-eastern States.
- 38. (D) A-3, B-4, C-2, D-1** — S. N. Mukherjee was Chief Draftsman, Nandalal Bose decorated the manuscript, H. V. R. Iyengar was Secretary and B. N. Rau the Constitutional Adviser.
- 39. (C) Jawaharlal Nehru** — Nehru chaired the Union Powers, Union Constitution and States Committees but was never on the Drafting Committee, which was headed by Dr. B. R. Ambedkar.
- 40. (A) USA - Fundamental Duties** — Fundamental Duties were borrowed from the Constitution of the erstwhile USSR, not the USA. From the USA came Fundamental Rights, judicial review and the office of Vice-President.
- 41. (B) It is a source of legislative power for the Government** — The Preamble is neither a source of power nor a source of limitation on power; it is non-justiciable. The other three statements are correct.
- 42. (D) Twelfth Schedule - Anti-defection provisions** — The Twelfth Schedule lists 18 subjects of municipalities, added by the 74th Amendment. The anti-defection provisions are in the Tenth Schedule.
- 43. (D) Dr. B. R. Ambedkar was elected its permanent Chairman** — Dr. Rajendra Prasad was the permanent President of the Assembly; Dr. Ambedkar chaired the Drafting Committee.
- 44. (C) I, II, III, IV** — 9 December 1946 (first meeting), 22 January 1947 (Objectives Resolution adopted), 29 August 1947 (Drafting Committee), 26 November 1949 (adoption).
- 45. (A) IV, III, II, I** — 21 February 1948 (Draft submitted), 26 November 1949 (adoption), 24 January 1950 (signing at the last session), 26 January 1950 (commencement).

IP02 – EXPLANATIONS

- 1. (B) Part II** — Part II covers Articles 5 to 11. The Constitution deals only with citizenship at its commencement; later matters are governed by the Citizenship Act, 1955.
- 2. (D) Article 11** — Article 11 gives Parliament plenary power over citizenship, in exercise of which it enacted the Citizenship Act, 1955.
- 3. (A) 1955** — The Citizenship Act, 1955 provides five modes of acquisition - birth, descent, registration, naturalisation and incorporation of territory - and three modes of loss.
- 4. (D) 2015** — The 2015 amendment created a single 'Overseas Citizen of India Cardholder' category. OCI cardholders have no right to vote, no right to hold constitutional office and no right to government employment.
- 5. (C) Five years** — The Act relaxes the naturalisation requirement to five years for Hindus, Sikhs, Buddhists, Jains, Parsis and Christians from Afghanistan, Bangladesh and Pakistan.

- 6. (A) 31 December 2014** — Migrants of the six specified communities from the three neighbouring countries who entered India on or before 31 December 2014 are not to be treated as illegal migrants.
- 7. (D) State** — For Part III, 'State' includes the Government and Parliament of India, the Government and legislature of each State, and all local and other authorities within India or under the control of the Government of India.
- 8. (B) Judicial review of laws inconsistent with Fundamental Rights** — Article 13 declares that any law inconsistent with the Fundamental Rights shall be void, and is the express constitutional basis of judicial review.
- 9. (D) Article 18** — Article 18 prohibits the State from conferring titles, except military and academic distinctions. National awards such as Bharat Ratna were upheld in *Balaji Raghavan v. Union of India* (1996).
- 10. (A) Six** — Article 19 originally guaranteed seven freedoms; the freedom to acquire, hold and dispose of property under Article 19(1)(f) was deleted by the 44th Amendment, 1978.
- 11. (A) 44th Amendment Act, 1978** — The 44th Amendment repealed Article 19(1)(f) and Article 31 and inserted Article 300A in Part XII, making property a constitutional or legal right.
- 12. (C) Article 300A** — Article 300A provides that no person shall be deprived of his property save by authority of law. It is not a Fundamental Right, so Article 32 cannot be invoked for its enforcement.
- 13. (C) Double jeopardy** — Article 20(2) says no person shall be prosecuted and punished for the same offence more than once. Clause (1) bars ex post facto criminal laws and clause (3) bars compelled self-incrimination.
- 14. (B) 24 hours** — The period of 24 hours excludes the time necessary for the journey from the place of arrest to the court. This protection is not available to enemy aliens or to persons under preventive detention.
- 15. (C) Three months** — Detention beyond three months requires the report of an advisory board. The 44th Amendment sought to reduce this to two months, but that provision was never brought into force.
- 16. (C) Traffic in human beings and forced labour** — Article 23 forbids traffic in human beings, begar and other similar forms of forced labour. It is available against the State as well as private persons.
- 17. (B) Fourteen years** — Article 24 sets the bar at 14 years. It is reinforced by the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986.
- 18. (B) 86th Amendment Act, 2002** — The 86th Amendment inserted Article 21A, substituted Article 45 and added Article 51A(k). It covers children of the age of six to fourteen years.
- 19. (A) 1 April 2010** — The RTE Act operationalised Article 21A from 1 April 2010, reserving 25 per cent of entry-level seats in specified private schools for disadvantaged children.
- 20. (C) Article 32** — Article 32, the right to constitutional remedies, is itself a Fundamental Right. It can be suspended only as provided by Article 359 during a National Emergency.
- 21. (B) Mandamus** — Mandamus means 'we command'. It does not lie against a private individual, against the President or a Governor, or to enforce a purely discretionary duty.
- 22. (D) Maneka Gandhi v. Union of India** — *Maneka Gandhi* (1978) overruled the narrow reading in *A. K. Gopalan* (1950) and introduced substantive due process into Article 21, opening the way for its later judicial expansion.
- 23. (B) K. S. Puttaswamy v. Union of India (2017)** — A nine-judge bench in *Puttaswamy* (2017) unanimously held privacy to be intrinsic to life and personal liberty under Article 21, overruling *M. P. Sharma* and *Kharak Singh* on that point.
- 24. (C) Olga Tellis v. Bombay Municipal Corporation** — *Olga Tellis* (1985), the pavement-dwellers case, held that the right to livelihood is an integral facet of the right to life. *Subhash Kumar* (1991) read in the right to a pollution-free environment.
- 25. (D) Establish and administer educational institutions of their choice** — Article 30 covers both religious and linguistic minorities. The right to conserve language, script and culture is guaranteed separately by Article 29.
- 26. (D) Members of the armed forces and forces charged with the maintenance of public order** — Article 33 covers the armed forces, paramilitary forces, police, intelligence agencies and analogous services. Only Parliament, not a State legislature, can make such a law.
- 27. (D) Eclipse** — The doctrine of eclipse was applied in *Bhikaji Narain Dhakras v. State of Madhya Pradesh* (1955); such a law is dormant, not dead.

- 28. (B) 103rd Amendment Act, 2019** — The 103rd Amendment enables up to 10 per cent reservation for economically weaker sections in education and public employment; it was upheld in *Janhit Abhiyan v. Union of India* (2022).
- 29. (A) I and II only** — India follows single citizenship. Articles 5 to 11 deal only with citizenship as it stood at the commencement of the Constitution.
- 30. (B) II and III only** — OCI cardholders have no right to vote, no right to hold constitutional posts and no right to ordinary government employment. Acquisition is by birth, descent, registration, naturalisation and incorporation of territory; loss by renunciation, termination and deprivation.
- 31. (C) I and III only** — Article 12 is deliberately wide - it takes in local bodies such as municipalities and panchayats and 'other authorities' such as statutory and non-statutory bodies under government control.
- 32. (D) I, II and III** — All three are correct. 'Equality before the law' is a negative concept of the absence of privilege; 'equal protection of the laws' is a positive concept of equal treatment in like circumstances.
- 33. (A) I and II only** — The Supreme Court has consistently held that the right to strike is a legal right, not a Fundamental Right. The 97th Amendment (2011) added the words 'or co-operative societies' to Article 19(1)(c).
- 34. (B) I and III only** — *Gian Kaur* (1996) held that the right to life does not include the right to die. Passive euthanasia with a living will was later permitted in *Common Cause* (2018).
- 35. (C) I and II only** — Article 22(3) expressly denies the safeguards of clauses (1) and (2) to enemy aliens and to persons detained under preventive detention laws.
- 36. (D) I, II and III** — All three are correct. Article 32 is confined to the enforcement of Fundamental Rights, while Article 226 extends to Fundamental Rights 'and for any other purpose'.
- 37. (A) I and II only** — Fundamental Rights available only to citizens are those under Articles 15, 16, 19, 29 and 30; all the rest are available to citizens and foreigners alike.
- 38. (B) II and III only** — High Courts also issue writs, under Article 226. Article 32 is placed in Part III and is therefore itself a Fundamental Right.
- 39. (B) A-3, B-4, C-1, D-2** — Article 24 bars child labour below 14 years, Article 28 deals with religious instruction, Article 14 with equality before the law and Article 17 with untouchability.
- 40. (C) A-4, B-3, C-1, D-2** — Prohibition is issued before a decision, to a judicial or quasi-judicial body only; certiorari is issued after a decision, to quash it.
- 41. (A) A-4, B-1, C-3, D-2** — *Vishaka* (1997) arose from Rajasthan and framed binding guidelines under Articles 14, 19 and 21 until Parliament enacted the Sexual Harassment of Women at Workplace Act, 2013.
- 42. (D) A-3, B-1, C-4, D-2** — The 93rd Amendment extended reservation to private unaided educational institutions, the First inserted Article 15(4), the 103rd created EWS reservation and the 86th made education a Fundamental Right.
- 43. (C) A-4, B-3, C-2, D-1** — Article 7 (not listed here) deals with the rights of citizenship of persons who migrated to Pakistan and later returned under a permit for resettlement.
- 44. (D) A-4, B-1, C-2, D-3** — Part III also contains the Right to Freedom of Religion (Articles 25-28) and the Right to Constitutional Remedies (Article 32).
- 45. (C) Freedom of speech and expression under Article 19** — The rights under Articles 15, 16, 19, 29 and 30 are confined to citizens. Articles 14, 20, 21, 21A, 22, 23, 24 and 25-28 are available to all persons.
- 46. (A) Marriage** — The five modes are birth, descent, registration, naturalisation and incorporation of territory. A foreign spouse of an Indian citizen acquires citizenship by registration, not by the fact of marriage.
- 47. (B) Article 18 - Abolition of untouchability** — Article 18 abolishes titles; untouchability is abolished by Article 17 and is enforced through the Protection of Civil Rights Act, 1955.
- 48. (D) Injunction** — Article 32 names five writs - habeas corpus, mandamus, prohibition, certiorari and quo warranto. An injunction is an ordinary civil remedy, not a constitutional writ.
- 49. (D) It is enforceable only against the Union Government** — Article 21A binds the State as defined in Article 12, which includes State Governments and local authorities. The RTE Act, 2009 gave it statutory shape from 1 April 2010.

50. (C) II, I, IV, III — A. K. Gopalan (1950), Maneka Gandhi (1978), Olga Tellis (1985) and Puttaswamy (2017) mark the successive stages in the widening of Article 21.

IP03 – EXPLANATIONS

- 1. (B) Part IV** — Part IV, Articles 36 to 51, contains the Directive Principles. Part IVA (Article 51A) contains the Fundamental Duties.
- 2. (A) Article 12** — Article 36 adopts the definition of 'State' given in Article 12, so the Directive Principles bind the Union, the States, local bodies and other authorities under government control.
- 3. (D) The 42nd Amendment Act, 1976** — Article 39A was added by the 42nd Amendment Act, 1976. It was given statutory shape by the Legal Services Authorities Act, 1987, under which NALSA and the Lok Adalats function.
- 4. (C) Article 40** — Article 40 is the Gandhian directive on village panchayats; it was the constitutional inspiration for the 73rd Amendment Act, 1992.
- 5. (A) Article 44** — Article 44 is a liberal-intellectual directive. The Supreme Court referred to it in the Shah Bano case (1985) and in Sarla Mudgal (1995).
- 6. (B) The 42nd Amendment Act, 1976** — Article 48A was inserted by the 42nd Amendment Act, 1976. Its counterpart among the Fundamental Duties is Article 51A(g).
- 7. (D) Article 50** — Article 50 is a liberal-intellectual directive. It was implemented largely through the Code of Criminal Procedure, 1973.
- 8. (A) Article 51** — Article 51 has four elements: promoting international peace and security, maintaining just and honourable relations between nations, fostering respect for international law and treaty obligations, and encouraging settlement of international disputes by arbitration.
- 9. (C) Article 47** — Article 47 is the constitutional basis of state prohibition policies. Article 48 deals with agriculture, animal husbandry and the prohibition of cow slaughter.
- 10. (B) The 97th Amendment Act, 2011** — The 97th Amendment Act, 2011 added Article 43B and Part IXB. In 2021 the Supreme Court struck down Part IXB so far as it applied to co-operative societies within a State, but Article 43B survives.
- 11. (A) early childhood care and education to all children until they complete the age of six years** — The original Article 45 (free and compulsory education up to 14 years) was converted into the Fundamental Right in Article 21A; Article 45 now covers children below six years.
- 12. (D) Article 37** — Article 37 also lays down that it shall be the duty of the State to apply these principles in making laws. Article 36 merely defines 'State' for Part IV.
- 13. (B) The 42nd Amendment Act, 1976** — The 42nd Amendment Act, 1976 added Part IVA containing the single Article 51A, with ten Fundamental Duties.
- 14. (A) The Sardar Swaran Singh Committee** — The Sardar Swaran Singh Committee was set up by the Congress party in 1976, during the internal emergency, to study the question of amending the Constitution.
- 15. (C) Eight** — The Committee recommended eight duties, but the 42nd Amendment Act, 1976 actually incorporated ten. The number rose to eleven with the 86th Amendment Act, 2002.
- 16. (D) six and fourteen years** — Article 51A(k) matches the age group of Article 21A, which makes elementary education a Fundamental Right for children of six to fourteen years.
- 17. (A) Article 51A(h)** — Clause (f) is about valuing the composite culture, clause (i) about safeguarding public property and abjuring violence, and clause (j) about striving towards excellence.
- 18. (B) Justice J. S. Verma** — The Justice J. S. Verma Committee (1999) identified existing legal provisions - such as the Prevention of Insults to National Honour Act, 1971 - through which several duties are already enforced.
- 19. (C) Article 46** — Article 46 also requires the State to protect these sections from social injustice and all forms of exploitation. It is classified as a Gandhian directive.
- 20. (A) II and III only** — Article 37 expressly makes the Directive Principles non-justiciable while declaring them fundamental in governance and binding on the State in law-making.

- 21. (C) I and III only** — Like the Directive Principles, the Fundamental Duties are non-justiciable; no writ lies to enforce them. They bind citizens alone, not foreigners.
- 22. (B) I and III only** — The Committee recommended eight duties, not eleven. Its suggestions of a duty to pay taxes and of a penalty for non-compliance were not accepted by Parliament.
- 23. (D) I, II and III** — All three propositions were laid down in *Minerva Mills v. Union of India* (1980), which also struck down the 42nd Amendment's attempt to make Parliament's amending power unlimited.
- 24. (A) I, II and III** — Article 31C thus survives only in its original, narrower form after *Kesavananda Bharati* (1973) and *Minerva Mills* (1980).
- 25. (B) I and II only** — The 42nd Amendment added Articles 39A, 43A and 48A. Article 43B was inserted much later, by the 97th Amendment Act, 2011.
- 26. (C) II and III only** — Equal pay for equal work is Article 39(d) and the distribution of material resources is Article 39(b). A uniform civil code is directed by Article 44.
- 27. (A) A-4, B-1, C-2, D-3** — Articles 39A and 48A were both inserted by the 42nd Amendment Act, 1976; Articles 40 and 44 are part of the original Constitution.
- 28. (D) A-2, B-3, C-4, D-1** — Article 41 also covers public assistance in cases of unemployment, old age, sickness and disablement.
- 29. (B) A-3, B-1, C-4, D-2** — The 42nd Amendment also added Articles 39A and 43A; the 86th Amendment simultaneously inserted Article 21A and the eleventh Fundamental Duty.
- 30. (C) A-3, B-1, C-4, D-2** — The *Champakam Dorairajan* judgment led to the 1st Amendment Act, 1951; *Golaknath* was reversed by the 24th Amendment Act, 1971.
- 31. (B) Article 43A - Uniform civil code** — Article 43A deals with the participation of workers in the management of industries. The uniform civil code is directed by Article 44.
- 32. (A) To pay taxes to the State honestly and in time** — The Swaran Singh Committee had recommended a duty to pay taxes, but it was not incorporated in Article 51A by the 42nd Amendment.
- 33. (C) Article 38(2)** — Article 38(2), which directs the State to minimise inequalities in income, status, facilities and opportunities, was added by the 44th Amendment Act, 1978.
- 34. (A) In Champakam Dorairajan (1951) the Supreme Court held that the Directive Principles override the Fundamental Rights** — *Champakam Dorairajan* held exactly the opposite - that the Fundamental Rights prevail and the Directive Principles must run subsidiary to them.
- 35. (A) I, III, II, IV** — *Champakam Dorairajan* (1951), *Golaknath* (1967), *Kesavananda Bharati* (1973) and *Minerva Mills* (1980) mark the successive stages of the Fundamental Rights versus Directive Principles debate.

IP04 – EXPLANATIONS

- 1. (C) Article 53** — Article 53(1) vests the executive power of the Union in the President, to be exercised by him directly or through officers subordinate to him. Article 52 merely declares that there shall be a President of India.
- 2. (D) the Chief Justice of India** — Under Article 60 the oath is administered by the Chief Justice of India, and in his absence by the senior-most available judge of the Supreme Court.
- 3. (A) I and II only** — Article 54. Nominated members of Parliament and of State Assemblies, and all members of Legislative Councils, are excluded. The 70th Amendment Act, 1992 added the Assemblies of Delhi and Puducherry.
- 4. (C) Census of 1971** — Article 55 read with the 84th Amendment freezes the population figure at the 1971 census until the first census taken after 2026. Value of an MLA's vote = (State population / elected MLAs) / 1000.
- 5. (B) proportional representation by means of a single transferable vote** — Article 55(3) prescribes proportional representation by means of a single transferable vote, the voting being by secret ballot. The winner must secure a prescribed quota, not merely the largest number of first preferences.
- 6. (D) 35 years** — Article 58. He must also be a citizen of India, qualified for election as a member of the Lok Sabha, and must not hold any office of profit.
- 7. (A) A-2, B-4, C-1, D-3** — Article 56 fixes the five-year term, Article 61 lays down the impeachment procedure, Article 72 confers the pardoning power and Article 123 the ordinance-making power.

8. (C) violation of the Constitution — Article 61 permits impeachment only for 'violation of the Constitution', an expression the Constitution leaves undefined. 'Proved misbehaviour or incapacity' is the ground for removing judges under Article 124(4).

9. (D) I, II and III — All three requirements are laid down in Article 61. The resolution must then be passed by a majority of not less than two-thirds of the total membership of that House before the other House investigates the charge.

10. (B) not less than two-thirds of the total membership of that House — Article 61(2) requires a special majority of not less than two-thirds of the TOTAL membership of the House — a stricter requirement than two-thirds of those present and voting.

11. (B) Elected members of the State Legislative Assemblies can participate in the impeachment process — State legislators take part in the ELECTION of the President but not in his impeachment; nominated members of Parliament do the opposite — they cannot vote in the election but can vote on impeachment.

12. (D) six months — Article 62(2). The person so elected holds office for a fresh full term of five years, not merely for the unexpired portion of the predecessor's term.

13. (C) the Vice-President — Article 56(1)(a). The Vice-President must forthwith communicate the resignation to the Speaker of the Lok Sabha.

14. (C) the Supreme Court — Article 71; the decision of the Supreme Court is final. The election cannot be challenged on the ground that the electoral college was incomplete because of a vacancy.

15. (A) I and II only — A qualified veto — one that can be overridden by a lower majority — exists in the USA, not in India. The Indian President has only the absolute, suspensive and pocket vetoes.

16. (A) the Indian Post Office (Amendment) Bill, 1986 — President Zail Singh neither assented to nor returned the Indian Post Office (Amendment) Bill, 1986. The other three Bills listed were passed at joint sittings of the two Houses.

17. (D) an absolute veto — Under Article 201 no time limit is prescribed and the President is not bound to give assent even if the State Legislature passes the Bill again — an absolute veto in substance.

18. (D) Qualified veto — The qualified veto, which can be overridden by the legislature by a higher-than-ordinary majority, is a feature of the American presidency and is unknown to the Indian Constitution.

19. (A) a sentence awarded by a court martial — Article 72 covers punishment by a court martial, punishment for an offence against a law relating to a Union subject, and all death sentences. A Governor under Article 161 can pardon neither a court-martial sentence nor a death sentence.

20. (A) A-1, B-2, C-3, D-4 — A pardon, the fifth form, absolves the convict of the sentence, the conviction and all disqualifications.

21. (A) I and II only — Statement III is wrong: besides offences against Union laws and court-martial sentences, the President's power under Article 72 covers every case where the sentence is one of death, even under a State law.

22. (B) Article 123 — Article 123. Article 213 confers the corresponding power on a Governor, and Article 143 deals with the advisory jurisdiction of the Supreme Court.

23. (A) six weeks from the reassembly of Parliament — Article 123(2)(a). If the two Houses reassemble on different dates, the six weeks are counted from the later date; the ordinance may lapse earlier if disapproved by resolutions of both Houses.

24. (A) I and II only — Statement III is wrong — an ordinance has the same force as an Act of Parliament and therefore cannot amend the Constitution. It also cannot take away or abridge fundamental rights.

25. (C) D. C. Wadhwa v. State of Bihar — D. C. Wadhwa v. State of Bihar (1987) struck down the Bihar practice of re-promulgating ordinances for years; the principle was reaffirmed in Krishna Kumar Singh v. State of Bihar (2017).

26. (B) Article 64 — Article 64. Article 63 declares that there shall be a Vice-President, Article 66 lays down the mode of his election and Article 89 provides for the Deputy Chairman of the Council of States.

27. (B) I and III only — Article 66(1). Unlike the presidential election, no State legislature participates and nominated members of Parliament are included in the electoral college.

- 28. (B) the Rajya Sabha** — Article 66(3). The President, by contrast, must be qualified for election to the Lok Sabha. In both cases the minimum age is 35 years.
- 29. (D) the Rajya Sabha** — Article 67(b): the resolution must be passed by a majority of all the then members of the Rajya Sabha and then agreed to by the Lok Sabha, after 14 days' notice. No ground for removal is specified.
- 30. (C) While acting as President he continues to perform the duties of the Chairman of the Rajya Sabha** — When the Vice-President acts as or discharges the functions of the President, he does not perform the duties of Chairman of the Rajya Sabha and is not entitled to the Chairman's salary (Articles 64 and 65).
- 31. (C) A-2, B-1, C-4, D-3** — Article 67 deals with the term of office and removal of the Vice-President, and Article 68 with the timing of the election to fill a vacancy.
- 32. (C) The Chief Justice of India** — The Presidential (Discharge of Functions) Act, 1969 places the Chief Justice of India first and, in his absence, the senior-most judge of the Supreme Court. Justice M. Hidayatullah discharged the functions of President in 1969.
- 33. (D) I, II and III** — Article 62(2) requires the vacancy to be filled within six months, so the Vice-President cannot act as President for longer than that. During this period he draws the emoluments of the President.
- 34. (D) a Council of Ministers to aid and advise the President** — Article 74(1). The 42nd Amendment made the advice binding on the President and the 44th Amendment allowed him to require reconsideration once, after which he must act in accordance with the advice tendered.
- 35. (B) 42nd Amendment Act** — The 42nd Amendment Act, 1976 made the advice binding; the 44th Amendment Act, 1978 added the proviso permitting the President to require the Council of Ministers to reconsider its advice once.
- 36. (B) I and III only** — Article 75(3) makes the Council of Ministers collectively responsible to the House of the People alone, not to both Houses.
- 37. (C) 15 per cent of the total strength of the Lok Sabha** — Article 75(1A). For a State, Article 164(1A) fixes the same 15 per cent ceiling on the strength of the Legislative Assembly, subject to a minimum of 12 Ministers.
- 38. (B) A-2, B-1, C-3, D-4** — The President exercises all four powers on the advice of the Council of Ministers; only the summoning of a joint sitting under Article 108 and the dissolution of the Lok Sabha involve any element of situational discretion.
- 39. (C) Cabinet Committees are constitutional bodies** — Cabinet Committees are extra-constitutional bodies created under the Government of India (Transaction of Business) Rules. The only mention of the 'Cabinet' in the Constitution is in Article 352, which requires its written recommendation for a National Emergency.
- 40. (C) A-3, B-4, C-2, D-1** — Article 78 obliges the Prime Minister to communicate to the President all decisions of the Council of Ministers relating to the administration of the Union and to furnish information the President calls for.
- 41. (D) Article 76; a judge of the Supreme Court** — Article 76. Article 165 provides for the Advocate General of a State, and Article 88 gives Ministers and the Attorney General the right to speak in either House.
- 42. (A) I and II only** — Article 88 gives him the right of audience in both Houses and their committees without a vote. He is not a whole-time government servant and may take up private practice, subject to the restriction that he cannot advise against the Government of India.
- 43. (B) Article 79 — Solicitor General of India** — Article 79 constitutes Parliament (the President and the two Houses). The Solicitor General is not a constitutional post and finds no mention anywhere in the Constitution.
- 44. (D) A-2, B-1, C-3, D-4** — Dr. Rajendra Prasad served two full terms (1950-1962). Dr. Zakir Husain died in office in 1969, after which V. V. Giri resigned as Vice-President, contested and won on second preferences.
- 45. (A) III, II, I, IV** — Dr. S. Radhakrishnan (1962), Dr. Zakir Husain (1967), V. V. Giri (1969) and Fakhruddin Ali Ahmed (1974). Zakir Husain and Fakhruddin Ali Ahmed both died in office.

IP05 — EXPLANATIONS

- 1. (B) Article 79** — Article 79. The President is an integral part of Parliament though he does not sit in either House.
- 2. (C) 250** — Article 80 — 238 representatives of the States and Union Territories plus 12 members nominated by the President, making a maximum of 250. The present actual strength is 245.

- 3. (A) literature, science, art and social service** — Article 80(3). This provision is borrowed from the practice of nominating distinguished persons to second chambers; a nominated member gets six months to join a political party.
- 4. (C) the 104th Amendment Act** — The 104th Amendment Act, 2019 allowed Article 331 to lapse with effect from 25 January 2020, while extending reservation of seats for Scheduled Castes and Scheduled Tribes by another ten years.
- 5. (D) I, II and III** — Articles 80 and 83. The Rajya Sabha is a continuing chamber; the term of an individual member is six years.
- 6. (C) 30 years** — Article 84(b) prescribes 30 years for the Council of States and 25 years for the House of the People.
- 7. (A) one-tenth of the total number of members of the House** — Article 100(3). If there is no quorum the presiding officer must adjourn the House or suspend the sitting.
- 8. (C) six months** — Article 85(1) requires that six months shall not intervene between the last sitting in one session and the first sitting in the next. Parliament must therefore meet at least twice a year.
- 9. (D) I, II and III** — Article 83(2). The term of the Fifth Lok Sabha was extended twice during the Emergency of 1975-77 — the only occasion on which this power has been used.
- 10. (C) A-2, B-1, C-4, D-3** — Article 94 deals with vacation and resignation of the office of Speaker and Article 96 with the Speaker not presiding while a resolution for his removal is under consideration.
- 11. (B) a majority of all the then members of the House, after 14 days' notice** — Article 94(c). This 'effective majority' is also used for removing the Deputy Speaker, and the Chairman and Deputy Chairman of the Rajya Sabha.
- 12. (D) Deciding questions of disqualification arising under Article 102(1)** — Under Article 103 the question of disqualification under Article 102(1) is decided by the President after obtaining the opinion of the Election Commission, and he must act according to that opinion.
- 13. (B) I and III only** — Article 96 expressly bars the Speaker from presiding while a resolution for his removal is under consideration, though he may speak, take part and vote — except that he has no casting vote on such a resolution.
- 14. (B) Article 110** — Article 110 lists the matters, such as the imposition of a tax and the appropriation of moneys out of the Consolidated Fund of India, that make a Bill a Money Bill. Article 109 lays down the special procedure for such Bills.
- 15. (A) I and II only** — The President can either give or withhold assent to a Money Bill but cannot return it, because the Bill is introduced only with his prior recommendation.
- 16. (C) the Speaker of the Lok Sabha** — Article 110(3) and 110(4): the Speaker's decision is final and his certificate is endorsed on the Bill when it is transmitted to the Rajya Sabha and presented to the President.
- 17. (B) Article 108** — Article 108. The joint sitting is summoned by the President and presided over by the Speaker of the Lok Sabha; a Bill is passed by a majority of the total number of members of both Houses present and voting.
- 18. (C) a Constitution Amendment Bill** — Article 108 excludes both Money Bills and Constitution Amendment Bills, since each House must separately pass an amendment Bill by the special majority prescribed in Article 368.
- 19. (A) II, I, III** — Dowry Prohibition Bill (1961), Banking Service Commission (Repeal) Bill (1978) and Prevention of Terrorism Bill (2002) — the only three joint sittings held so far.
- 20. (C) Article 112** — Article 112 requires the President to cause a statement of the estimated receipts and expenditure of the Government for every financial year to be laid before both Houses; the word 'Budget' does not occur in the Constitution.
- 21. (A) I and II only** — An Appropriation Bill is a Money Bill, so the Rajya Sabha can neither reject nor amend it and must return it within 14 days. Charged expenditure under Article 112(3) can be discussed but not voted.
- 22. (A) A-2, B-3, C-1, D-4** — A policy cut expresses total disapproval of the policy underlying the demand; a token cut ventilates a specific grievance within the sphere of the Government of India.

- 23. (D) Rs 30,000 crore** — The Contingency Fund is constituted under Article 267 and the Contingency Fund of India Act, 1950; the corpus was raised from Rs 500 crore to Rs 30,000 crore in 2021 and remains at that figure as of 2026. It is held by the Finance Secretary on behalf of the President.
- 24. (B) I and III only** — Article 267 places the Contingency Fund at the disposal of the President, not the Prime Minister, to enable advances for unforeseen expenditure pending authorisation by Parliament.
- 25. (B) 22** — The Public Accounts Committee has 22 members — 15 elected by the Lok Sabha and 7 by the Rajya Sabha — elected annually by proportional representation with a single transferable vote. A Minister cannot be a member.
- 26. (A) 15 members from the Lok Sabha and 7 from the Rajya Sabha** — First set up in 1921 under the Government of India Act, 1919, the Committee examines the appropriation accounts and the audit reports of the Comptroller and Auditor General.
- 27. (C) 30 members, all elected from the Lok Sabha** — The Estimates Committee is the only financial committee with no Rajya Sabha representation. Constituted in 1950 on the recommendation of the then Finance Minister John Mathai, it is the largest parliamentary committee.
- 28. (D) I, II and III** — Because it works on estimates already voted, the Committee is described as a 'continuous economy committee'; it suggests economies in expenditure and improvements in organisation and administrative efficiency.
- 29. (B) A-2, B-3, C-4, D-1** — The Committee on Public Undertakings was set up in 1964 on the recommendation of the Krishna Menon Committee; the standing committee system began in 1993 with 17 committees, restructured into 24 in 2004.
- 30. (B) 22 members — 15 from the Lok Sabha and 7 from the Rajya Sabha** — The Committee began in 1964 with 15 members; the strength was raised to 22 in 1974. Like the Public Accounts Committee, it is chaired by a Lok Sabha member and its term is one year.
- 31. (C) 31 members — 21 from the Lok Sabha and 10 from the Rajya Sabha** — There are 24 such committees, 16 serviced by the Lok Sabha Secretariat and 8 by the Rajya Sabha Secretariat. A Minister cannot be a member, and their recommendations are advisory.
- 32. (D) A-2, B-1, C-3, D-4** — The Joint Committee on Offices of Profit has 15 members — 10 from the Lok Sabha and 5 from the Rajya Sabha. The Committee on the Welfare of Scheduled Castes and Scheduled Tribes has 30 members (20 + 10).
- 33. (D) The Committee on Public Undertakings consists of 30 members** — The Committee on Public Undertakings has 22 members. It examines the reports and accounts of public undertakings and the CAG's reports on them, but not matters of major government policy or day-to-day administration.
- 34. (C) 1967** — Since 1967 the Speaker has appointed a senior member of the Opposition as Chairman of the Public Accounts Committee, strengthening its role as a watchdog over executive spending.
- 35. (D) Article 151** — Article 151(1): the CAG submits his reports to the President, who causes them to be laid before each House. They then stand referred to the Public Accounts Committee.
- 36. (B) the Tenth Schedule** — The Tenth Schedule was inserted by the 52nd Amendment Act, 1985. The Ninth Schedule protects specified laws from judicial review, the Eleventh lists 29 panchayat subjects and the Twelfth 18 municipal subjects.
- 37. (B) the 91st Amendment Act, 2003** — The 91st Amendment removed paragraph 3 of the Tenth Schedule, so a defection is now protected only by a merger in which not less than two-thirds of the members of the legislature party agree.
- 38. (A) Kihoto Hollohan v. Zachillhu** — Kihoto Hollohan v. Zachillhu (1992) upheld the Tenth Schedule but struck down the finality clause, holding that the presiding officer acts as a tribunal and his order is open to judicial review on limited grounds.
- 39. (A) I and II only** — The adjournment motion, which involves an element of censure, is available only in the Lok Sabha; the Rajya Sabha cannot make use of this device.
- 40. (C) A-1, B-2, C-3, D-4** — Question Hour, the first hour of a sitting, is regulated by the Rules of Procedure; Zero Hour, which follows it, is an Indian innovation of the 1960s with no mention in the Rules.

41. (D) Question Hour is not regulated by the Rules of Procedure of the House — Question Hour is expressly regulated by the Rules of Procedure and Conduct of Business; it is Zero Hour that is informal and unmentioned in the Rules.

42. (D) a majority of the total membership of the Assembly and a majority of not less than two-thirds of the members present and voting — Article 169(1). This is the 'special majority' of the Article 368 type. The abolition of the Andhra Pradesh Legislative Council in 1985 and its revival in 2007 followed this route.

43. (A) I and II only — The Assembly's resolution is only a condition precedent; Parliament retains full discretion and may decline to legislate, as has happened with several State proposals.

44. (D) Article 266 — Contingency Fund of India — Article 266 provides for the Consolidated Fund of India and the Public Account of India; the Contingency Fund of India is provided for in Article 267.

45. (A) II, IV, I, III — Presentation, general discussion, scrutiny by the departmental standing committees, voting on demands for grants, the Appropriation Bill and finally the Finance Bill complete the budget cycle.

IP06 – EXPLANATIONS

1. (A) 28 January 1950 — The Court began functioning on 28 January 1950, two days after the Constitution came into force, replacing the Federal Court of India set up under the Government of India Act, 1935. H. J. Kania was the first Chief Justice of India.

2. (A) a Chief Justice and 7 other judges — Article 124(1) fixed the strength at eight judges in all and empowered Parliament to increase it by law, which it has done repeatedly.

3. (B) the Supreme Court (Number of Judges) Amendment Act, 2026 — The 2019 amendment had raised the strength from 31 to 34. The 2026 amendment, passed by Parliament in August 2026, raised it to the Chief Justice of India plus 37 other judges, the position as of September 2026.

4. (A) I and II only — Article 124(3) prescribes no minimum age and no fixed period of experience beyond the three alternatives; the third alternative, that of a distinguished jurist, has never been used.

5. (C) 65 years — Article 124(2). A High Court judge retires at 62 under Article 217. Questions about a judge's age are decided by the President after consulting the Chief Justice of India.

6. (A) a majority of the total membership of that House and a majority of not less than two-thirds of the members present and voting — Article 124(4); both requirements must be satisfied in the same session, and the grounds are limited to proved misbehaviour or incapacity.

7. (B) the Judges (Inquiry) Act, 1968 — Under the Judges (Inquiry) Act, 1968 the presiding officer constitutes a three-member committee to investigate the charge. No judge has ever been removed; the motion against Justice V. Ramaswami failed in the Lok Sabha in 1993.

8. (C) A-2, B-3, C-4, D-1 — Article 137 confers the power of review and Article 142 the power to pass any decree necessary for doing complete justice.

9. (C) Article 142 — Article 142. It was used, for example, to transfer the Bhopal gas leak settlement and in the Ayodhya land dispute; the Court has held that it cannot be used to override an express statutory provision.

10. (A) disputes between the Government of India and one or more States — Article 131 covers federal disputes between the Centre and States or between States, and is exclusive. It does not extend to disputes arising out of a pre-Constitution treaty, agreement or sanad.

11. (B) I and III only — The opinion under Article 143 is advisory and does not bind the President; on a dispute under Article 143(2) relating to a pre-Constitution treaty, however, the Court is obliged to give its opinion.

12. (A) the timelines for the grant of assent to Bills by Governors and the President — The Bench headed by Chief Justice B. R. Gavai held that courts cannot prescribe timelines for a Governor or the President under Articles 200 and 201 and rejected the concept of 'deemed assent' (opinion delivered on 20 November 2025).

13. (A) Habeas corpus — Habeas corpus means 'to have the body of'. It can be issued against both public authorities and private individuals, unlike mandamus, which lies only against a public authority.

14. (D) A-1, B-2, C-3, D-4 — Prohibition is preventive and lies only against judicial and quasi-judicial bodies; certiorari is both preventive and curative and, since 1991, also lies against administrative authorities affecting rights.

15. (D) I, II and III — Article 32 is itself a fundamental right and the Supreme Court cannot refuse relief under it, whereas the writ jurisdiction of a High Court under Article 226 is discretionary.

16. (B) its territorial jurisdiction and also to any authority outside it if the cause of action arises within its jurisdiction — This extension was made by the 15th Amendment Act, 1963 through the insertion of clause (1A), later renumbered as Article 226(2).

17. (D) Article 227 — Establishment of a common High Court for two or more States — A common High Court for two or more States or Union Territories is provided for in Article 231; Article 227 confers the power of superintendence over all courts and tribunals within a High Court's jurisdiction.

18. (C) 25 — The Andhra Pradesh High Court at Amaravati, created on 1 January 2019 on the bifurcation of the Hyderabad High Court, is the 25th. Several High Courts have jurisdiction over more than one State or Union Territory.

19. (C) A-2, B-1, C-4, D-3 — Calcutta, Bombay and Madras were all established in 1862 under the Indian High Courts Act, 1861. The Rajasthan High Court was inaugurated on 29 August 1949 at Jodhpur, with a bench later added at Jaipur.

20. (B) I and III only — Article 217(2) recognises only two qualifications — ten years' judicial office or ten years' practice as an advocate of a High Court. The 'distinguished jurist' category exists only for the Supreme Court under Article 124(3)(c).

21. (B) Article 222 — Article 222; the transfer is made after consultation with the Chief Justice of India, who under the Third Judges Case must consult a collegium of four senior-most Supreme Court judges plus the Chief Justices of the two High Courts concerned.

22. (D) I, II and III — Articles 233 and 235. Control by the High Court covers posting, promotion and the grant of leave to persons belonging to the judicial service of the State.

23. (C) the Second Judges Case (1993) — The Second Judges Case (Supreme Court Advocates-on-Record Association v. Union of India, 1993) held that 'consultation' with the Chief Justice of India means concurrence and created the collegium.

24. (A) the four senior-most judges of the Supreme Court — This was settled by the Third Judges Case (In re Special Reference No. 1 of 1998). For a High Court appointment the Chief Justice of India consults his two senior-most colleagues.

25. (C) 2015 — On 16 October 2015 the Court struck down the 99th Constitutional Amendment Act and the NJAC Act, 2014 by 4:1 for violating the independence of the judiciary, a basic feature of the Constitution.

26. (D) The Attorney General of India — The NJAC was to consist of the Chief Justice of India as chairperson, the two senior-most Supreme Court judges, the Union Law Minister and two eminent persons nominated by a committee of the Prime Minister, the CJI and the Leader of the Opposition.

27. (B) Kesavananda Bharati v. State of Kerala — Kesavananda Bharati (1973) was decided by a bench of 13 judges, the largest ever constituted, by a majority of 7:6. It held that Parliament can amend any part of the Constitution but cannot destroy its basic structure.

28. (A) IV, II, I, III — Shankari Prasad (1951), Golaknath (1967), Kesavananda Bharati (1973) and Minerva Mills (1980). Sajjan Singh (1965) falls between the first two and followed Shankari Prasad.

29. (D) A-1, B-2, C-3, D-4 — Vishaka (1997) arose out of the gang rape of Bhanwari Devi, a saathin of the Women's Development Programme in Rajasthan; the guidelines were replaced by the Sexual Harassment of Women at Workplace Act, 2013.

30. (D) I, II and III — Other rights read into Article 21 include the right to a clean environment, to health, to shelter, to legal aid and, in Common Cause (2018), to die with dignity through a living will.

31. (B) Maneka Gandhi v. Union of India — Maneka Gandhi (1978) overruled the narrow reading in A. K. Gopalan (1950) and introduced the American idea of due process into Article 21, linking Articles 14, 19 and 21 as a golden triangle.

32. (B) Article 39A — Article 39A, a Directive Principle inserted by the 42nd Amendment Act, 1976, is the constitutional basis of the Legal Services Authorities Act, 1987 and of free legal aid to the poor.

33. (A) I and II only — No appeal lies against a Lok Adalat award; the aggrieved party may only initiate fresh litigation. The Act came into force on 9 November 1995, observed as National Legal Services Day.

- 34. (C) Rs 1 crore** — Section 22B of the Legal Services Authorities Act, 1987, inserted in 2002, created Permanent Lok Adalats; the pecuniary limit was raised from Rs 10 lakh to Rs 1 crore in 2015. Its award is binding even if the parties fail to reach a settlement.
- 35. (D) A-2, B-1, C-4, D-3** — Gram Nyayalayas are mobile courts at the intermediate panchayat level presided over by a Nyayadhipati having the status of a Judicial Magistrate of the first class; the Act came into force on 2 October 2009.
- 36. (B) the 42nd Amendment Act, 1976** — Only Parliament can provide for administrative tribunals under Article 323A, whereas tribunals for other matters under Article 323B may be created by Parliament or by a State Legislature.
- 37. (D) L. Chandra Kumar v. Union of India** — L. Chandra Kumar v. Union of India (1997) struck down the clauses excluding the High Courts' jurisdiction over tribunals, ending the position taken in S. P. Sampath Kumar (1987).
- 38. (B) The Constitution expressly defines the expression 'judicial review'** — The expression 'judicial review' is nowhere used or defined in the Constitution; the power is inferred from Articles 13, 32, 131-136, 143, 226, 227, 245, 246 and 372.
- 39. (D) Balance between Fundamental Rights and Directive Principles held a basic feature — Golaknath v. State of Punjab** — It was Minerva Mills v. Union of India (1980) that held the balance between Fundamental Rights and Directive Principles to be a basic feature, while striking down Sections 4 and 55 of the 42nd Amendment.
- 40. (A) Both A and R are true and R is the correct explanation of A** — The advisory opinion has high persuasive value and is ordinarily followed, but it neither binds the President nor operates as a binding precedent under Article 141.

IP07 — EXPLANATIONS

- 1. (B) Article 248** — Article 248, read with Entry 97 of the Union List, vests residuary powers of legislation in Parliament. In the Canadian model residuary power lies with the Centre, in the US model with the states.
- 2. (A) Article 249** — Under Article 249 a Rajya Sabha resolution supported by two-thirds of the members present and voting empowers Parliament to make law on a State List subject for one year, renewable.
- 3. (A) I and II only** — Only the Rajya Sabha, as the House representing the States, can pass a resolution under Article 249; the Lok Sabha has no such role. Statement III is therefore wrong.
- 4. (C) Article 252** — Article 252 covers legislation by consent of States; such a law can be amended or repealed only by Parliament. Article 253 is for implementing international treaties and agreements.
- 5. (C) Education** — The 42nd Amendment moved five subjects to the Concurrent List: education, forests, weights and measures, protection of wild animals and birds, and administration of justice. Police and public order remain in the State List.
- 6. (C) Public order** — Public order and police are Entries 1 and 2 of the State List. Atomic energy, citizenship and banking are Union List subjects.
- 7. (A) A-2, B-4, C-1, D-3** — Article 268 covers stamp duties levied by the Union but collected and appropriated by the States; Article 275 provides statutory grants-in-aid charged on the Consolidated Fund of India; Article 280 the Finance Commission; Article 282 discretionary grants.
- 8. (B) Article 275** — Article 275 provides statutory grants-in-aid on the recommendation of the Finance Commission. Article 282 allows both the Union and the States to make discretionary grants for any public purpose.
- 9. (C) Article 279A** — Article 279A, inserted by the 101st Amendment Act, 2016, creates the GST Council with the Union Finance Minister as Chairperson. Article 246A gives concurrent taxing power on GST.
- 10. (A) I and II only** — The Centre's vote carries a weightage of one-third and the States together two-thirds, not one-half. The quorum is one-half of the total members.
- 11. (B) Article 262** — Article 262 empowers Parliament to provide for adjudication of inter-State river water disputes and to bar the jurisdiction of the Supreme Court and other courts in such matters.

- 12. (B) Sarkaria Commission** — The Sarkaria Commission (appointed 1983, report 1988) recommended a permanent Inter-State Council under Article 263; it was established on 28 May 1990 with the Prime Minister as Chairman.
- 13. (D) Rajasthan is a member of the Central Zonal Council** — Rajasthan belongs to the Northern Zonal Council along with Haryana, Himachal Pradesh, Punjab, Delhi, Chandigarh, Jammu & Kashmir and Ladakh. The Central Zonal Council covers Uttar Pradesh, Uttarakhand, Madhya Pradesh and Chhattisgarh.
- 14. (C) Article 301** — Article 301 guarantees this freedom, subject to restrictions under Articles 302-305. Under Article 304(b) a State can impose reasonable restrictions only with the previous sanction of the President.
- 15. (B) Article 355** — Article 355 is the constitutional basis on which the Centre acts under Article 356. It also requires the Union to ensure that the government of every State is carried on in accordance with the Constitution.
- 16. (B) War, external aggression or armed rebellion** — The 44th Amendment substituted 'armed rebellion' for the vaguer 'internal disturbance', which had been used to justify the 1975 Emergency.
- 17. (D) I, II and III** — All three are correct. Before the 44th Amendment the approval period was two months and only a simple majority was needed. The Lok Sabha alone can force revocation by a simple-majority resolution.
- 18. (B) Three** — Three times: in 1962 (Chinese aggression), 1971 (war with Pakistan) and 1975 (internal disturbance). A Financial Emergency has never been proclaimed.
- 19. (A) I only** — The 44th Amendment provided that Articles 20 and 21 can never be suspended, and restricted the automatic suspension of Article 19 to emergencies declared on grounds of war or external aggression.
- 20. (C) Three years** — President's Rule is approved for six months at a time and can extend to a maximum of three years. Beyond one year it needs a National Emergency in force and an Election Commission certificate that elections cannot be held.
- 21. (A) I and II only** — Approval of a proclamation under Article 356 needs only a simple majority in both Houses, unlike a National Emergency, which needs a special majority. Statement III is therefore wrong.
- 22. (C) Four** — President's Rule has been imposed in Rajasthan four times: 1967, 1977, 1980 and December 1992 to December 1993. The 1992-93 spell was the longest, lasting about a year.
- 23. (D) 1985** — The four impositions were in 1967, 1977, 1980 and 1992. No proclamation was made in 1985; the first, in March 1967, followed an indecisive assembly election.
- 24. (B) 1967** — The first spell ran from 13 March to 26 April 1967, following an inconclusive assembly election. Nationally, the first use of Article 356 was in Punjab in 1951.
- 25. (D) S.R. Bommai case** — S.R. Bommai v. Union of India (1994) laid down these principles and also held secularism to be part of the basic structure of the Constitution.
- 26. (B) It is declared under Article 360 and has never been proclaimed** — Article 360 provides for a Financial Emergency; it has never been invoked. During such an emergency salaries of government servants, including judges of the Supreme Court and High Courts, may be reduced.
- 27. (A) II, IV, I, III** — 42nd Amendment (1976) added Fundamental Duties, 44th (1978) made property a legal right under Article 300A, 52nd (1985) added the Tenth Schedule, and 61st (1988) lowered the voting age.
- 28. (D) I, II and III** — All three are correct. The 24th Amendment Act, 1971 made the President's assent to a Constitution Amendment Bill obligatory. An amendment Bill cannot be introduced in a State Legislature.
- 29. (C) An amendment to the Fundamental Rights** — Amendments to Fundamental Rights need only a special majority of Parliament. Ratification by half the States is required for federal provisions listed in the proviso to Article 368(2).
- 30. (A) A-2, B-1, C-4, D-3** — 1st Amendment (1951) created the Ninth Schedule, 52nd (1985) added the Tenth Schedule on defection, 61st (1988) reduced the voting age, and 86th (2002) inserted Article 21A.
- 31. (A) A-2, B-4, C-1, D-3** — 73rd (1992) panchayats; 91st (2003) capped the Council of Ministers at 15 per cent of the House strength; 101st (2016) GST; 103rd (2019) EWS reservation under Articles 15(6) and 16(6).
- 32. (A) A-2, B-3, C-4, D-1** — 26th (1971) abolished privy purses; 42nd (1976) inserted Part IVA; 44th (1978) deleted Article 31 and inserted Article 300A; 69th (1991) inserted Article 239AA for Delhi.

- 33. (B) 97th Amendment** — The 97th Amendment Act, 2011 (effective 2012) made forming co-operative societies a fundamental right under Article 19(1)(c), added Article 43B in the Directive Principles and inserted Part IX-B.
- 34. (C) 102nd Amendment** — The 102nd Amendment Act, 2018 inserted Articles 338B and 342A. The 105th Amendment Act, 2021 restored the power of States to identify socially and educationally backward classes.
- 35. (B) One-third reservation of seats for women in the Lok Sabha and State Legislative Assemblies** — Popularly called the Nari Shakti Vandan Adhiniyam, it inserted Articles 330A, 332A and 334A; the reservation is to operate after a census and delimitation exercise and is to last 15 years.
- 36. (C) 104th Amendment** — The 104th Amendment Act, 2019 ended Anglo-Indian nomination and extended reservation of seats for Scheduled Castes and Scheduled Tribes in legislatures up to 2030.
- 37. (D) 92nd Amendment - Right to education** — The 92nd Amendment Act, 2003 added Bodo, Dogri, Maithili and Santhali to the Eighth Schedule, raising the number of scheduled languages to 22. Right to education came through the 86th Amendment.
- 38. (A) A-2, B-1, C-4, D-3** — The Ninth Schedule was created by the 1st Amendment, 1951; after I.R. Coelho (2007), laws added to it after 24 April 1973 are open to judicial review on basic-structure grounds.
- 39. (B) Fifth Schedule** — The Fifth Schedule applies to Scheduled Areas in States other than Assam, Meghalaya, Tripura and Mizoram, and provides for a Tribes Advisory Council and an annual report by the Governor to the President.
- 40. (A) Assam, Meghalaya, Tripura and Mizoram** — The Sixth Schedule provides for Autonomous District Councils in these four States. Nagaland is instead covered by the special provisions of Article 371A.
- 41. (C) Both I and II** — Both are correct. The Tribes Advisory Council may have up to twenty members. Parliament can amend the Fifth Schedule by a simple majority, and this is not treated as an amendment under Article 368.
- 42. (B) Article 371A** — Article 371A was inserted by the 13th Amendment Act, 1962. Article 371G contains similar provisions for Mizoram and Article 371C for Manipur.
- 43. (A) A-2, B-1, C-4, D-3** — Article 371D provides for an Administrative Tribunal in Andhra Pradesh; 371F for Sikkim (36th Amendment, 1975); 371G for Mizoram; 371J for the Hyderabad-Karnataka region (98th Amendment, 2012).
- 44. (D) I, II and III** — All three are correct. The Constitution now has twelve Schedules; the 11th and 12th were added by the 73rd and 74th Amendments in 1992.
- 45. (B) It provides that in case of repugnancy between a Union law and a State law on a Concurrent List subject, the Union law prevails** — Article 254 deals with inconsistency between laws made by Parliament and by State Legislatures. If a repugnant State law has been reserved for and received the President's assent, it prevails in that State.

IP08 – EXPLANATIONS

- 1. (C) Article 40** — Article 40 is the Gandhian Directive Principle on village panchayats; it was the constitutional basis for the 73rd Amendment. Article 43B, added in 2011, deals with co-operative societies.
- 2. (B) Balwant Rai Mehta Committee** — The Balwant Rai Mehta Committee, appointed in January 1957 to review the Community Development Programme, reported in November 1957 and proposed Gram Panchayat, Panchayat Samiti and Zila Parishad.
- 3. (D) I, II and III** — All three are correct. The Committee also recommended that real transfer of power and resources be made to these bodies, with the Panchayat Samiti as the executive body.
- 4. (A) Nagaur, Rajasthan** — Jawaharlal Nehru inaugurated Panchayati Raj at Nagaur in Rajasthan, making Rajasthan the first State to adopt it. Andhra Pradesh followed on 1 November 1959.
- 5. (B) A two-tier system of Zila Parishad and Mandal Panchayat** — The Ashok Mehta Committee proposed the district as the first point of decentralisation, with Mandal Panchayats covering a population of 15,000 to 20,000, and open participation by political parties.

- 6. (C) G.V.K. Rao Committee** — The G.V.K. Rao Committee (1985), appointed by the Planning Commission on administrative arrangements for rural development, held that bureaucratisation had weakened the panchayats and made the Zila Parishad the pivot.
- 7. (D) L.M. Singhvi Committee** — The L.M. Singhvi Committee (1986) recommended constitutional recognition, treated the Gram Sabha as the embodiment of direct democracy and urged the revival of Nyaya Panchayats.
- 8. (A) A-2, B-3, C-4, D-1** — Balwant Rai Mehta 1957, Ashok Mehta appointed 1977 (report 1978), G.V.K. Rao 1985 and L.M. Singhvi 1986.
- 9. (A) A-3, B-4, C-2, D-1** — Balwant Rai Mehta gave the three-tier design, Ashok Mehta the two-tier Mandal Panchayat model, G.V.K. Rao the District Development Commissioner and L.M. Singhvi constitutional status.
- 10. (B) It was passed by the Lok Sabha but defeated in the Rajya Sabha** — The Bill, introduced by the Rajiv Gandhi government, was passed by the Lok Sabha but failed to secure passage in the Rajya Sabha. Constitutional status finally came through the 73rd Amendment in 1992.
- 11. (A) I and II only** — National Panchayati Raj Day is observed on 24 April, the date the 73rd Amendment took effect, not on 2 October. Both Amendments received the President's assent on 20 April 1993.
- 12. (D) I, II and III** — All three are correct. Part IX-B was inserted by the 97th Amendment Act, 2011; in 2021 the Supreme Court struck it down insofar as it applied to co-operative societies operating within a single State.
- 13. (C) 29** — The Eleventh Schedule, added by the 73rd Amendment and linked to Article 243G, lists 29 subjects. The Twelfth Schedule, linked to Article 243W, lists 18 subjects for municipalities.
- 14. (D) Fire services** — Fire services is an item of the Twelfth Schedule, meant for municipalities. Minor forest produce, fisheries and rural electrification including distribution of electricity are all Eleventh Schedule items.
- 15. (D) Minor irrigation and watershed development** — Minor irrigation, water management and watershed development is item 3 of the Eleventh Schedule. The Twelfth Schedule's 18 items begin with urban planning including town planning.
- 16. (A) A-2, B-4, C-1, D-3** — Article 243A defines the Gram Sabha's powers, 243I the State Finance Commission, 243K the State Election Commission and 243ZD the District Planning Committee.
- 17. (B) States having a population not exceeding twenty lakh** — A State whose population does not exceed twenty lakh need not constitute panchayats at the intermediate (block) level; the village and district levels are compulsory everywhere.
- 18. (B) 21 years** — Article 243F provides that a person who has attained 21 years of age is eligible for membership of a panchayat, even though the voting age is 18. The same age applies to municipalities under Article 243V.
- 19. (A) I and II only** — Under Article 243E the panchayat constituted after premature dissolution serves only the remainder of the original term. No fresh election is held if the remainder is less than six months.
- 20. (C) Article 243K** — Article 243K vests these powers in the State Election Commission; the State Election Commissioner is appointed by the Governor and can be removed only in the manner and on the grounds of a High Court judge.
- 21. (C) Every five years** — Article 243I requires the Governor to constitute a State Finance Commission every five years. Article 243Y extends its remit to municipalities.
- 22. (D) I, II and III** — All three are correct. Offices of chairpersons are also reserved. Reservation for backward classes is optional and left to the State legislature.
- 23. (A) A-2, B-4, C-1, D-3** — Article 243Q defines the three types of municipalities; the Governor specifies the area having regard to population, density, revenue, non-agricultural employment and economic importance. Article 243ZE covers metropolitan areas.
- 24. (C) Three lakh or more** — Ward Committees consisting of one or more wards are compulsory within the territorial area of a municipality having a population of three lakh or more.
- 25. (D) I, II and III** — All three are correct. The DPC consolidates the plans prepared by panchayats and municipalities and forwards the draft development plan for the district to the State Government.
- 26. (B) Ten lakh or more** — A metropolitan area is one with a population of ten lakh or more comprising two or more municipalities or panchayats. Two-thirds of the Committee's members are elected by elected representatives of the local bodies in that area.

- 27. (C) 1996** — PESA was enacted in December 1996 to extend Part IX of the Constitution, with modifications, to the Fifth Schedule areas, which the 73rd Amendment had left out under Article 243M.
- 28. (A) Bhuria Committee** — The committee headed by Dilip Singh Bhuria submitted its report in 1995, recommending self-governance for tribal areas through empowered Gram Sabhas.
- 29. (D) I, II and III** — All three are correct. The Gram Sabha under PESA also approves plans and beneficiaries, manages village markets and can enforce prohibition on the sale of intoxicants.
- 30. (C) Ten** — Ten States have Fifth Schedule areas covered by PESA: Andhra Pradesh, Telangana, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha and Rajasthan.
- 31. (D) West Bengal** — West Bengal has no Fifth Schedule area. Rajasthan's Scheduled Areas lie mainly in the southern districts such as Banswara, Dungarpur, Pratapgarh and parts of Udaipur, Sirohi and Chittorgarh.
- 32. (B) Bikaner** — Bikaner state enacted a Gram Panchayat Act as early as 1928. Jodhpur, Jaipur, Udaipur, Sirohi, Bharatpur and Karauli also passed panchayat legislation before independence.
- 33. (D) Dholpur** — Jodhpur, Bharatpur, Jaipur, Sirohi, Udaipur and Karauli enacted laws on panchayats before independence, in addition to Bikaner's Act of 1928. Dholpur is not part of that list.
- 34. (B) Introduction of elected local boards with non-official chairmen** — Ripon's Resolution provided for local boards with a majority of elected non-official members and non-official chairmen, earning him the title 'Father of local self-government in India'.
- 35. (C) Article 243-O** — Article 243-O bars courts from questioning the validity of any law relating to delimitation of constituencies or allotment of seats, and provides that panchayat elections can be challenged only by an election petition. Article 243ZG does the same for municipalities.
- 36. (D) I, II and III** — All three are correct: about Rs 2.36 lakh crore for rural and Rs 1.21 lakh crore for urban local bodies, plus Rs 70,051 crore of health grants. The States' share in central taxes was fixed at 41 per cent.
- 37. (C) Population 90 per cent and area 10 per cent** — The weightage is 90 per cent for population and 10 per cent for area. The Commission also recommended that States constitute State Finance Commissions and act upon their reports.
- 38. (D) The Municipal Commissioner** — The Municipal Commissioner, usually an IAS or senior State service officer appointed by the State Government, is the executive head, while the Mayor is the ceremonial and deliberative head.
- 39. (A) I, II, III, IV** — Balwant Rai Mehta reported in 1957, Ashok Mehta in 1978, L.M. Singhvi in 1986 and the 73rd Amendment was enacted in 1992, coming into force in 1993.
- 40. (A) Both A and R are true and R is the correct explanation of A** — Article 243E fixes the five-year term and mandates completion of elections before expiry, which is precisely why regular elections became obligatory after 1993.

IP09 – EXPLANATIONS

- 1. (A) Article 324** — Article 324 vests the superintendence, direction and control of the preparation of electoral rolls and the conduct of all elections to Parliament, State Legislatures and the offices of President and Vice-President in the Election Commission.
- 2. (A) I and II only** — Statements I and II are correct. Elections to panchayats and municipalities are conducted by the State Election Commission under Articles 243K and 243ZA, not by the Election Commission of India.
- 3. (A) The Prime Minister, a Union Cabinet Minister nominated by the Prime Minister and the Leader of Opposition in the Lok Sabha** — The 2023 Act replaced the Chief Justice of India (directed by the Supreme Court in Anoop Baranwal, 2023) with a Union Cabinet Minister nominated by the Prime Minister. A Search Committee headed by the Cabinet Secretary first prepares a panel of five names.
- 4. (A) 61st Amendment** — The 61st Amendment Act, 1988 amended Article 326 to lower the voting age to 18 years. It took effect from 28 March 1989.
- 5. (D) People's Union for Civil Liberties v. Union of India** — In PUCL v. Union of India (2013) the Supreme Court directed the Election Commission to provide a NOTA button on EVMs to protect the secrecy of a negative vote.

6. (A) A-2, B-1, C-4, D-3 — Article 324 - Election Commission; 325 - one general electoral roll with no discrimination; 326 - adult suffrage; 329 - bar to interference by courts in electoral matters.

7. (A) a statutory body constituted under an Act of Parliament — Delimitation Commissions are set up by Acts of Parliament; four have been constituted so far - 1952, 1963, 1973 and 2002. The 84th Amendment froze the allocation of seats till 2026.

8. (D) Articles 315-323 — Part XIV of the Constitution, Articles 315 to 323, deals with the Public Service Commissions for the Union and the States.

9. (D) 65 years — The age limit for UPSC is 65 years; for a State Public Service Commission and a Joint State PSC it is 62 years.

10. (D) the President, after an inquiry held by the Supreme Court — Under Article 317, the chairman or a member of any Public Service Commission - Union, State or Joint - can be removed only by the President on a report of the Supreme Court after inquiry. Though appointed by the Governor, a State PSC member is removed by the President.

11. (C) I and II only — Statements I and II are correct. Under Article 319 the Chairman of the UPSC is not eligible for any further employment either under the Government of India or under a State Government, including re-appointment.

12. (D) Making reservations of appointments in favour of any backward class of citizens — The proviso to Article 320(4) expressly excludes the UPSC from being consulted on reservations in appointments for backward classes. The other three are duties listed in Article 320.

13. (B) A-2, B-1, C-4, D-3 — Article 315 - constitution; 317 - removal and suspension; 320 - functions; 322 - expenses charged on the Consolidated Fund of India or of the State.

14. (D) Article 148 — Article 148 provides for the appointment of the CAG by the President by warrant under his hand and seal, and for his removal in the same manner as a Judge of the Supreme Court.

15. (D) 65 years — The CAG holds office for six years or up to the age of 65 years, whichever is earlier, and is thereafter ineligible for any further office under the Government of India or of any State.

16. (D) I and II only — Statements I and II are correct. Article 148(4) bars the CAG from holding any further office under the Government of India or of any State after he ceases to hold office.

17. (A) Article 149 — Article 149 empowers Parliament to prescribe the CAG's duties and powers; this was done by the Comptroller and Auditor General's (Duties, Powers and Conditions of Service) Act, 1971.

18. (A) He exercises control over the issue of money from the Consolidated Fund at the time of expenditure. — Unlike his British counterpart, the Indian CAG is only an auditor and not a comptroller - he has no control over the issue of money from the Consolidated Fund, and his audit is entirely post-facto.

19. (C) A-3, B-4, C-1, D-2 — Article 148 - appointment and service conditions; 149 - duties and powers; 150 - form of accounts; 151 - audit reports.

20. (D) Article 280 — Article 280 requires the President to constitute a Finance Commission every fifth year, or earlier if he considers it necessary. Article 275 deals with statutory grants-in-aid to States.

21. (A) four other members — Article 280(1) provides for a Chairman and four other members. Their qualifications and the manner of selection are laid down in the Finance Commission (Miscellaneous Provisions) Act, 1951.

22. (C) Fixing the annual borrowing limits of State Governments under Article 293 — Borrowing limits of States under Article 293 are decided by the Union Government, not the Finance Commission. The clauses relating to panchayats and municipalities were added to Article 280(3) by the 73rd and 74th Amendments.

23. (B) I and III only — The Finance Commission's recommendations are advisory only; the Union Government lays them before Parliament with an explanatory memorandum on the action taken.

24. (C) Arvind Panagariya — The 16th Finance Commission was constituted on 31 December 2023 under Dr. Arvind Panagariya and submitted its report to the President on 17 November 2025. N.K. Singh headed the 15th and Y.V. Reddy the 14th Finance Commission.

25. (A) 41 per cent — The 15th Finance Commission recommended 41 per cent, one percentage point lower than the 42 per cent recommended by the 14th Finance Commission, to account for the conversion of Jammu and Kashmir into Union Territories.

- 26. (C) Article 76** — Article 76 provides for the Attorney General of India, the highest law officer of the Union. Article 165 provides for the Advocate General of a State.
- 27. (A) I and II only** — The Attorney General holds office during the pleasure of the President and has no fixed tenure. M.C. Setalvad was independent India's first Attorney General.
- 28. (C) 102nd Amendment Act, 2018** — The 102nd Amendment Act, 2018 inserted Articles 338B and 342A, giving the NCBC constitutional status. The 105th Amendment, 2021 restored the power of States to identify socially and educationally backward classes.
- 29. (C) 89th Amendment Act** — The 89th Amendment Act, 2003 bifurcated the erstwhile combined commission, retaining the NCSC under Article 338 and creating the NCST under Article 338A, which came into existence on 19 February 2004.
- 30. (D) A-3, B-1, C-4, D-2** — NCSC - Article 338; NCST - Article 338A; NCBC - Article 338B; Special Officer for Linguistic Minorities - Article 350B.
- 31. (B) National Commission for Women** — The National Commission for Women is a statutory body set up under the National Commission for Women Act, 1990 and began functioning on 31 January 1992. The other three are constitutional bodies.
- 32. (D) the Protection of Human Rights Act, 1993** — The NHRC is a statutory body constituted under the Protection of Human Rights Act, 1993, which also provides for State Human Rights Commissions and Human Rights Courts.
- 33. (C) A person who has been Chief Justice of India or a Judge of the Supreme Court** — The 2019 Amendment widened the eligibility, which was earlier confined to a retired Chief Justice of India, to include a retired Judge of the Supreme Court. Similarly, a State Human Rights Commission may now be headed by a former Chief Justice or Judge of a High Court.
- 34. (C) I and II only** — Section 36(2) of the Act bars the NHRC from inquiring into a matter after the expiry of one year from the date on which the act constituting the violation is alleged to have been committed. The 2019 Amendment reduced the term from five to three years.
- 35. (D) It can itself punish a public servant found guilty of violating human rights.** — The NHRC has no power to punish; it can only recommend action, compensation or prosecution to the concerned government or authority, which must report the action taken within one month.
- 36. (C) Five** — The 2019 Amendment raised the number of members from four to five - one serving or retired Judge of the Supreme Court, one serving or retired Chief Justice of a High Court, and three members having knowledge of human rights, of whom at least one must be a woman.
- 37. (C) Union Home Minister** — The selection committee consists of the Prime Minister (chairperson), the Speaker of the Lok Sabha, the Deputy Chairman of the Rajya Sabha, the Leaders of Opposition in both Houses and the Union Home Minister.
- 38. (D) the Santhanam Committee** — The Committee on Prevention of Corruption headed by K. Santhanam recommended the creation of the CVC, which was set up by a government resolution on 11 February 1964. Nittoor Srinivasa Rau was the first Central Vigilance Commissioner.
- 39. (C) 2003** — The CVC Act, 2003 made the Commission statutory, giving effect to the Supreme Court's directions in the Vineet Narain (Jain Hawala) case of 1997.
- 40. (A) the Union Minister of Home Affairs** — The three-member committee under the CVC Act, 2003 comprises the Prime Minister as Chairperson, the Minister of Home Affairs and the Leader of Opposition in the Lok Sabha.
- 41. (D) I, II and III** — All three statements are correct. The Central Vigilance Commissioner and Vigilance Commissioners are removed by the President on the ground of proved misbehaviour or incapacity after an inquiry by the Supreme Court.
- 42. (A) the Delhi Special Police Establishment Act, 1946** — The CBI was created by a Home Ministry resolution on 1 April 1963 and has no separate statute of its own; it draws its powers from the Delhi Special Police Establishment Act, 1946 and needs the consent of a State under Section 6 of that Act to investigate there.
- 43. (A) the Chief Justice of India or a Supreme Court Judge nominated by him** — The Lokpal and Lokayuktas Act, 2013 amended the DSPE Act to provide this three-member collegium. The Director has a minimum tenure of two years, extendable up to five years under the 2021 amendment.

- 44. (D) 2013** — The Lokpal and Lokayuktas Act, 2013 received presidential assent on 1 January 2014 and came into force on 16 January 2014. Justice Pinaki Chandra Ghose became India's first Lokpal in March 2019.
- 45. (B) I, II and III** — All three are correct. The Selection Committee consists of the Prime Minister, the Speaker of the Lok Sabha, the Leader of Opposition in the Lok Sabha, the Chief Justice of India or a Judge nominated by him, and one eminent jurist.
- 46. (D) 1 January 2015** — NITI Aayog was set up by an executive resolution of the Union Cabinet on 1 January 2015, replacing the Planning Commission which had itself been created by a Cabinet resolution in March 1950.
- 47. (A) I and II only** — NITI Aayog is neither constitutional nor statutory; it was created by an executive resolution. Its full-time organisational framework includes a Vice-Chairperson, full-time and part-time members, ex officio members and a Chief Executive Officer of the rank of Secretary to the Government of India.
- 48. (D) 1952** — The NDC was constituted on 6 August 1952 by an executive resolution and is neither a constitutional nor a statutory body. It is chaired by the Prime Minister.
- 49. (A) I, II, III, IV** — Central Vigilance Commission 1964; National Human Rights Commission 1993; Central Information Commission 2005; NITI Aayog 2015.
- 50. (C) II, I, IV, III** — Delhi Special Police Establishment Act 1946; Protection of Human Rights Act 1993; Central Vigilance Commission Act 2003; Lokpal and Lokayuktas Act 2013.
- 51. (A) A-2, B-1, C-3, D-4** — The CAG is appointed directly by warrant; the CVC and the CIC each have a statutory three-member selection committee; the Prime Minister is ex officio Chairperson of NITI Aayog.
- 52. (A) Central Information Commission - 2003** — The Central Information Commission was constituted in 2005 under Section 12 of the Right to Information Act, 2005; the Act came fully into force on 12 October 2005.
- 53. (B) A-3, B-1, C-2, D-4** — NCW - Act of 1990; NCPCR - Act of 2005; CIC - Section 12 of the RTI Act, 2005; NGT - Act of 2010.
- 54. (C) A-4, B-1, C-2, D-3** — V. Narahari Rao was the first CAG of independent India, Nittoor Srinivasa Rau the first Central Vigilance Commissioner (1964), Wajahat Habibullah the first Chief Information Commissioner (2005) and Justice Pinaki Chandra Ghose the first Lokpal (2019).
- 55. (C) I, II and III** — All three statements are correct. The 89th Amendment bifurcated the combined commission into the NCSC under Article 338 and the NCST under Article 338A.

IP10 – EXPLANATIONS

- 1. (D) Thomas R. Dye** — This widely quoted definition is by Thomas R. Dye. Harold Lasswell is regarded as the father of the policy sciences and gave a seven-stage model of the policy process.
- 2. (B) Charles E. Lindblom** — Charles Lindblom's 1959 article 'The Science of Muddling Through' argued that policy makers make small incremental changes to existing policy rather than comprehensive rational choices.
- 3. (D) A-3, B-4, C-2, D-1** — Herbert Simon gave bounded rationality, Lindblom incrementalism, Etzioni mixed scanning and David Easton the systems model of the political and policy process.
- 4. (D) I and II only** — Implementation is essentially an executive and administrative function; the legislature's role is to legitimise and oversee policy, not to implement it.
- 5. (B) the United Kingdom** — The Citizen's Charter was launched in the United Kingdom in 1991 by Prime Minister John Major as a national programme to improve public services.
- 6. (C) Provision of penalty and punishment for officials who fail to meet the declared standards** — A Citizen's Charter is a voluntary, non-justiciable declaration of service standards; it contains no penal provision against officials. Its recognised components are the vision and mission statement, details of business transacted, details of clients, details of services to each client group, the grievance redress mechanism, and expectations from clients.
- 7. (B) May 1997** — The Conference of Chief Ministers held on 24 May 1997 adopted the 'Action Plan for Effective and Responsive Government'. The Department of Administrative Reforms and Public Grievances is the nodal agency for Citizen's Charters in India.
- 8. (B) II and III only** — A Citizen's Charter is not a legally enforceable or justiciable document; it is a declaration of commitment to service standards.

- 9. (A) Citizen's Charter, Public Grievance Redress and Service Delivery Capability** — Sevottam, developed by DARPG, has three modules - Citizen's Charter, Public Grievance Redress and Service Delivery Capability - and is assessed against the standard IS 15700:2005.
- 10. (B) IS 15700:2005** — IS 15700:2005 of the Bureau of Indian Standards lays down the requirements for a quality management system for service quality by public service organisations.
- 11. (A) Both A and R are true and R is the correct explanation of A** — Both statements are true and the Reason correctly explains the Assertion. This is why the 2nd ARC recommended that charters be made more meaningful by adding measurable standards and an effective grievance redress mechanism.
- 12. (B) Section 17 of the MGNREGA, 2005** — Section 17 of the Mahatma Gandhi National Rural Employment Guarantee Act, 2005 makes the Gram Sabha responsible for conducting social audits of all works executed within the Gram Panchayat. The Audit of Scheme Rules were framed in 2011 in consultation with the CAG.
- 13. (C) Meghalaya** — The Meghalaya Community Participation and Public Services Social Audit Act, 2017 was the first state legislation in India to mandate social audit across government schemes and departments.
- 14. (B) the Mazdoor Kisan Shakti Sangathan** — The Mazdoor Kisan Shakti Sangathan, founded in 1990 at Devdungri in Rajsamand district by Aruna Roy, Nikhil Dey and Shankar Singh, used public hearings to audit muster rolls under the slogan 'Hamara Paisa, Hamara Hisab'.
- 15. (A) I and II only** — Social audit supplements, and does not replace, the statutory financial audit. MGNREGA requires the Gram Sabha to conduct a social audit of all projects at least once in every six months.
- 16. (C) 21 days** — The timeline was progressively reduced from 60 days to 30 days and then to 21 days in August 2024. A citizen dissatisfied with the disposal may file an appeal before the Appellate Authority within 30 days.
- 17. (C) I, II and III** — All three are correct. The Directorate of Public Grievances in the Cabinet Secretariat and DARPG in the Ministry of Personnel are the two nodal agencies for public grievances at the central level.
- 18. (B) 12 October 2005** — The Act received presidential assent on 15 June 2005 and came into force in full on 12 October 2005, 120 days after enactment. It replaced the Freedom of Information Act, 2002.
- 19. (B) 48 hours** — The normal time limit is 30 days, but where the information sought concerns the life or liberty of a person it must be provided within 48 hours of the receipt of the request.
- 20. (B) Rs. 25,000** — The Information Commission may impose a penalty of Rs. 250 for each day of delay, subject to a maximum of Rs. 25,000, and may also recommend disciplinary action against the PIO.
- 21. (D) 90 days** — The first appeal lies to an officer senior to the Public Information Officer within 30 days; the second appeal lies to the Information Commission within 90 days. The burden of proving that a refusal was justified rests on the PIO.
- 22. (D) I and II only** — Section 6(2) bars asking for reasons and Section 22 gives the Act overriding effect. Under the proviso to Section 24, information relating to allegations of corruption and human rights violations must be furnished even by exempted organisations.
- 23. (C) not more than ten Information Commissioners** — Section 12 of the RTI Act provides for a Chief Information Commissioner and not more than ten Information Commissioners; the same numerical limit applies to a State Information Commission under Section 15.
- 24. (B) a Union Cabinet Minister nominated by the Prime Minister** — The three-member committee under Section 12(3) of the RTI Act is chaired by the Prime Minister. Wajahat Habibullah was India's first Chief Information Commissioner.
- 25. (B) I, II and III** — All three statements are correct. The third member of the recommending committee is a State Cabinet Minister nominated by the Chief Minister.
- 26. (B) three years or until the age of 65 years** — The 2019 Amendment removed the fixed five-year term from the statute and left the term, salary and service conditions to be prescribed by the Central Government; the RTI Rules, 2019 fix the term at three years. The upper age limit of 65 years remains.
- 27. (B) It removed the right of a citizen to file a second appeal before the Information Commission.** — The 2019 Amendment did not touch the appeal mechanism under Section 19; it dealt only with the tenure, salaries and service conditions of the Chief Information Commissioner, Information Commissioners and their state counterparts.

- 28. (A) A-3, B-4, C-1, D-2** — Section 4 - proactive disclosure; Section 6 - request for information; Section 8 - exemptions; Section 12 - constitution of the Central Information Commission.
-
- 29. (C) 2014** — The Whistle Blowers Protection Act, 2014 received presidential assent on 9 May 2014. It provides for public interest disclosures to the Central or State Vigilance Commission and for protecting the identity of the complainant.
-
- 30. (B) Madhya Pradesh** — The Madhya Pradesh Public Service Guarantee Act, 2010 was the first such law in India. Rajasthan followed with the Guaranteed Delivery of Public Services Act, 2011 and became the first state to enact a Right to Hearing Act in 2012.
-
- 31. (B) 2006** — The NeGP was approved on 18 May 2006 with 27 Mission Mode Projects, later expanded to 31. It was subsumed in 2015 into e-Kranti, or NeGP 2.0, which has 44 Mission Mode Projects.
-
- 32. (C) 1 July 2015** — Digital India was launched on 1 July 2015 and rests on nine pillars with three vision areas - digital infrastructure as a utility to every citizen, governance and services on demand, and digital empowerment of citizens.
-
- 33. (A) I, II and III** — All three statements are correct. UMANG - Unified Mobile Application for New-age Governance - was launched in 2017.
-
- 34. (B) A-3, B-1, C-4, D-2** — DBT was launched on 1 January 2013, the NeGP was approved in 2006, Digital India was launched in 2015 and UMANG in 2017.
-
- 35. (B) Right to Information: Master Key to Good Governance** — The 2nd ARC's first report, submitted in June 2006, was 'Right to Information - Master Key to Good Governance'. 'Ethics in Governance' was its fourth and 'Citizen Centric Administration' its twelfth report.
-
- 36. (C) I, II and III** — The 2nd ARC was constituted on 31 August 2005 under Veerappa Moily, who was succeeded by V. Ramachandran, and it submitted fifteen reports. The First ARC of 1966, headed by Morarji Desai and later K. Hanumanthaiah, had submitted twenty reports.
-
- 37. (D) Centralisation of decision making** — The eight attributes of good governance are participation, rule of law, transparency, responsiveness, consensus orientation, equity and inclusiveness, effectiveness and efficiency, and accountability. The World Bank popularised the term in its 1992 report 'Governance and Development'.
-
- 38. (B) I, II, III, IV** — Freedom of Information Act 2002; Right to Information Act 2005; Whistle Blowers Protection Act 2014; Meghalaya Social Audit Act 2017.
-
- 39. (A) Social audit - First mandated in India by the Right to Information Act, 2005** — Social audit was first statutorily mandated in India by Section 17 of MGNREGA, 2005, not by the RTI Act. The other three pairs are correctly matched.
-
- 40. (C) A-4, B-1, C-2, D-3** — The 2nd ARC's first report (2006) was on the Right to Information, the fourth on Ethics in Governance, the eleventh on e-Governance and the twelfth on Citizen Centric Administration.
-